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TITLE 3—THE PRESIDENT

EXECUTIVE ORDER 10582

PRESCRIBING UNIFORM PROCEDURES FOR CERTAIN DETERMINATIONS UNDER THE BUY-AMERICAN ACT

WHEREAS in the administration of the act of March 3, 1933, 47 Stat. 1520, 41 U. S. C. 10a–10c; 41 U. S. C. 10d, commonly known as the Buy-American Act, and other laws requiring the application of the Buy-American Act, the heads of executive agencies are required to determine, as a condition precedent to the purchase by their agencies of materials of foreign origin for public use within the United States, (a) that the price of like materials of domestic origin is unreasonable, or (b) that the purchase of like materials of domestic origin is inconsistent with the public interest; and

WHEREAS it is desirable and in the public interest that such determinations be made on as uniform a basis as possible:

NOW, THEREFORE, by virtue of the authority vested in me as President of the United States, it is hereby ordered as follows:

SECTION 1. As used in this order, (a) the term "materials" includes articles and supplies, (b) the term "executive agency" includes executive department, independent establishment, and other instrumentality of the executive branch of the Government, and (c) the term "bid or offered price of materials of foreign origin" means the bid or offered price of such materials delivered at the place specified in the invitation to bid including applicable duty and all costs incurred after arrival in the United States.

SEC. 2. (a) For the purposes of this order materials shall be considered to be of foreign origin if the cost of the foreign products used in such materials constitutes fifty per centum or more of the cost of all the products used in such materials.

(b) For the purposes of the said act of March 3, 1933, and the other laws referred to in the first paragraph of the preamble of this order, the bid or offered price of materials of domestic origin shall be deemed to be unreasonable, or the purchase of such materials shall be deemed to be inconsistent with the public interest, if the bid or offered price thereof exceeds the sum of the bid or offered price of like materials of foreign origin and a differential computed as provided in subsection (c) of this section.

(c) The executive agency concerned shall in each instance determine the amount of the differential referred to in subsection (b) of this section on the basis of one of the following-described formulas, subject to the terms thereof:

(1) The sum determined by computing six per centum of the bid or offered price of materials of foreign origin.

(2) The sum determined by computing ten per centum of the bid or offered price of materials of foreign origin exclusive of applicable duty and all costs incurred after arrival in the United States: provided that when the bid or offered price of materials of foreign origin amounts to less than $25,000, the sum shall be determined by computing ten per centum of such price exclusive only of applicable duty.

SEC. 3. Nothing in this order shall affect the authority or responsibility of an executive agency:

(a) To reject any bid or offer for reasons of the national interest not described or referred to in this order; or

(b) To place a fair proportion of the total purchases with small business concerns in accordance with section 302 (b) of the Federal Property and Administrative Services Act of 1949, as amended, section 2 (b) of the Armed Services Procurement Act of 1947, as amended, and section 202 of the Small Business Act of 1953; or

(c) To reject a bid or offer to furnish materials of foreign origin in any situation in which the domestic supplier offering the lowest price for furnishing the desired materials undertakes to produce substantially all of such materials in areas of substantial unemployment, as determined by the Secretary of Labor in accordance with such appropriate regulations as he may establish and during such period as the President may determine that it is in the national interest to provide to such areas preference in the award of Government contracts:

Provided, that nothing in this section shall prevent the rejection of a bid or offered price which is excessive; or

(d) To reject any bid or offer for materials of foreign origin if such re-

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jection is necessary to protect essential national-security interests after receiving advice with respect thereto from the President or from any officer of the Government designated by the President to furnish such advice.

SEC. 4. The head of each executive agency shall issue such regulations as may be necessary to insure that procurement practices under his jurisdiction conform to the provisions of this order.

SEC. 5. This order shall apply only to contracts entered into after the date hereof. In any case in which the head of an executive agency proposing to purchase domestic materials determines that a greater differential than that provided in this order between the cost of such materials of domestic origin and materials of foreign origin is not unreasonable or that the purchase of materials of domestic origin is not inconsistent with the public interest, this order shall not apply. A written report of the facts of each case in which such a determination is made shall be submitted to the President through the Director of the Bureau of the Budget by the official making the determination within 30 days thereafter.

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
December 17, 1954.

[F. R. Doc. 54-10122; Filed, Dec. 17, 1954; 12:50 p. m.]

EXECUTIVE ORDER 10583

AMENDMENT OF EXECUTIVE ORDER NO. 10289,[1] RELATING TO THE PERFORMANCE OF CERTAIN FUNCTIONS AFFECTING THE DEPARTMENT OF THE TREASURY

By virtue of the authority vested in me by section 301 of title 3 of the United States Code, and as President of the United States, it is ordered that Executive Order No. 10289 of September 17, 1951 (16 F. R. 9499), entitled "Providing for the Performance of Certain Functions of the President by the Secretary of the Treasury" be, and it is hereby, amended as follows:

1. Paragraph 1 is amended by adding at the end thereof the following subparagraph (i):

"(i) The authority which is now vested in the President by section 2564 (b) of the Internal Revenue Code (26 U. S. C. 2564 (b)), and which on and after January 1, 1955, will be vested in the President by section 4735 (b) of the Internal Revenue Code of 1954, to issue, in accordance with the provisions of the said section 2564 (b) or 4735 (b), as the case may be, orders providing for the registration and the imposition of a special tax upon all persons in the Canal Zone who produce, import, compound, deal in, dispense, sell, distribute, or give away narcotic drugs."

2. Paragraph 3 is amended by designating the present language therein as subparagraph (a), and by adding thereto the following subparagraph (b):

"(b) The Postmaster General is hereby designated and empowered to exercise without the approval, ratification, or other action of the President the authority vested in the President by section 504 (b) of title 18 of the United States Code to approve regulations issued by the Secretary of the Treasury under the authority of the said section 504 (b) (relating to the printing, publishing, or importation, or the making or importation of the necessary plates for such printing or publishing, of postage stamps for philatelic purposes), and to approve any amendment or repeal of any of such regulations by the Secretary of the Treasury."

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
December 18, 1954.

[F. R. Doc. 54-10137; Filed, Dec. 20, 1954; 10:15 a. m.]

[1] 16 F. R. 9499; 3 CFR, 1951 Supp., p. 469.

EXECUTIVE ORDER 10584

PRESCRIBING RULES AND REGULATIONS RELATING TO THE ADMINISTRATION OF THE WATERSHED PROTECTION AND FLOOD PREVENTION ACT

By virtue of the authority vested in me by the Watershed Protection and Flood Prevention Act, and as President of the United States, I hereby prescribe the following rules and regulations relating to the administration of the said Act:

SECTION 1. *Scope of order.* This order shall apply (a) to the planning, construction, operation, and maintenance of all works of improvement under the authority of the Watershed Protection and Flood Prevention Act (Public Law 566, approved August 4, 1954; 68 Stat. 666), hereinafter referred to as the Act, and (b) to other programs and projects of the Department of Agriculture, and to programs and projects of the Department of the Interior and of the Department of the Army, to the extent that such programs or projects affect, or are affected significantly by, works of improvement provided for in the Act.

SEC. 2. *Department of Agriculture.* The Secretary of Agriculture shall have the following-described responsibilities with respect to works of improvement under the Act:

(a) Approval or disapproval of applications for Federal assistance in preparing plans for works of improvement, and the assignment of priorities for the provision of such assistance.

(b) Notifying the following, severally, in writing of all approvals or disapprovals of applications for planning assistance: the sponsoring organization, the State Governor or Governors concerned, the Secretary of the Interior, the Secretary of the Army, and other Federal agencies concerned.

(c) Notifying in writing the Secretary of the Interior and the Secretary of the Army and other Federal agencies concerned of his decision to initiate any survey or field investigation involving water-resource development work, and furnishing the Federal agencies concerned with appropriate information regarding the scope, nature, status, and results of such survey or investigation.

(d) Submitting plans for works of improvement to the State Governor or Governors concerned and to the Federal agencies concerned for review and comment, when the Secretary and the interested local organization have agreed on such plans; and, when and as required by the Act, submitting such plans to the Secretary of the Interior and the Secretary of the Army for their review and comment prior to transmission of the plans to the Congress through the President.

(e) Establishing criteria for the formulation and justification of plans for works of improvement and criteria for the sharing of the cost of both structural and land treatment measures which conform with policies established by or at the direction of the President for watershed protection, flood control, irrigation, drainage, water supply, and related water-resource development purposes.

(f) Establishing engineering and economic standards and objectives, including standards as to degrees of flood protection, for works of improvement planned and carried out under the authority of the Act.

(g) Determination and definition of (1) those land-treatment measures and structural improvements for flood prevention and measures for the agricultural phases of conservation, development, use, and disposal of water which are eligible for Federal assistance, and (2) the nature and extent of such assistance and the conditions under which such assistance shall be rendered.

(h) Planning and installing works of improvement on public lands under his jurisdiction, and arranging for the participation of other Federal agencies in the planning and installation of works of improvement on public lands under their jurisdiction.

(i) Consulting with the Tennessee Valley Authority with respect to any survey or field investigation involving water-resource development work in the Tennessee Valley, and continuing such consultation throughout all phases of project development.

(j) Holding public hearings at suitable times and places when he determines that such action will further the purposes of the Act.

SEC. 3. *Department of the Interior.* (a) The Secretary of the Interior shall notify the Secretary of Agriculture and the Secretary of the Army and other Federal agencies concerned in writing of his decision to initiate any survey or field investigation involving water-resource development work, and shall furnish the

Federal agencies concerned with appropriate information regarding the scope, nature, status, and results of such survey or investigation.

(b) The Secretary of the Interior shall cooperate with the Secretary of Agriculture in assessing the need for works of improvement under the Act on Federal lands under the jurisdiction of the Department of the Interior. Recommendations of the Secretary of the Interior for necessary work on such lands shall be submitted as an integral part of the plans of the Department of Agriculture for works of improvement. Arrangements for construction, operation, and maintenance of works of improvement on such lands shall be mutually satisfactory to the Secretary of Agriculture and the Secretary of the Interior.

SEC. 4. *Department of the Army.* The Secretary of the Army shall notify the Secretary of Agriculture and the Secretary of the Interior and other Federal agencies concerned in writing of his decision to initiate any survey or field investigation involving water-resource development work, and shall furnish the Federal agencies concerned with appropriate information regarding the scope, nature, status, and results of such survey or investigation.

SEC. 5. *Relationship to comprehensive development.* (a) The Secretary of Agriculture shall submit plans for installation of works of improvement under the Act to the Congress through the President only if the Secretary is satisfied that such works constitute needed and harmonious elements in the comprehensive development of the river subbasin or river basin involved.

(b) Federal agencies having responsibilities for water resource developments shall, in the design and justification of works of improvement, take cognizance of all upstream and downstream works in place and in operation, or soon to be brought into operation. The guiding principle shall be to adjust the nature, capacity, and operating characteristics of works of improvement in a manner that (1) reflects the respective contributions of upstream and downstream works to flood protection and to the conservation, development, use, and disposal of water, and (2) provides the best use and control of water resources at minimum cost. Whenever approximately equivalent benefits can be obtained from alternative works of improvement, or combinations of improvements, with approximately the same cost, the alternative or combination least costly to the Federal Government shall be given preferential consideration. In case benefits are produced jointly by more than one work of improvement, or in case complementary relationships exist between the projects and plans of the several agencies, the benefits claimed in justification of a system of improvements shall not include any duplication or compounding of benefits.

SEC. 6. *Basic data.* In the utilization of existing basic physical and economic data, and in the acquisition of additional basic data required for planning, design, construction, operation and evaluation of works of improvement authorized under the Act, the Department of Agriculture shall be assisted by the principal basic-data collection agencies, including the Geological Survey in the Department of the Interior and the Weather Bureau in the Department of Commerce. The basic-data collection agencies shall assist and cooperate with the Department of Agriculture with respect to the following:

(a) Provision of pertinent information in the preliminary planning of works of improvement.

(b) Collaboration in planning programs of hydrologic-data collection in project areas, in the selection of station sites and installation of equipment for collecting hydrologic data, and in the collection of such data.

(c) Collaboration in the analysis and interpretation of hydrologic data collected specifically for projects initiated under the Act, and of relevant data which may contribute to an analysis of the effects of such projects.

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
December 18, 1954.

[F. R. Doc. 54-10138; Filed, Dec. 20, 1954; 10:15 a. m.]

RULES AND REGULATIONS

TITLE 6—AGRICULTURAL CREDIT

Chapter V—Agricultural Marketing Service, Department of Agriculture

Subchapter B—Export and Domestic Consumption Programs

PART 518—FRUITS AND BERRIES, DRIED AND PROCESSED

SUBPART—RAISIN EXPORT PAYMENT PROGRAM VMX 95b

Sec.
518.480 General statement.
518.481 Eligible countries.
518.482 Rate of payment and determination of net weight.
518.483 Eligibility for payment.
518.484 Claims for payment supported by evidence of compliance.
518.485 Records and accounts.
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518.487 Persons not eligible for payments.
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518.489 Joint payee or assignment.
518.490 Good faith.
518.491 Definitions.

AUTHORITY: §§ 518.480 to 518.491 issued under sec. 32, 49 Stat. 774, as amended; 7 U. S. C. 612c.

§ 518.480 *General statement.* (a) In order to encourage the exportation of raisins produced in California, other than raisins of the 1952 and 1953 surplus pools administered by the Raisin Administrative Committee under Marketing Agreement No. 109 and Marketing Order No. 89, the Secretary of Agriculture, pursuant to the authority conferred by section 32 of Public Law 320, 74th Congress, as amended, offers to make payments to United States exporters of such raisins, subject to the terms and conditions set forth in this subpart.

(b) Information pertaining to this subpart and forms prescribed for use under this subpart may be obtained from either of the following:

Werner Allmendinger, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Rm. 226, Old Mint Building, 5th and Mission Streets, San Francisco 3, Calif.

E. M. Graham, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Fourteenth Street and Independence Avenue SW., Washington 25, D. C.

§ 518.481 *Eligible countries.* Eligible countries include all foreign countries and their territories or dependent areas except: (a) Australia, New Zealand, Cyprus, Greece (including Crete), Iran, Turkey, Spain, and the Union of South Africa; (b) those countries and areas listed in Subgroup A of Group R of the Comprehensive Export Schedule issued by the Bureau of Foreign Commerce, United States Department of Commerce; and (c) those countries, including dependencies of foreign countries, located in North, South and Central America or on the islands adjacent thereto. The islands on which such ineligible countries or dependencies are located include but are not necessarily limited to Greenland, the Bahamas, Bermuda, and the islands of the Caribbean Sea.

§ 518.482 *Rate of payment and determination of net weight.* The rate of payment applicable to raisins exported under this subpart shall be 1.5 cents per pound, net processed packed weight. The net weight of any lot exported shall be: (a) The net weight invoiced or billed to the buyer; or (b) the net weight shown in the body of the inspection certificate issued by the U. S. D. A. covering such lot, whichever is less.

§ 518.483 *Eligibility for payment—(a) Sales contract and application for program participation.* (1) No payment will be made under this subpart on any raisins unless they are exported to an eligible country pursuant to a sales contract (as defined in § 518.491 (i)) which the exporter has entered into on or after, but not prior to, the effective date of this subpart. To be eligible for payment, the exporter shall file, on a prescribed form, an application to participate in this program and shall obtain approval thereof by the Administrator.

(2) Exporters whose billing offices are located in California, Nevada, Utah, Arizona, Idaho, Oregon, or Washington shall file their applications with Werner

Allmendinger, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Rm. 226—Old Mint Building, 5th & Mission Streets, San Francisco 3, California. Exporters whose billing offices are located in any other State shall file their applications with E. M. Graham, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C. The filing of applications should not be confused with the filing of claims (§ 518.484).

(3) Applications must be filed in triplicate with respect to each sales contract, as promptly as possible after, but not prior to, the date of sale but in no event later than the date of export (see § 518.491 (g)) nor later than 12 o'clock midnight, September 13, 1955, unless, upon written request by the exporter stating substantial reasons therefor, such time is extended as provided in paragraph (g) of this section.

(4) The Administrator will approve, in the order in which they are received or on such other basis as he may determine to be equitable, applications which meet the requirements of this subpart. The Administrator will furnish to the exporter prompt written approval or disapproval, or, in the event the application fails to conform with the applicable terms and conditions of this subpart, will so notify the exporter.

(5) If the exporter finds that an application previously approved by the Administrator should be revised because of modification in the applicable sales contract or for any other reason, he shall notify promptly the person with whom he filed the application of any such requested revision of the application. The Administrator will notify the exporter promptly of his approval or disapproval of the revision of the application.

(b) *Minimum grade.* Raisins exported under this subpart, except Zante Currant raisins and Cluster (non-layer pack) and Cluster (layer pack) Muscat raisins, shall meet "U. S. Grade C" or better grade, as defined in "United States Standards for Grades of Processed Raisins," effective May 26, 1952. Golden Bleached and Sulfur Bleached Thompson Seedless raisins shall meet the color requirements for "fairly well-bleached color (or Extra Choice color)" or better color, as described in said United States Standards for Processed Raisins. Zante Currant raisins shall meet "U. S. Grade B" or better grade, as defined in "United States Standards for Grades of Dried Currants," effective October 20, 1952. Cluster (non-layer pack) Muscat raisins and Cluster (layer pack) Muscat raisins shall meet "U. S. Grade C" or better grade for Type II, Muscat raisins, as defined in said United States Standards for Processed Raisins, except as follows: (1) The moisture content of the raisins, exclusive of stems and branches, shall not exceed 19 percent, by weight; (2) the raisins shall be fairly free from shattered (or loose) berries; (3) the raisins shall be uniformly cured; (4) 30 percent or more, by weight, of the raisins shall be 3 Crown size or larger; and (5) the requirements with respect to pieces of stems, cap stems and seeds shall not apply. Cluster (non-layer pack) applies to Muscat raisins packed in containers having a net weight of less than five pounds, and Cluster (layer pack) applies to Muscat raisins packed in containers having a net weight of five pounds or more.

(c) *Inspection.* The exporter shall furnish a certificate of inspection for each lot of raisins exported pursuant to this subpart. Such certificate shall be issued by the Processed Products Standardization and Inspection Branch, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture. The period from date of inspection to date of exportation, both dates inclusive, shall not exceed 21 calendar days: *Provided*, That, upon written request of the exporter stating substantial reasons therefor, the Administrator may, if he deems it desirable, grant an extension of time for such period. The cost of inspection and issuance of the certificates shall be borne by the exporter.

(d) *Packaging.* Raisins exported under this subpart shall be suitably packed for export in a manner which shall reasonably assure arrival in good condition in the country of destination. Export containers shall bear a lot number, code or other markings by which the applicable requirements of § 518.484 (b) may be fulfilled.

(e) *Minimum quantity.* An application will not be approved nor will payment under this subpart be made if the total quantity covered by such application is less than two thousand (2,000) pounds net weight of raisins.

(f) *Re-entry, diversion, re-exportation, or loss.* If any quantity of raisins exported under this subpart re-enters the continental United States, or is diverted or re-exported to U. S. territories or possessions or is diverted or re-exported to other than eligible countries, as described in § 518.481, payment will be withheld or, if payment has already been made by the United States Government, the exporter shall refund the amount received on such quantity: *Provided*, That, if the raisins with respect to which payment may be withheld or refund required under this section are damaged after exportation, the payment withheld or refund required shall be an amount determined by the Secretary, which, however, shall not exceed the amount realized or which might reasonably be realized by the exporter for the damaged raisins over the price specified in the sales contract covered by the approved application. In case of complete loss or destruction of the raisins or any part thereof after exportation, without fault or negligence of the exporter, no refund of the payment shall be required for the quantity so lost or destroyed. The exporter shall notify the Administrator immediately upon becoming cognizant of any such re-entry, diversion or re-exportation of, or damage to, the raisins which have been exported under this subpart and shall furnish information as to any claim he may have in connection with such event.

(g) *Final dates.* (1) The final time and date for entering into a sales contract shall be 12 o'clock midnight, August 31, 1955;

(2) The final time and date for filing an application shall be 12 o'clock midnight, September 13, 1955;

(3) The final time and date of export shall be 12 o'clock midnight, September 15, 1955;

(4) The final time and date for filing claims under this subpart shall be 12 o'clock midnight October 14, 1955;

Provided, That, upon written request of the exporter stating substantial reasons therefor, the Administrator may, if he deems it desirable, grant an extension of time for the filing of applications, the accomplishment of exportation or the filing of claims.

§ 518.484 *Claims for payment supported by evidence of compliance.* (a) If the exporter's billing office is located in California, Nevada, Utah, Arizona, Idaho, Oregon or Washington, he shall file claim for payment under this subpart with the Director, CSS Commodity Office, Commodity Stabilization Service, United States Department of Agriculture, 515 Southwest Tenth Avenue, Portland 5, Oregon. If the exporter's billing office is located in any other state, he shall file claim for payment under this subpart with the Director, CSS Commodity Office, Commodity Stabilization Service, United States Department of Agriculture, 1010 Broadway, Cincinnati 2, Ohio. Such claim shall be filed so that it will be received by the CSS Commodity Office concerned not later than the final date specified in § 518.483 (g) (4). Each claim for payment shall be filed in an original and two copies on Form CSS–21 "Public Voucher-Commodity Programs" and shall show the number assigned by the United States Department of Agriculture to the related approved application and shall be supported by:

(1) One signed or certified copy of the sales contract.

(2) One certified copy of the sales invoice to the buyer showing the price, f. a. s. U. S. port, to be paid by the buyer. If the price basis of the sale is other than f. a. s. U. S. port, the equivalent f. a. s. U. S. port price shall be computed by the exporter on the invoice showing each cost item (such as ocean freight and marine insurance). In the case of an invoice to a party named by the buyer to be billed, the exporter shall furnish a certified copy of the directions by the buyer to bill such party.

(3) One copy of the on-board export bill of lading signed by an agent of the exporting carrier, except that, where loss, destruction or damage occurs subsequent to loading on board exporting carrier but prior to issuance of on-board bill of lading, one copy of a loading tally sheet or similar document may be submitted in lieu of such bill of lading.

(4) The original or a signed copy of the inspection certificate required in § 518.483 (c).

(5) Such other documents as may be required by the Administrator, evidencing purchase, sale or exportation of the commodity on which payment is claimed under this subpart.

(b) The export bill of lading must show the quantity and description of the commodity, including the lot, code or brand markings appearing on containers, or other reference sufficient to identify the commodity loaded on board the exporting carrier as that commodity covered by the inspection certificate, the date and place of loading, the destination of the commodity, and the name and address of both the exporter and the consignee. If the shipper or consignor named in such bill of lading is other than the exporter (seller) named in the application, the exporter shall furnish with the copy of such bill of lading, a waiver by such shipper or consignor, in favor of such exporter, of any right to claim payment under this subpart for the commodity covered by such bill of lading. If the bill of lading shows the name of a consignee different from that appearing as the buyer on the sales contract under which the bill of lading is made, the exporter shall accompany his claim on the exportation covered by such bill of lading with a certification that the shipment under that bill of lading is to the buyer named in the sales contract and is made pursuant to that contract.

(c) The foregoing required evidence will not be accepted as conclusive if the Administrator has a reason to believe that exportation of all or any quantity of the commodity was not actually accomplished or that there has not been compliance with other requirements of this subpart, and in any such instance the Administrator may require such additional evidence as he deems reasonable.

§ 518.485 *Records and accounts.* The exporter shall maintain adequate records showing purchases, sales and deliveries of raisins exported or to be exported in connection with this program. Such records, accounts, and other documents relating to any transaction in connection with this program shall be preserved until at least October 14, 1957, and shall be available during regular business hours for inspection and audit by authorized employees of the United States Department of Agriculture.

§ 518.486 *Amendment and termination.* The Administrator may amend or terminate this subpart at any time, but such amendment or termination shall not apply to any sales contract for which an application has been approved under this subpart prior to the effective time of the amendment or termination. Such amendment or termination shall become effective on such date as the Administrator may specify in the amendment or termination, but shall not be earlier than the time of filing of the termination or amendment with the Federal Register Division.

§ 518.487 *Persons not eligible for payments.* No member of, or delegate to, Congress or resident commissioner shall be admitted to any share or part of any payment made under this subpart or to any benefit that may arise therefrom, but this provision shall not be construed to extend to a payment made to a corporation for its general benefit or to any such person acting in his capacity as a producer of the raisins exported.

§ 518.488 *Set-off.* The Secretary may set off, against any amount owed to any exporter under this subpart any amount owed by such exporter to Commodity Credit Corporation, the United States Department of Agriculture, or any other agency of the United States. Set-off as provided herein shall not deprive the exporter of the right to contest the justness of the indebtedness involved, either by administrative appeal or by legal action.

§ 518.489 *Joint payee or assignment.* An exporter may name a joint payee on the claim for payment or may assign the proceeds of any claim for payment as provided in this subpart. The exporter may assign, in accordance with the provisions of the Assignment of Claims Act of 1940, Public Law No. 811, 76th Congress, as amended (31 U. S. C. 203, 41 U. S. C. 15), the proceeds of any claim to a bank, trust company, Federal lending agency, or other recognized financing institution: *Provided*, That such assignment shall be recognized only if and when the assignee thereof files written notice of the assignment with the appropriate person specified in § 518.483 (a) (2), together with a signed copy of the instrument of assignment, in accordance with the instructions on Form CSS–66, "Notice of Assignment," which form must be used in giving notice of assignment to the Administrator. The "Instrument of Assignment" may be executed on Form CSS–347 or the assignee may use his own form of assignment. The CSS forms may be obtained from the Administrator or the CSS Commodity Offices referred to in § 518.484.

§ 518.490 *Good faith.* Whereas it is the intent of this subpart to encourage the exportation of raisins produced in California and processed and packed in the United States by making such raisins available for exportation to eligible countries at prices below domestic market prices; now, therefore, if the Secretary determines that any exporter has not acted in good faith in carrying out the purpose of this subpart, has not passed on to the person purchasing the raisins the incentive payment offered in this subpart, or otherwise has failed to discharge fully any obligation assumed by him under this subpart, such exporter may be denied the right to continue participating in this subpart, or the right to receive payment under its provisions in connection with any exportations previously made under this subpart, or both.

§ 518.491 *Definitions.* As used in § 518.480 through § 518.491, the following terms have the following meanings:

(a) "Raisins" means raisins: (1) Produced from raisin variety grapes grown in California; (2) processed and packed in the Continental United States; and (3) which meet the requirements of § 518.483 (b); *Provided*, That such raisins shall not include 1952 or 1953 surplus pool raisins purchased from the Raisin Administrative Committee pursuant to an approved "Raisin Administrative Committee Application for Purchase of Surplus Raisins for Export" or which are an equivalent quantity of Natural Thompson Seedless, Muscat, or Sultana raisins substituted for such raisins so purchased, and shall not include raisins which are sold by the Raisin Administrative Committee from 1952 or 1953 surplus pool tonnage directly for export.

(b) "Raisin variety grapes" means grapes of the Thompson Seedless (or Sultanina), Muscat of Alexandria (or Muscat), Muscatel Gordo Blanco (or Muscat), Black Corinth (or Zante Currant), White Corinth (or Zante Currant), and Seedless Sultana (or Sultana), varieties.

(c) "Secretary" means the Secretary of the United States Department of Agriculture or any person authorized to perform any act for the Secretary.

(d) "Administrator" means the Administrator, Agricultural Marketing Service, United States Department of Agriculture, or any person to whom the Administrator has delegated authority to perform as Representative of the Secretary of Agriculture functions vested in the Administrator in this subpart.

(e) "Exporter" means any individual, corporation, partnership, association, or other business entity, which is located and maintains a business organization within the continental United States and exports raisins, or the Raisin Administrative Committee which administers Marketing Agreement No. 109 and Order No. 89 (7 CFR, 1953 Rev., Part 989) regulating the handling of raisins produced from raisin variety grapes grown in California.

(f) "Exported": Raisins shall be deemed to have been exported when loaded on board an ocean carrier for shipment from the continental United States.

(g) "Date of export" means the date of loading on board the ocean carrier for exportation from the continental United States as shown on the document submitted as evidence of such loading.

(h) "Application" means Form FV-361 (9/19/52 or 10/19/54), "Application for Program Participation."

(i) "Sales contract" means a contract under which the seller is clearly obligated to sell and the buyer is clearly obligated to buy a definite quantity of raisins at a definite price but may, however, be conditioned upon contingencies or events over which the exporter has no control such as the allocation of the necessary dollars by the foreign country, the releasing by the Raisin Administrative Committee of 1954 surplus pool raisins for export, or the making of an export payment by the Secretary in connection with the particular sales contract pursuant to this subpart. A sales contract shall consist of a written instrument signed by the buyer and the seller or shall consist of a written offer and acceptance evidenced by an exchange of telegrams, cablegrams, or letters. The term sales contract as defined in this paragraph includes a contract between an exporter and his foreign branch or any affiliate or associate located in an eligible country.

(j) "Date of sale" means the date on which both buyer and seller signed a firm

sales contract, or the date of written acceptance of either a written offer or written counteroffer to buy or sell by which a firm sales contract is effected.

(k) "Price f. a. s." means the price to the buyer free-alongside-ship United States port and does not include the payment to be made by the Secretary.

(l) "Filed": Applications, claims and related documents are deemed to be filed on the date postmarked by a United States Post Office if mailed, or when received by the appropriate United States Department of Agriculture office if otherwise delivered.

(m) "Certified" means a written, signed declaration, contained in or attached to any document, stating that the document is a true and correct copy of the original of such document.

(n) "12 o'clock midnight," as used in § 518.483 (g), means 12 o'clock midnight, standard time, at the applicable place at which the particular action should occur.

(o) "Sales invoice to buyer" means an invoice to the buyer named in the sales contract or an invoice to another party named by such buyer as the party to be billed for raisins covered by the sales contract.

NOTE: The record keeping and reporting requirements contained herein have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Effective date. This offer shall be effective on December 21, 1954.

Dated this 16th day of December 1954.

[SEAL] FLOYD F. HEDLUND,
Representative of the Secretary of Agriculture.

[F. R. Doc. 54-10083; Filed, Dec. 20, 1954; 8:53 a. m.]

TITLE 7—AGRICULTURE

Chapter III—Agricultural Research Service, Department of Agriculture

[Interpretation 18; Revision 1]

PART 362—REGULATIONS FOR THE ENFORCEMENT OF THE FEDERAL INSECTICIDE, FUNGICIDE, AND RODENTICIDE ACT

INTERPRETATION WITH RESPECT TO WARNING, CAUTION AND ANTIDOTE STATEMENTS REQUIRED TO APPEAR ON LABELS OF ECONOMIC POISONS

Pursuant to the authority vested in me by § 362.3 of the regulations (7 CFR 362.3) under the Federal Insecticide, Fungicide, and Rodenticide Act (7 U. S. C. 135–135k), Interpretation No. 18 with respect to warning, caution, and antidote statements required to appear on labels of economic poisons (7 CFR 362.116) is hereby amended and supplemented by the issuance of Interpretation No. 18, Revision 1, to read as follows:

§ 362.116 *Interpretation with respect to warning, caution, and antidote statements required to appear on labels of economic poisons*—(a) *Requirements of the act.* Section 2. u. (2) (d) of the act provides that an economic poison is misbranded if its label does not contain a warning or caution statement which may be necessary and if complied with adequate to prevent injury to living man and other vertebrate animals, vegetation, and useful invertebrate animals. Section 3. a. (3) of the act requires that any economic poison which contains any substance or substances in quantities highly toxic to man must bear on the label the skull and crossbones, the word "Poison" (in red) on a contrasting background, and an antidote statement.

(b) *Categories of toxicity and general provisions as to statements required for economic poisons therein.* (1) Four general categories of toxicity of economic poisons are recognized. The first is the highly toxic class as defined in § 362.8. The second is the class immediately below the highly toxic, and in general includes formulations having toxicities down to one-tenth those of the highly toxic class. The third group embraces products having hazards below class two but to a degree which still requires some cautions and usually includes toxicities down to about one-tenth of those in class two. The fourth class is comparatively free from danger.

(2) Products in the categories specified in subparagraph (1) of this paragraph are to be distinguished from each other by the following general scheme:

(i) Highly toxic products are required by the act to be labeled with the skull and crossbones, the word "Poison" (in red) on a contrasting background, and an antidote statement. The antidote statement should include the sentence "Call A Physician Immediately." In addition, the label should carry the word "Warning" and instructions for handling to reduce chances of injury in use.

(ii) Labels of products which fall in the second category should carry warning statements equivalent to those required for highly toxic materials, but they do not need to bear the skull and crossbones, the word "Poison," or an antidote statement.

(iii) Labels of products in the third category should carry the word "Caution" and statements indicating the means of avoiding the principal hazards of use. Use of the skull and crossbones, the word "Poison," and antidote statements are not necessary for these products.

(iv) No warning, caution, or antidote statements are required for the few formulations in the fourth category, although unqualified claims for safety are usually not justified.

(c) *Miscellaneous provisions.* (1) Warning or caution statements on the labels of economic poisons must give concise and easily understood warnings as to the hazards associated with the use of the products, together with instructions to be followed to insure adequate protection. Precautionary labeling should warn against the hazards associated with the formulation both as it is sold and as used by the customer, whether it is suitable for use directly or must be diluted or mixed prior to application.

(2) The precautionary labeling detailed in this interpretation for specific economic poisons is directed primarily toward the avoidance of hazard to the persons handling or applying the economic poison and to persons or animals exposed to the economic poison incident to its handling or use. The manufacturer should recognize the possibility of injury of other types associated with the use of his product and the label should bear suitable directions for the avoidance of such injury. When an economic poison is intended for use on or around feed or food products and contamination with harmful residues may occur, the label should bear specific statements adequate to avoid danger of contaminating such feed or foodstuffs. For some formulations, the residues of which may be readily removed by washing or mechanical means without damage to the product, a statement such as "Remove residues at harvest by ____ (stating an effective method of removal) ____" will be acceptable. For formulations whose residues cannot be readily removed or where the product would be damaged in the process of removal, but where the residues disappear progressively, directions such as "Do not apply within ____ (stating a period adequate to reduce residues to a safe level) ____ days of harvest" will be acceptable. For still other formulations whose residues cannot readily be removed without damage to the product and do not disappear within a reasonable time, a statement such as "Do not apply after edible parts begin to form" may be required. When directions for use of sprays in food handling establishments are otherwise acceptable, a statement such as "Cover or remove all exposed food, utensils, and containers before spraying" may be required. In order to avoid contamination of milk or meat, certain economic poisons must bear directions against application in dairy barns, to dairy animals, or animals being finished for slaughter, or to forage crops to be used as feed for dairy animals or animals being finished for slaughter. Products which would be used in a manner likely to destroy beneficial insects should bear appropriate directions, such as proper timing of application to avoid destruction of pollinating insects. Products which might be injuries to fish and wildlife after extensive use or indiscriminate disposal of excess material or spray-tank washings, and which bear directions for widespread use in areas where contamination of waterways would be possible, should bear directions such as "To protect fish and wildlife, do not contaminate streams, lakes, or ponds with this material." Herbicides which might be used in a manner likely to cause injury to beneficial vegetation should carry directions warning against the danger of drifting of dusts, spray mist, or vapors from volatile ingredients.

(3) In general, the presence on the label of either the skull and crossbones and the word "Poison" or the warning "May Be Fatal If Swallowed" will substitute for such precautionary statements as "Avoid contamination of food" and "Keep away from children and domestic animals."

(4) Fire hazard cautions shall be based on the flash point of the particular products. The manufacturer of a formulation should determine the flash point of his product and label it accordingly. For formulations having flash points at or below 20° F. by the Tagliabue

Open-Cup Method, a statement such as "Danger—Extremely flammable! Keep away from fire, sparks, and heated surfaces" should be used. For flash points above 20° F. but not over 80° F., "Warning—Flammable! Keep away from heat and open flame" would be appropriate. For flash points above 80° F. but not over 150° F., the caution "Do not use or store near heat or open flame" would be acceptable.

(5) Antidote statements must contain emergency first aid instructions suitable for use by a layman. In most cases they should require only materials which are readily available.

(6) It is permissible and usually advisable for a manufacturer of an economic poison to submit facsimiles of proposed labeling to the Pesticide Regulation Section, Plant Pest Control Branch, Agricultural Research Service, United States Department of Agriculture, Washington 25, D. C., for review and tentative acceptance before he invests in new printed labels.

(d) *Acceptable warning, caution and antidote statements for economic poisons containing specified ingredients.* The following subparagraphs set forth or indicate acceptable warning, caution and antidote statements for economic poisons containing the ingredients specified therein. The exact wording used in the suggested statements is not obligatory, although the substance of all such statements will be required, unless under special conditions of handling or use it is unnecessary. The manufacturer is obligated to use any added warning, caution or antidote statements which any special characteristics or uses of his formulation indicate to be necessary. Where the notation (H. P.) for "household package" appears following a precautionary statement, it indicates that the warning will be required only on packages commonly stored or used in the household where there is greater danger of accidents involving children or pets. The insignia

☠ Poison ☠

always refers to the skull and crossbones and the word "Poison" (in red) on a contrasting background. The fire hazard caution prescribed in this paragraph in each case is based on the flash point of the chemical named.

(1) *Acetone—50% and above.*

Danger: Extremely Flammable! Keep away from fire, sparks, and heated surfaces. Avoid prolonged breathing of vapor. Avoid prolonged or repeated contact with skin.

Note: For formulations containing low percentages the signal word and flammability warning may be reduced on the basis of actual flash point determinations.

(2) *Acrylonitrile.*

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Antidote: Carry victim to fresh air. Have him lie down. Remove contaminated clothing, but keep victim warm. Start treatment immediately. Call a Physician Immediately!

If inhaled. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds; repeat five times at about 15 second intervals. Give artificial respiration if breathing has stopped.

If swallowed. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds. If victim is conscious, or when consciousness returns, give one tablespoonful of salt in a glass of warm water, and repeat until vomit fluid is clear. Repeat amyl nitrite five times at about 15 second intervals. Give artificial respiration if breathing has stopped.

Never Give Anything by Mouth to an Unconscious Person!

Warning: Poisonous Liquid and Vapor! Flammable! Do not breathe vapor. Do not get in eyes, on skin, or on clothing. Keep away from heat and open flame. Keep container closed.

Note: Directions for use should include instructions for appropriate respiratory protection.

(3) *Aldrin (95% hexachloro hexahydro-endo, exo-dimethano naphthalene)*—(i) *60% and above.*

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Antidotes: If swallowed. Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep quiet. Call A Physician Immediately!

If on skin. Wash immediately with soap and water.

Warning: Poisonous If Swallowed, Inhaled or Absorbed Through Skin! In case of contact, immediately remove contaminated clothing and flush skin or eyes with plenty of water; for eyes, get medical attention. Wash thoroughly with soap and water after handling and before eating or smoking; wear clean clothing. During commercial or prolonged exposure in spray-mixing and loading operations, wear clean synthetic rubber gloves and a mask or respirator of a type passed by the U. S. Department of Agriculture for aldrin protection. Do not apply or allow to drift to areas occupied by unprotected humans or beneficial animals. To protect fish and wildlife, do not contaminate streams, lakes or ponds with this material.

(ii) *10% to below 60%.*

Warning: Hazardous If Swallowed, Inhaled, or Absorbed Through Skin! In case of contact, immediately remove contaminated clothing and flush skin or eyes with plenty of water; for eyes, get medical attention. Wash thoroughly with soap and water after handling and before eating or smoking; wear clean clothing. During commercial or prolonged exposure in spray-mixing and loading operations, wear clean synthetic rubber gloves and a mask or respirator of a type passed by the U. S. Department of Agriculture for aldrin protection. Do not apply or allow to drift to areas occupied by unprotected humans or beneficial animals. To protect fish and wildlife, do not contaminate streams, lakes or ponds with this material.

(iii) *Below 10%.*

Caution: Avoid prolonged or repeated inhalation or contact with skin. Avoid contamination of feed and foodstuffs. In case of contact with skin or eyes, flush with plenty of water; for eyes, get medical attention. Wash with soap and water after handling and before eating or smoking; wear clean clothing. Do not apply or allow to drift to areas occupied by unprotected humans or beneficial animals. To protect fish and wildlife, do not contaminate streams, lakes, or ponds with this material.

(iv) *Fertilizer formulations below 2%.*

Caution: Avoid prolonged or repeated inhalation of dust or contact with skin. Wash thoroughly after handling. To protect fish and wildlife, do not use where runoff will contaminate streams, lakes, or ponds.

(4) *Alpha naphthyl thiourea*—(i) *30% and above.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep quiet. Call a Physician Immediately!

Warning: Keep dogs, cats, hogs and chickens away from baited areas.

(ii) *Below 30%.*

Warning: Keep away from children and domestic animals. Avoid contamination of feed and foodstuffs.

(5) *Ammonium sulfamate.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(6) *Antimony potassium tartrate (tartar emetic)*—(i) *10% and above.*

Warning: May be fatal if swallowed. Do not breathe dust. Wash thoroughly after handling.

(ii) *Below 10%.*

Caution: Keep away from children and domestic animals. Avoid contamination of feed and foodstuffs.

(7) *Arsenic compounds.* Inorganic insoluble including calcium arsenate, lead arsenate, magnesium arsenate, paris green, london purple. Inorganic soluble including arsenous oxide, sodium arsenate, sodium arsenite.

(i) Inorganic insoluble 50% and above. Inorganic soluble 5% and above.

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Then give 2 tablespoonfuls of Epsom Salt or Milk of Magnesia in water, and plenty of milk and water. Have victim lie down and keep quiet. Call a Physician Immediately!

Warning: Avoid contact with skin, eyes, or clothing. Wash thoroughly after using. Avoid breathing dust or spray mist.

(ii) Inorganic insoluble 10% to 50%. Inorganic soluble 1% to 5%.

Warning: May be Fatal if Swallowed! Avoid contact with skin, eyes, or clothing. Wash thoroughly after using. Avoid breathing dust or spray mist.

(iii) Inorganic insoluble below 10%. Inorganic soluble below 1%.

Caution: Avoid prolonged breathing of dust or spray mist. Avoid contamination of feed and foodstuffs. Keep away from children and domestic animals.

(iv) Formulations for use as herbicides require an additional statement:

Warning: Keep livestock off treated areas.

(v) Formulations containing low percentages of arsenic intended solely for use as rodenticides or ant baits need not carry cautions against inhalation.

(8) *Azobenzene.*

Caution: Harmful if swallowed or inhaled! Avoid prolonged breathing of fumes or dust. Avoid contamination of feed and foodstuffs. Keep away from children and domestic animals.

(9) *Benzene—15% and above.*

Danger: Extremely Flammable! Keep away from fire, sparks, and heated surfaces. Avoid prolonged breathing of vapor. Avoid prolonged contact with skin.

Note: For formulations containing low percentages the signal word and flammability warning may be reduced on the basis of actual flash point determinations.

(10) *Benzene hexachloride (hexachlorocyclohexane, BHC)*—(i) *BHC and dry formulations 25% and above.*

Warning: Harmful If Swallowed! May be Absorbed Through Skin! May produce irritation of skin and eyes. Do not breathe dust or spray mist. Avoid contact with skin and eyes. Wash thoroughly after handling. Avoid contamination of feed and foodstuffs.

(ii) *BHC, dry formulations below 25%.*

Caution: Avoid prolonged breathing of dust or spray mist. Avoid contact with skin and eyes. Wash thoroughly after handling. Avoid contamination of feed and foodstuffs.

(iii) *Solutions and emulsions of BHC 25% and above.*

Warning: Harmful If Swallowed! May be Absorbed Through Skin! May produce irritation of skin or eyes. Do not breathe spray mist. Avoid contact with skin or eyes. In case of contact, wash immediately with soap and water; for eyes, flush with water and get medical attention. Avoid contamination of feed and foodstuffs. Do not use on household pets or humans.

(iv) *Solutions and emulsions below 25%.*

Caution: May be absorbed through skin. Avoid inhalation and skin contact. In case of contact, wash immediately with soap and water. Avoid contamination of feed and foodstuffs. Do not use on household pets or humans.

(11) *Borax and boric acid—20% and above.*

Caution: Avoid contamination of feed and foodstuffs. Keep away from children and domestic animals.

(12) *Cadmium formulations, each to be considered on own merits*—(i) *If found "highly toxic" under the act.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Then give 2 tablespoonfuls of Epsom Salt or Milk of Magnesia in water and plenty of milk or water. Have victim lie down and keep warm. Call a Physician Immediately!

Warning: May Be Fatal If Swallowed! Do not get in eyes or on skin. Wash thoroughly after handling.

(ii) *If formulation is not "highly toxic" under the act.* Appropriate warnings must be used.

(13) *Calcium cyanamide—25% and above.*

Caution: Harmful if swallowed! Irritating dust.

(14) *Captan (n-trichloromethylmercapto-2-cyclohexenedicarboximide).*

Caution: Avoid contamination of feed and foodstuffs. Avoid inhalation of dust or spray mist. Avoid prolonged or repeated contact with skin.

(15) *Carbon disulfide*—(i) *90% and above.*

☠ Poison ☠

Antidote: If inhaled. Get victim into fresh air immediately and give artificial respiration if breathing has stopped. Call a Physician Immediately!

If swallowed. Give ½ cupful medicinal mineral oil. Give large quantities of warm water, and hot tea or coffee. Call a Physician Immediately!

Danger: Extremely Flammable! Keep away from fire, sparks or heated surfaces. Store in a cool place. Keep container closed. Do not breathe vapor. Do not get in eyes, on skin, or on clothing.

(ii) *10% to 90%.*

Danger: Extremely Flammable! May Be Fatal If Inhaled Or Swallowed! Keep away from fire, sparks or heated surfaces. Store in a cool place. Keep container closed. Do not breathe vapor or mist. Avoid prolonged or repeated contact with eyes, skin or clothing.

(iii) *Below 10%.*

Danger: Extremely Flammable! Harmful by swallowing, inhalation or skin contact. Keep away from fire, sparks or heated surfaces. Store in a cool place. Keep container closed.

(16) *Carbon tetrachloride—10% and above.*

Warning: Harmful Vapor! Harmful if swallowed. Do not breathe vapor. Avoid prolonged or repeated contact with skin.

(17) *Chlordane (octachloro-4,7-methano tetrahydroindane)*—(i) *For technical chlordane and wettable powders above 25%.*

Caution: Harmful if swallowed. Contact with skin causes toxic symptons. Avoid contamination of feed and foodstuffs. Avoid breathing spray mist.

(ii) *For emulsifiable and petroleum oil solutions for agricultural and industrial use.*

Caution: Harmful if swallowed. Contact with skin can cause toxic symptoms. Avoid breathing spray mist. In case of contact with skin, wash with soap and water. Avoid contamination of feed and foodstuffs.

(iii) *For emulsifiable and petroleum oil solutions and self-propelled wetting sprays for household use.*

Caution: Harmful if swallowed. Repeated or prolonged contact with skin can cause toxic symptoms. Avoid breathing spray mist. In case of contact with skin, wash with soap and water. Avoid contamination of feed and foodstuffs. Keep out of reach of children.

Note: See also Interpretation 19 (§ 362.117).

(iv) *For emulsifiable and self-propelled sprays for use on animals.*

Caution: Wash hands thoroughly with soap and warm water after handling the concentrate or using the diluted product on animals.

Note: See also paragraph (55) (ii).

(v) *For dust and powder formulations 25% and below.*

Caution: Avoid excessive inhalation. Avoid contamination of feed and foodstuffs.

Note: See also Interpretation 19 (§ 362.117).

(18) *Chloroform—10% and above.*

Warning: Harmful Vapor! Harmful if swallowed. Avoid prolonged breathing of vapor. Avoid prolonged or repeated contact with skin.

(19) *Chloro isopropylphenyl carbamate (chloro-IPC)—50% and above.*

Caution: Harmful If Swallowed!

(20) *p-Chlorophenyl dimethylurea.*

Caution: May cause irritation of eyes, nose, throat and skin. Avoid breathing dust or spray mist. Avoid contact with skin, eyes, and clothing.

(21) *p-Chlorophenyl-p-chlorobenzene sulfonate*—(i) *For a 50% wettable powder.*

Caution: May cause skin irritation. Avoid prolonged or repeated contact with skin. Avoid inhaling dust or spray mist.

(ii) *For an aerosol, 10%, with methyl chloride as propellent.*

Warning: Flammable! May Be Fatal If Inhaled! Do not use or store near heat or open flame. Use only while using a full-face mask with canister approved by the U. S. Bureau of Mines for organic vapors. Wash hands, arms and face immediately after using.

(22) *p-Chlorophenyl phenyl sulfone*—(i) *Wettable powder containing 28% named compound and 12% related compounds.*

Caution: Avoid prolonged or repeated inhalation of dust. Avoid contamination of feed and foodstuffs.

(23) *Chloropicrin.*

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Antidote: If inhaled. Get victim into fresh air. Have him lie down and keep warm and quiet. Give artificial respiration if breathing has stopped. Call a Physician Immediately!

Warning: Poisonous Vapor! Do not breathe vapor. Do not get in eyes, on skin, or on clothing. In case of contact, immediately flush skin or eyes with plenty of water for at least 15 minutes; for eyes, get medical attention. Remove and wash clothing before reuse.

Note: Directions for use should include directions for appropriate respiratory protection.

(24) *Coal tar creosote—containing less than 5% phenols.*

Caution: May cause skin irritation. Avoid prolonged or repeated contact with skin. Avoid prolonged breathing of vapor.

(25) *Coal tar disinfectants.* Treat on the basis of percentage of phenols.

(26) *Copper compounds—10% and above (based on the percentage of elemental copper present).*

Caution: Harmful if swallowed!

(27) *Cresols and cresylic acids.* Refer to phenols.

(28) *Citronella, oil of.*

Caution: Harmful if swallowed. Keep out of reach of children.

(29) *Cryolite (sodium fluoaluminate).* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(30) *Cyanide*—(i) *Calcium cyanide, 5% and above.*

☠ Poison ☠

Antidote: Carry victim to fresh air. Have him lie down. Remove contaminated clothing but keep victim warm. Start treatment immediately. Call a Physician Immediately!

If inhaled. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds. Repeat five times at about fifteen second intervals. Give artificial respiration if breathing has stopped.

If swallowed. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds. If victim is conscious or when consciousness returns, give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Repeat inhalation of amyl nitrite five times at 15 second intervals. Give artificial respiration if breathing has stopped.

Never give anything by mouth to an unconscious person!

Warning: Liberates Poison Gas! Do not breathe vapor or dust. Do not get in eyes or on skin. Keep away from acids. Wash thoroughly after handling.

Note: Directions for indoor use should include appropriate mask protection.

(ii) *Inorganic cyanides (except Ca $(CN)_2$ and liquid HCN) 5% and above.*

☠ Poison ☠

Antidote: Carry victim to fresh air. Have him lie down. Remove contaminated clothing but keep victim warm. Start treatment immediately. Call a Physician Immediately!

If inhaled. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds. Repeat five times at about 15 second intervals. Give artificial respiration if breathing has stopped.

If swallowed. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds. If victim is conscious or when consciousness returns, give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Repeat inhalation of amyl nitrite five times at 15 second intervals. Give artificial respiration if breathing has stopped.

Never give anything by mouth to an unconscious person.

Warning: Contact with Acid Liberates Poison Gas! Do not breathe vapor or dust. Do not get in eyes or on skin. Wash thoroughly after handling.

Note: Directions for indoor use should include appropriate mask protection.

(iii) *Inorganic cyanides below 5%.*

Warning: Contact with Acid Liberates Poison Gas! May be fatal if inhaled or swallowed. Do not breathe vapor or dust. Wash thoroughly after using.

(iv) *Liquid HCN (hydrocyanic acid).*

☠ Poison ☠

Antidote: Carry victim to fresh air. Have him lie down. Remove contaminated clothing but keep victim warm. Start treatment immediately. Call a Physician Immediately.

If inhaled. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds. Repeat five times at about 15 second intervals. Give artificial respiration if breathing has stopped.

If swallowed. Break an amyl nitrite pearl in a cloth and hold lightly under nose for 15 seconds. If victim is conscious or when consciousness returns, give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Repeat inhalation of amyl nitrite five times at 15 second intervals. Give artificial respiration if breathing has stopped.

Never give anything by mouth to an unconscious person.

Warning: Poison Gas! Flammable! Do not breathe gas. Do not get in eyes, on skin, or on clothing. In case of contact remove contaminated clothing and wash thoroughly. Keep away from heat and open flame.

Note: Directions for use should include appropriate gas mask protection.

(31) *Dichloro diphenyl dichloroethane.* Treat on same basis as DDT.

(32) *Dichloro diphenyl trichloroethane (DDT)*—(i) *Technical DDT and wettable powders above 25%.*

Caution: Harmful if swallowed. Avoid skin contact with solutions. Avoid breathing dust and spray mist. Avoid contamination of feed and foodstuffs.

(ii) *Emulsifiable or petroleum oil solutions for agricultural and industrial use.*

Caution: Avoid contact with skin. In case of skin contact, wash with soap and water. Avoid breathing spray mist. Avoid contamination of feed and foodstuffs.

(iii) *Emulsifiable or petroleum oil solutions for household use.*

Caution: Harmful if swallowed. Avoid repeated or prolonged contact with skin. Avoid breathing spray mist. Wash with soap and water after using. Avoid contamination of feed and foodstuffs. Keep out of reach of children.

(iv) *Aerosols.*

Caution: Do not spray on skin, or animals. In case of skin contact, wash with soap and water. Avoid contamination of feed and foodstuffs. Remove birds, pets and fish bowls from rooms being sprayed. Avoid prolonged inhalation of aerosol mist.

(v) *Dust and powder formulations 25% and below.*

Caution: Avoid breathing dust. Avoid contamination of feed and foodstuffs.

(33) *Dichloroethyl ether*—(i) *10% and above.*

Warning: May Be Fatal If Inhaled, Swallowed, or Absorbed Through Skin! Do not breathe vapor or spray mist. In case of contact remove contaminated clothing and wash immediately with soap and water.

(ii) *Below 10%.*

Caution: Harmful if inhaled, swallowed, or absorbed through skin! Avoid inhalation of vapor or spray mist. Avoid contact with skin or clothing and wash thoroughly after using. Keep away from children and domestic animals (H. P.).

(34) *2,4-Dichlorophenoxyacetic acid (2,4-D)*—(i) *2,4-D acid and inorganic salts—20% and above.*

Caution: Avoid inhaling dust. Avoid contact with skin, eyes or clothing.

(ii) *Organic esters and amine salts.*

Caution: Avoid contact with skin, eyes or clothing.

Note: Added warning statements regarding danger to crops through drifting dusts, sprays or vapors should be used on all labels of 2,4-D formulations.

(35) *Dichlorophenyl dimethylurea.*

Caution: May cause irritation of eyes, nose, throat and skin. Avoid breathing dust or spray mist. Avoid contact with skin, eyes, and clothing.

(36) *2,4-Dichlorophenyl ester of benzene sulfonic acid—50% emulsifiable concentrate.*

Caution: Avoid inhalation of spray mist. Avoid contact with skin.

(37) *Di-(p-chlorophenyl) methyl carbinol*—(i) *25% and above.*

Caution: Harmful if swallowed! Avoid prolonged breathing of vapor or spray mist. Do not get in eyes or on skin. Wash thoroughly after using. Do no contaminate feed and foodstuffs. Keep away from children and domestic animals.

(ii) *Below 25%.*

Caution: Harmful if swallowed! Avoid contact with skin or eyes. Wash thoroughly after using. Avoid contamination of feed and foodstuffs.

(38) *Dieldrin (85% hexachloro epoxy octahydro-endo, exo-dimethano naphthalene)*—(i) *60% and above.* Treat as aldrin.

(ii) *10% to below 60%.* Treat as aldrin.

(iii) *Below 10% for agricultural use.* Treat as aldrin.

(iv) *Fertilizer formulations below 2%.* Treat as aldrin.

(v) *0.5% in petroleum solvent and 1.0% dusts for household use.*

Caution: Avoid prolonged or repeated inhalation or contact with skin. Do not contaminate food, utensils, dishes or drinking water. Do not apply to humans, pets or birds, or near fish bowls. Keep out of reach of children.

Note: If the flash point of the formulation is between 80° F and 150° F, add: "Do not use or store near heat or open flame."

(39) *O, O-Dimethyl-O, p-nitrophenyl thiophosphate.* Treat on same basis as parathion.

(40) *Dinitro ortho cresol*—(i) *10% and above.*

☠ Poison ☠

Antidote: Give a teaspoonful of baking soda in a glass of warm water and repeat until vomiting occurs. Call a Physician Immediately.

Warning: Poisonous If Swallowed Or Absorbed Through Skin! Do not breathe vapor, dust or spray mist. Do not get in eyes, on skin, or on clothing. In case of contact, remove clothing and wash thoroughly with soap and water; for eyes, flush with water and get medical attention.

(ii) *From 2% to 10%.*

Warning: May Be Fatal If Swallowed Or Absorbed Through Skin! Do not breathe vapor or spray mist. Do not get in eyes, on skin, or on clothing. In case of contact, remove clothing and wash thoroughly with soap and water; for eyes, flush with water and get medical attention.

(iii) *Below 2%.*

Caution: Harmful if swallowed. Avoid breathing vapor or spray mist. Avoid contact with skin, eyes, or clothing. Wash thoroughly after using.

(41) *Di-n-propyl maleate isosafrole condensate (n-propyl isome).* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(42) *Endrin (hexachloro-epoxy-octahydro-endo, endo-dimethano naphthalene)*—(i) *2.5% and above.*

☠ Poison ☠

Antidotes: If swallowed. Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep quiet. Call a Physician Immediately!

If on skin. Wash immediately with soap and water.

Warning: Poisonous by Skin Contact, Inhalation, Or Swallowing! Rapidly Absorbed Through Skin! Do not get in eyes, on skin or on clothing. In case of contact, immediately remove all contaminated clothing and flush skin or eyes with plenty of water for at least 15 minutes; for eyes, get medical attention. Do not breathe dust or spray mist. Wash thoroughly with soap and water after handling and before eating or smoking; wear clean clothing. Do not apply or allow to drift to areas occupied by unprotected humans or beneficial animals. To protect fish and wildlife, do not contaminate streams, lakes or ponds with this material.

(ii) *Below 2.5%.*

Warning: Hazardous By Skin Contact, Inhalation, or Swallowing! Do not get in eyes, on skin or on clothing. In case of contact with skin or eyes, flush with plenty of water; for eyes, get medical attention. Wash thoroughly with soap and water after handling and before eating or smoking; wear clean clothing. Do not apply or allow to drift to areas occupied by unprotected humans or beneficial animals. To protect fish and wildlife, do not contaminate streams, lakes or ponds with this material.

(43) *Ethyl bromide—10% and above.*

Caution: Harmful Vapor! Avoid prolonged breathing of vapor. Do not use or store near heat or open flame.

(44) *Ethylene dibromide—10% and above.*

Caution: Harmful by inhalation, swallowing or skin contact. Avoid breathing vapor. Do not get in eyes, on skin, or on clothing. In case of contact immediately remove clothing, including shoes, and flush skin or eyes with plenty of water for at least 15 minutes; for eyes, get medical attention. Wash clothing and air shoes thoroughly before re-use.

(45) *Ethylene dichloride—10% and above.*

Warning: Flammable! Harmful if inhaled or swallowed! Keep away from heat and open flame. Avoid breathing vapor. Avoid contact with skin, eyes, and clothing.

(46) *O - (2 - [Ethylmercapto]ethyl) O,O-diethyl thiophosphate*—(i) *2% and above.*

☠ Poison ☠

Antidotes: If swallowed. Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep quiet. Call a Physician Immediately!

If on skin. Remove contaminated clothing and wash skin immediately with soap and water.

Warning: Poisonous If Swallowed, Inhaled, Or Absorbed Through Skin! Rapidly Absorbed Through Skin! Do not get in eyes or on skin. Wear protective clothing, natural rubber gloves, and goggles. In case of contact, remove contaminated clothing and wash skin immediately with soap and water. Do not breathe fumes, dust, or spray mist. Wear a mask or respirator of a type passed by the U. S. Department of Agriculture for protection against this material. Do not contaminate feed or foodstuffs. Keep all unprotected persons out of the operating area or vicinity where there may be danger of drift. Vacated areas should not be re-entered until the drifting insecticide and volatile residues have dissipated. Wash hands, arms, and face thoroughly with soap and warm water before eating or smoking. Wash all contaminated clothing with soap and hot water before re-use.

(ii) *Below 2%.*

Warning: May Be Fatal If Swallowed, Inhaled, or Absorbed Through Skin! Rapidly Absorbed Through Skin! Do not get in eyes or on skin. Wear protective clothing, natural rubber gloves, and goggles. In case of contact, remove contaminated clothing and wash skin immediately with soap and water. Do not breathe fumes, dust, or spray mist. Wear a mask or respirator of a type passed by the U. S. Department of Agriculture for protection against this material. Do not contaminate feed or foodstuffs. Keep all unprotected persons out of the operating area or vicinity where there may be danger of drift. Vacated areas should not be re-entered until the drifting insecticide and volatile residues have dissipated. Wash hands, arms, and face thoroughly with soap and water before eating or smoking. Wash all contaminated clothing with soap and water before re-use.

(47) *Ferbam (ferric dimethyl dithiocarbamate)—3% and above.*

Caution: May cause irritation of eyes, nose, throat and skin! Avoid breathing dust or spray mist. Avoid contact with eyes, skin or clothing. In case of contact, flush with plenty of water; for eyes, get medical attention.

Note: For dust mixtures 50% and above, add: Keep away from fire and sparks.

(48) *Fluorides*—(i) *Inorganic, water soluble fluorides 10% and above.*

Warning: May Be Fatal If Swallowed! Do not breathe dust. Do not contaminate feed and foodstuffs. Keep out of reach of children and domestic animals.

(ii) *Inorganic, water soluble fluorides, below 10%.*

Caution: Harmful if Swallowed! Avoid prolonged breathing of dust. Avoid contamination of feed and foodstuffs. Keep away from children and domestic animals.

(iii) *Fluosilicates, 5% and above.*

Caution: Harmful if Swallowed! Avoid prolonged breathing of dust or spray mist. Avoid contamination of feed and foodstuffs. Keep away from children and domestic animals.

(49) *Formaldehyde solutions*—(i) *4% and above.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Give milk, or white of egg beaten with water. Call a Physician Immediately!

Warning: Causes Irritation of Skin, Eyes, Nose and Throat! Do not breathe vapor. Avoid contact with skin, eyes or clothing. In case of contact, flush with plenty of water; for eyes, get medical attention.

(ii) *Below 4%.*

Caution: Avoid prolonged breathing of vapor.

(50) *Heptachlor*—(i) *10% and above.*

Warning: May Be Fatal If Swallowed! Do not breathe vapor, dust, or spray mist. Do not get on skin. In case of contact wash immediately with soap and water. Do not contaminate feed and foodstuffs.

(ii) *Below 10%.*

Caution: Harmful if swallowed. Avoid inhalation of dust or spray mist. Avoid skin contact, and wash hands, arms, and face with soap and water after using. Avoid contamination of feed and foodstuffs.

(51) *Hexaethyl tetraphosphate.* Treat on basis of content of tetraethyl pyrophosphate.

(52) *Hydrochloric acid—10% and above (as hydrogen chloride).*

Caution: Harmful if Swallowed! Do not breathe vapor or fumes. Do not get in eyes, on skin or on clothing.

Note: Hydrochloric acid and any preparation containing free or chemically unneutralized hydrochloric and (HCl) in a concentration of 10% or more are subject to the provisions of the Federal Caustic Poisons Act, and labels for containers "suitable for household use" should comply with those provisions. When so labeled the products will be marked acceptably under the Federal Insecticide, Fungicide, and Rodenticide Act.

(53) *Hypochlorites (sodium and potassium hypochlorite solutions)—10% and above.*

Caution: Harmful if Swallowed!

Note: Hypochlorous acid, either free or combined and any preparation containing the same in a concentration so as to yield 10% or more by weight of available chlorine, excluding calx chlorinata, bleaching powder, and chloride of lime, are subject to the provisions of the Federal Caustic Poisons Act, and labels for containers "suitable for household use" should comply with those provisions. When so labeled the products will be marked acceptably under the Federal Insecticide, Fungicide, and Rodenticide Act.

(54) *Isopropylphenyl carbamate (IPC)—50% and above.*

Caution: Harmful if Swallowed!

(55) *Kerosene sprays (or similar formulations containing other petroleum distillates)*—(i) *When sold for household use.*

Caution: Harmful if Swallowed! Keep out of reach of children. Do not use or store near heat or open flame.

(ii) *When recommended for use on animals.*

Caution: Avoid wetting the hides of animals. Do not use or store near heat or open flame.

(56) *Lime-sulfur solutions.*

To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(57) *Lindane (gamma isomer of benzene hexachloride 99% and above)*—(i) *Lindane and dry formulations 25% and above.*

Warning: May Be Fatal If Swallowed! May Be Absorbed Through Skin! Do not breathe dust or spray mist. Avoid contact with skin and eyes. Wash thoroughly after handling. Avoid contamination of feed and foodstuffs.

(ii) *Dry formulations below 25%.*

Caution: Avoid prolonged breathing of dust or spray mist. Avoid contact with skin and eyes. Wash thoroughly after handling. Harmful if swallowed (H. P.). Keep out of reach of children (H. P.).

(iii) *Solutions and emulsions 25% and above.*

Warning: May Be Fatal If Swallowed! May Be Absorbed Through Skin! Do not breathe spray mist. Avoid contact with skin or eyes. In case of contact, wash immediately with soap and water; for eyes, flush with water and get medical attention. Avoid contamination of feed and foodstuffs. Do not use on household pets or humans.

(iv) *Solutions and emulsions below 25%.*

Caution: May be absorbed through skin. Avoid inhalation and skin contact. In case of contact, wash immediately with soap and water. Avoid contamination of feed and foodstuffs. Do not use on household pets or humans. Harmful if swallowed (H. P.). Keep out of reach of children (H. P.).

(v) *Emulsions and dusts suitable for use on animals.*

Caution: May be absorbed through skin. Wash hands thoroughly with soap and warm water after handling the concentrate or applying the diluted product to animals. Harmful if swallowed (H. P.). Keep out of reach of children (H. P.).

(58) *Malathion (O,O-Dimethyl dithiophosphate of diethylmercaptosuccinate).*

Caution: Harmful if swallowed. Avoid prolonged breathing of dust or spray mist. Avoid prolonged or repeated contact with skin; wash thoroughly after using. Avoid contamination of feed and foodstuffs. Keep out of reach of children.

Note: For dusts and wettable powders below 20% the caution "Harmful if swallowed" may be omitted.

(59) *Maleic hydrazide.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(60) *Maneb (manganese ethylenebisdithiocarbamate)—10% and above.*

Caution: May Cause Irritation Of Nose And Throat! Do not breathe dust or spray mist.

Note: For dust mixtures 50% and above, add: Keep away from fire and sparks.

(61) *Mercury compounds*—(i) *Inorganic salts (except calomel)—20% and above (based on the percentage of elemental mercury present).*

☠ Poison ☠

Antidote: Give milk or white of egg beaten with water, then a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Repeat milk or white of egg beaten with water. Call A Physician Immediately!

Warning: Do not breath dust. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling.

(ii) *Inorganic salts—below 20% (based on the percentage of elemental mercury present).*

Warning: May Be Fatal If Swallowed! Do not breath dust. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling.

(iii) *Organic salts.* Due to wide variation in characteristics, each product must be considered individually. See also phenyl mercuric acetate.

(62) *Mercury, metallic (in ointments)*— (i) *20% and above.*

☠ Poison ☠

Antidote: Give milk, or white of egg beaten with water, then a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Repeat milk or white of egg beaten with water. Call A Physician Immediately!

Warning: May produce irritation of skin and eyes. Application to large areas of skin may cause serious mercury poisoning.

(ii) *Below 20%.*

Warning: May cause irritation of skin and eyes. Application to large areas of skin may cause serious mercury poisoning.

(63) *Methoxychlor (2,2-bis[p-methoxyphenyl]-1,1,1-trichloroethane).* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(64) *Methyl bromide.*

☠ Poison ☠

Antidote: Remove victim to fresh air immediately. Keep victim lying down and warm. Give artificial respiration if breathing has stopped. Call A Physician Immediately!

Warning: Poisonous Liquid and Vapor! Contact with liquid may produce burns. Do not breathe vapor. Do not get in eyes, on skin or on clothing. In case of contact, immediately remove all contaminated clothing including shoes. Wash skin thoroughly with soap and water and flush eyes with water for at least 15 minutes. Get medical attention. Do not re-use shoes or clothing until free of all contamination.

Note: Directions for use should include instructions for appropriate respiratory protection.

(65) *Methyl chloride.*

Warning: Flammable! May Be Fatal If Inhaled. Contact with liquid may produce burns. Do not breathe vapor. Do not get in eyes or on skin. Do not use or store near heat or open flame.

(66) *2-Methyl,4-chlorophenoxyacetic acid*—(i) *Acid and salts—20% and above.*

Caution: Avoid inhaling dust. Avoid contact with skin, eyes or clothing.

(ii) *Organic esters and amine salts.*

Caution: Avoid contact with skin, eyes or clothing.

Note: Added warning statements regarding danger to crops through drifting dusts, sprays or vapors should be used on all labels of 2-Methyl,4-chlorophenoxyacetic acid formulations.

(67) *Methylene chloride.*

Caution: Harmful if swallowed! Avoid prolonged or repeated breathing of vapor. Avoid prolonged or repeated contact with skin.

(68) *N-1 Naphthyl phthalamic acid.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(69) *Nicotine and its salts*—(i) *5% and above.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep warm. Give strong tea or coffee. Give artificial respiration if breathing has stopped. Call a Physician Immediately!

Warning: Poisonous by Swallowing, Inhalation or Skin Contact! Do not breathe vapor, dust or spray mist. Do not get in eyes, on skin or on clothing. In case of contact, immediately flush skin or eyes with plenty of water for at least 15 minutes; for eyes, get medical attention. Remove and wash clothing before re-use.

Note: Directions for use should include instructions for appropriate respiratory protection.

(ii) *1% to 5% solutions, and 2% to 5% dusts.*

Warning: May Be Fatal If Swallowed, Inhaled or Absorbed Through Skin! Do not breathe vapor, dust or spray mist. Avoid contact with eyes, skin or clothing. In case of contact, flush with plenty of water; for eyes, get medical attention.

Note: Directions for use should include instructions for appropriate respiratory protection.

(iii) *Solutions below 1%.*

Caution: Harmful If Swallowed! Avoid breathing vapor, or spray mist. Avoid contact with eyes, skin, or clothing. Avoid contamination of feed and foodstuffs. Keep away from children.

(iv) *Dusts below 2%.*

Caution: Irritating Dust!

(70) *Nitrobenzene (oil of Mirbane)*—(i) *25% and above.*

☠ Poison ☠

Antidotes: If swallowed. Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear.

External. Wash thoroughly with soap and warm water. Call A Physician Immediately!

Warning: Poisonous If Swallowed Or Absorbed Through Skin! Do not breathe vapor, fumes or spray mist. Do not get in eyes, on skin or on clothing.

(ii) *Below 25%.*

Warning: May Be Fatal If Swallowed Or Absorbed Through Skin! Do not breathe vapor, fumes or spray mist. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling.

(71) *2-Nitro-1, 1-bis (p-chlorophenyl) butane or 2-Nitro-1, 1-bis (p-chlorophenyl) propane, or mixtures of these*—(i) *25% and above.*

Warning: May Cause Irritation Of Skin And Eyes! May Be Absorbed Through Skin! In case of contact, wash skin thoroughly with warm water and soap; for eyes, wash with running water for 15 minutes and get medical attention. Avoid contamination of feed and foodstuffs.

(ii) *Below 25%.*

Caution: May cause irritation of skin and eyes! May be absorbed through skin! Avoid prolonged breathing of dust or spray mist. Avoid contamination of feed and foodstuffs. Wash thoroughly after using.

(72) *Octyl-bicyclo-heptene-dicarboximide.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(73) *N-Octylsulfoxide of isosafrole.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(74) *Orthodichlorobenzene—10% and above.*

Caution: Avoid prolonged breathing of vapor. Avoid contact with eyes, skin, or clothing. Wash thoroughly after using.

(75) *Paints, containing insecticides, fungicides, etc.* Treat as oil solutions or emulsions of the pesticide.

(76) *Parathion (O,O-Diethyl O,p-nitrophenyl thiophosphate)*—(i) *Above 2% (except aerosols; see below).*

☼ Poison ☼

Antidote: If swallowed. Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep quiet. Call a Physician Immediately!

If on skin. In case of contact, remove contaminated clothing and immediately wash skin with soap and water.

Warning: Poisonous If Swallowed, Inhaled, or Absorbed Through Skin! Rapidly Absorbed Through Skin! Do not get in eyes or on skin. Wear natural rubber gloves, protective clothing and goggles. In case of contact, wash immediately with soap and water. Wear a mask or respirator of a type passed by the U. S. Department of Agriculture for parathion protection. Keep all unprotected persons out of operating areas or vicinity where there may be danger of drift. Vacated areas should not be re-entered until drifting insecticide and volatile residues have dissipated. Do not contaminate feed and foodstuffs. Wash hands, arms and face thoroughly with soap and water before eating or smoking. Wash all contaminated clothing with soap and hot water before re-use.

(ii) *Dusts, 2% and below.*

Warning: May Be Fatal If Swallowed, Inhaled, or Absorbed Through Skin! Rapidly Absorbed Through Skin! Do not get in eyes or on skin. Wear natural rubber gloves, protective clothing and goggles. In case of contact wash immediately with soap and water. Wear a mask or respirator of a type passed by the U. S. Department of Agriculture for parathion protection. Keep all unprotected persons out of operating areas or vicinity where there may be danger of drift. Vacated areas should not be re-entered until drifting insecticide and volatile residues have dissipated. Do not contaminate feed and foodstuffs. Wash hands, arms and face thoroughly with soap and water before eating or smoking. Wash all contaminated clothing with soap and hot water before re-use.

(iii) *Aerosols—greenhouse use.*

☼ Poison ☼

Antidotes: Internal. Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep quiet. Call a Physician Immediately!

If on skin. Wash thoroughly with soap and water.

Warning: Poisonous If Inhaled or Absorbed Through Skin! Use only while wearing a full-face mask of a type passed by the U. S. Department of Agriculture for parathion protection. Replace canister as directed. Avoid contact with skin. Wear protective clothing and natural rubber gloves. Wash hands, arms and face with soap and water after using the bomb. Wash contaminated clothing with soap and hot water before reuse. Do not contaminate feed and foodstuffs.

(77) *Pentachlorophenol*—(i) *5% and above (except oil solutions or emulsions).*

Warning: Harmful if inhaled or swallowed! Do not breathe dust. Avoid contact with eyes, skin or clothing. Wash thoroughly after handling.

(ii) *Oil solutions or emulsions 3% and above.*

Warning: Harmful if swallowed or absorbed through skin! Causes skin irritation! Do not breathe vapor or spray mist. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling.

(iii) *Sodium pentachlorophenate—3% and above.*

Warning: Causes skin irritation. Harmful if swallowed. Do not breathe dust or spray mist. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling.

(78) *Peracetic acid—For a 40% aqueous solution.*

Danger: Oxidizing Agent! May Be Fatal If Swallowed! May produce severe burns. Store in a cool place away from combustible material. Avoid inhalation of vapor or contact of the undiluted material with the skin. Wear rubber gloves when handling the concentrate. In case of contact, wash thoroughly with plenty of water.

(79) *Phenols (including phenol, cresol, cresylic acid).* The following will be considered as minimum precautionary labeling except that, where there is adequate evidence of presence of alkyl substitutions greater than one methyl group, lower requirements may be permitted on the basis of evidence submitted as to reduced toxicity—(i) *10% and above.*

Warning: May Be Fatal If Swallowed or Absorbed Through Skin! May Produce Severe Burns! Do not get in eyes, on skin, or on clothing. Wash thoroughly after handling.

(ii) *2% to 10%.*

Caution: Harmful if Swallowed! Avoid contact with skin, eyes, and clothing. Avoid contamination of feed and foodstuffs. (H. P.) Keep away from children and domestic animals.

(iii) *Chlorophenyl phenol and sodium o-phenyl phenate 5% and above.*

Caution: Harmful if Swallowed!

Note: Phenol and any preparation containing phenol in a concentration of 5% or more, are subject to the Federal Caustic Poisons Act and labels for containers "suitable for household use" should comply with these provisions. When so labeled, the products will be marked acceptably under the Federal Insecticide, Fungicide, and Rodenticide Act.

(80) *Phenylmercuric acetate*—(i) *5% and above.*

☼ Poison ☼

Antidotes: If swallowed. Give milk or white of egg beaten with water, then a tablespoonful of salt in a glass of warm water, and repeat until vomit fluid is clear. Repeat milk or white of egg beaten with water. Call a Physician Immediately!

If on skin. Wash immediately with soap and warm water.

If in eyes. Flush with water for at least 15 minutes, and get medical attention.

Warning: May Produce Delayed Chemical Burns! Do not breathe dust or spray mist. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling.

(ii) *Below 5%.*

Warning: May Be Fatal If Swallowed! May Produce Delayed Chemical Burns! Do not breathe dust or spray mist. Do not get in eyes, on skin or on clothing. In case of contact, wash skin with soap and water; for eyes, flush with water for at least 15 minutes; and get medical attention.

(81) *Phosphorous (white or yellow)*—(i) *1% and above.*

☼ Poison ☼

Antidote: Internal. Give one tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Follow by eight tablespoonfuls of medicinal mineral oil. (Not salad or vegetable oils.) Have victim lie down and keep warm. Call a Physician Immediately!

Warning: Do not get in eyes, on skin or on clothing. Wash thoroughly after handling. Do not breathe fumes.

(ii) *Below 1%.*

Warning: May Be Fatal If Swallowed! Do not get in eyes, on skin or on clothing. Wash thoroughly after handling. Do not breathe fumes. Keep away from children and domestic animals.

(82) *Pine oil.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(83) *Piperonyl butoxide.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(84) *Piperonyl cyclonene.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(85) *2-Pivalyl-1,3-indandione*—(i) *Above 3%.*

☼ Poison ☼

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Call A Physician Immediately!

Warning: Keep away from humans, domestic animals and pets. If swallowed by humans, domestic animals, or pets, this material may reduce the clotting ability of the blood and cause bleeding. In such case, intravenous and oral administration of Vitamin K combined with blood transfusions are indicated as in the case of hemorrhage caused by overdoses of bihydroxycoumarin.

(ii) *Concentrations from 0.1% to 3%.*

Caution: Keep away from humans, domestic animals and pets. If swallowed by humans, domestic animals, or pets, this material may reduce the clotting ability of the blood and cause bleeding. In such case, intravenous and oral administration of Vitamin K combined with blood transfusions are indicated as in the case of hemorrhage caused by overdoses of bihydroxycoumarin. Directions for use should include a statement directing placement of baits so as to protect children, pets, and domestic animals.

(iii) *Finished baits.* The only requirement is the statement directing placement of baits so as to protect children, pets, and domestic animals; however, voluntary use of precautionary labeling

similar to that required under subdivision (ii) of this subparagraph would not be objectionable.

(86) *Pyrethrum.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(87) *Quaternary ammonium compounds*—(i) *2% and above alkyl (C_8H_{17}-$C_{18}H_{37}$) dimethyl benzyl ammonium chloride, alkyl trimethyl ammonium bromide and allied substances.*

Caution: Avoid contamination of food.

(ii) *Formulations having hazards requiring more caution statements.* Quaternary formulations having hazards requiring more caution statements than those indicated in subdivision (i) of this subparagraph must be considered individually.

(88) *Red squill powder and extracts; any effective concentrations.*

Caution: Avoid contamination of feed and foodstuffs. Keep away from children and domestic animals.

(89) *Rotenone.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(90) *Sabadilla powder.*

Caution: Avoid breathing dust.

(91) *Selenites and selenates*—(i) *3% and above.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep warm. Call a Physician Immediately!

Warning: Do not breathe dust or spray mist. Do not use on or around plants to be used for food. Keep away from children and domestic animals.

(ii) *Below 3%.*

Warning: May Be Fatal If Swallowed! Do not breathe dust or spray mist. Keep away from children and domestic animals. Do not use on or around plants to be used for food.

(92) *Sesamin.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(93) *Sodium fluoroacetate (1080); any concentration.*

☠ Poison ☠

Antidote: If swallowed. Speed is essential. Immediately give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Then give two tablespoonfuls of Epsom Salt in water. Have victim lie down and keep warm and quiet. Call a Physician Immediately!

Warning: For Use By Trained Operators Only! Poisonous If Swallowed! May cause secondary poisoning in other animals, so pick up and burn or bury deeply all carcasses of pests killed by 1080. Burn all surplus bait or bait containers. Keep pets and domestic animals confined away from baited areas. Do not contaminate feed and foodstuffs. Keep out of reach of children.

(94) *Sodium isopropyl xanthate—50% and above.*

Caution: Irritating dust. Avoid breathing dust. Avoid contact with skin and eyes.

(95) *Sodium o-phenyl phenate.* See under phenols.

(96) *Sodium trichloroacetate.*

Caution: May cause burns. Avoid breathing spray mist. Avoid contact with skin, eyes, and clothing. In case of contact, immediately wash skin with plenty of water; for eyes, wash with water for at least 15 minutes and get medical attention.

(97) *Strychnine and its salts.*

☠ Poison ☠

Antidote: If less than ten minutes has passed since the poison was taken, give a tablespoonful of salt in a glass of warm water. Have victim lie down in a quiet, darkened room and keep him warm. Call a Physician Immediately!

Warning: Convulsive Poison! Do not contaminate feed and foodstuffs. Keep away from children and domestic animals.

(98) *Sulfur.* To be acceptable for registration for the usual uses, no precautionary labeling is required on the basis of this ingredient alone.

(99) *2-(p-Tertiary-butyl phenoxy-isopropyl-2-chloroethyl sulfite*—(i) *For 15% wettable powder.*

Caution: Avoid inhalation of dust and spray mist. Do not get in eyes.

(ii) *For 30% emulsifiable concentrate.*

Caution: Harmful if swallowed. Avoid inhalation of spray mist. Do not get in eyes.

(100) *Tetraethyl dithionopyrophosphate.* Treat on same basis as tetraethyl pyrophosphate.

(101) *Tetraethyl pyrophosphate*—(i) *1% and above.*

☠ Poison ☠

Antidote: If swallowed. Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep warm and quiet. Call a Physician Immediately!

If on skin. Wash with large amounts of soap and water.

Warning: Poisonous If Swallowed, Inhaled, or Absorbed Through Skin or Eyes! Avoid skin or eye contact with concentrated spray, inhalation of spray mist or prolonged contact with diluted spray. Wear a mask or respirator of a type passed by the U. S. Department of Agriculture for tetraethyl pyrophosphate protection. Wear natural rubber gloves, protective clothing and goggles. Keep all unprotected persons out of operational area or vicinity where there may be danger of drift until one hour after spraying or dusting is completed.

(ii) *Below 1%.*

Warning: May Be Fatal If Swallowed, Inhaled, or Absorbed Through Skin or Eyes! Avoid skin or eye contact with concentrated spray, inhalation of spray mist, or prolonged contact with diluted spray. Wear protective clothing, goggles, and a mask or respirator of a type passed by the U. S. Department of Agriculture for tetraethyl pyrophosphate protection. Remove outer garments and wash face, hands, and arms with soap and water before eating or smoking. Keep all unprotected persons out of operational area or vicinity where there may be danger of drift, until one hour after spraying or dusting is completed.

(102) *Thiram (Tetramethylthiuram-disulfide)—20% and above.*

Caution: May cause skin irritation. Do not inhale dust. Do not get in eyes or on skin. Wash thoroughly after handling.

(103) *Thallium compounds*—(i) *1% and above.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim lie down and keep warm. Call a Physician Immediately!

Warning: Cumulative Poison! Absorbed through the skin. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling. Keep children and domestic animals away from baited areas and burn all pests killed.

(ii) *Below 1%.*

Warning: May Be Fatal If Swallowed or Absorbed Through Skin! Do not get in eyes, on skin or on clothing. Wash thoroughly after handling. Do not contaminate feed and foodstuffs. Keep children and domestic animals away from baited areas and burn all pests killed.

(104) *Thiocyanates*—(i) *B-butoxy, B'-thiocyano diethyl ether—25% concentrate.*

Warning: Harmful if swallowed or absorbed through skin. Do not get in eyes, on skin or on clothing. Wash thoroughly after handling. Do not breathe spray mist.

(ii) *B-butoxy, B'-thiocyano diethyl ether—3% to 25% concentrate.*

Caution: Avoid prolonged contact with skin. Avoid prolonged inhalation of spray mist. Avoid contamination of feed and foodstuffs. (H. P.)

(iii) *B-thiocyano ethyl esters of mixed fatty acids averaging 10 to 18 carbon atoms, 13.2% of B-butoxy B'-thiocyano diethyl ether—25% concentrate.*

Caution: Avoid prolonged contact with skin. Avoid prolonged inhalation of spray mist. Avoid contamination of feed and foodstuffs. (H. P.)

(105) *Toxaphene (chlorinated camphene)*—(i) *Dry formulations 25% and above.*

Warning: May Be Fatal If Swallowed! Do not breathe dust or spray mist. Do not get in eyes, on skin or on clothing. Wash thoroughly after using. To protect fish and wildlife, do not contaminate streams, lakes or ponds with this material.

(ii) *Dry formulations below 25%.*

Caution: Harmful If Swallowed! Avoid prolonged breathing of dust or spray mist. Avoid contact with eyes, skin and clothing. Wash thoroughly after using. Avoid contamination of feed and foodstuffs. To protect fish and wildlife, do not contaminate streams, lakes or ponds with this material.

(iii) *Solutions and emulsions.* Labels should bear precautionary statements covering the combined hazards of toxaphene and solvent.

(106) *Trichloroacetic acid.*

Warning: Causes Burns! Harmful if swallowed. Avoid breathing spray mist.

Avoid contact with eyes, skin, and clothing. In case of contact, immediately wash skin with plenty of soap and water; for eyes, wash with water for at least 15 minutes and get medical attention.

(107) *2,4,5 - Trichlorophenoxyacetic acid (2,4,5-T)*—(i) *2,4,5-T acid and inorganic salts—20% and above.*

Caution: Avoid inhaling dust. Avoid contact with skin, eyes or clothing.

(ii) *Organic esters and amine salts.*

Caution: Avoid contact with skin, eyes or clothing.

Note: Added warning statements regarding danger to crops through drifting dusts, sprays or vapors should be used on all labels of 2,4,5-T formulations.

(108) *Warfarin (3-[alpha-acetonylbenzyl]-4-hydroxycoumarin)*—(i) *Above 3%.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Call a Physician Immediately!

Warning: Keep away from humans, domestic animals and pets. If swallowed by humans, domestic animals, or pets, this material may reduce the clotting ability of the blood and cause bleeding. In such case, intravenous and oral administration of Vitamin K combined with blood transfusions are indicated as in the case of hemorrhage caused by overdoses of bishydroxycoumarin.

(ii) *Concentrations from 0.1% to 3%.*

Caution: Keep away from humans, domestic animals and pets. If swallowed by humans, domestic animals, or pets, this material may reduce the clotting ability of the blood and cause bleeding. In such case, intravenous and oral administration of Vitamin K combined with blood transfusions are indicated as in the case of hemorrhage caused by overdoses of bishydroxycoumarin.

Directions for use should include a statement directing placement of baits so as to protect children, pets, and domestic animals.

(iii) *Finished baits.* The only requirement is the statement directing placement of baits so as to protect children, pets, and domestic animals; however, voluntary use of precautionary labeling similar to that required under subdivision (ii) of this subparagraph would not be objectionable.

(109) *Zinc phosphide*—(i) *10% and above.*

☠ Poison ☠

Antidote: Give a tablespoonful of salt in a glass of warm water and repeat until vomit fluid is clear. Have victim line down and keep warm. Call a Physician Immediately!

Warning: Do not breathe dust or fumes. Do not contaminate feed and foodstuffs. Keep away from children and domestic animals.

(ii) *2% to 10%.*

Warning: May Be Fatal If Swallowed! Do not breathe dust or fumes. Do not contaminate feed and foodstuffs. Keep away from children and domestic animals.

(iii) *Below 2%.*

Caution: Harmful If Swallowed! Avoid contamination of feed and foodstuffs. (H. P.). Keep away from children and domestic animals.

(110) *Zinc salts—not elsewhere included—(considered as zinc, not as anions)—5% and above.*

Caution: Harmful if swallowed.

(111) *Zineb (zinc ethylene bisdithiocarbamate)—10% and above.*

Caution: May Cause Irritation of Nose and Throat! Do not breathe dust or spray mist.

Note: For dust mixtures 50% and above, add: Keep away from fire and sparks.

(112) *Ziram (zinc dimethyl dithiocarbamate)*—(i) *3% and above.*

Caution: May Be Harmful If Swallowed or Inhaled! May cause irritation of nose, throat and skin. Avoid contact with eyes, skin or clothing. Avoid breathing dust or spray mist. In case of contact, flush with plenty of water; for eyes, get medical attention.

Note: For dust mixtures 50% and above, add: Keep away from fire and sparks.

(Sec. 6, 61 Stat. 168; 7 U. S. C. 135d)

Effective date. This revision of Interpretation 18 shall become effective upon its publication in the FEDERAL REGISTER, when it shall supersede Interpretation 18 effective November 14, 1949.

Issued this 16th day of December 1954.

[SEAL] W. L. POPHAM,
Chief, Plant Pest Control Branch, Agricultural Research Service.

[F. R. Doc. 54-10084; Filed, Dec. 20, 1954; 8:54 a. m.]

TITLE 24—HOUSING AND HOUSING CREDIT

Chapter I—Home Loan Bank Board, Housing and Home Finance Agency

Subchapter C—Federal Savings and Loan System

[No. 7902]

PART 151—SERVICE OF PROCESS UPON BOARD

AGENTS FOR SERVICE OF PROCESS

DECEMBER 10, 1954.

Resolved that, pursuant to § 108.11 of the general regulations of the Home Loan Bank Board (24 CFR 108.11) and § 142.1 of the rules and regulations for the Federal Savings and Loan System (24 CFR 142.1), the rules and regulations for the Federal Savings and Loan System (24 CFR Ch. I, Subch. C) are hereby amended, effective December 21, 1954, by adding the following new part at the end thereof:

§ 151.1 *Agents for service of process.* Any Federal association desiring to serve process upon the Board in any jurisdiction may obtain the name and address of the proper agent by communicating with the Secretary of the Home Loan Bank Board, Washington, D. C., or the President of the Federal Home Loan Bank in the district in which such jurisdiction is located. Upon a request for the name of an agent upon whom service of process may be made, the Board shall promptly designate such an agent in any jurisdiction where there is not at that time such an agent.

(Sec. 5, 48 Stat. 132, as amended; 12 U. S. C. 1464. Interprets or applies sec. 502, 68 Stat. 634)

Resolved further that, as this amendment involves a matter of procedure and relieves a restriction, notice and public procedure thereon and deferment of the effective date thereof are not required under § 108.12 of the general regulations of the Home Loan Bank Board (24 CFR 108.12) or section 4 of the Administrative Procedure Act.

By the Home Loan Bank Board.

[SEAL] J. FRANCIS MOORE,
Secretary.

[F. R. Doc. 54-10063; Filed, Dec. 20, 1954; 8:48 a. m.]

Subchapter D—Federal Savings and Loan Insurance Corporation

[No. 7903]

PART 168—SERVICE OF PROCESS UPON CORPORATION

AGENTS FOR SERVICE OF PROCESS

DECEMBER 10, 1954.

Resolved that, pursuant to § 108.11 of the general regulations of the Home Loan Bank Board (24 CFR 108.11) and § 167.1 of the rules and regulations for Insurance of Accounts (24 CFR 167.1), the rules and regulations for Insurance of Accounts (24 CFR Ch. I, Subch. D) are hereby amended, effective December 21, 1954, by adding the following new part at the end thereof:

§ 168.1 *Agents for service of process.* Persons desiring to serve process upon the Federal Savings and Loan Insurance Corporation in any jurisdiction may obtain the name and address of the proper agent by communicating with the Secretary of the Home Loan Bank Board, Washington, D. C., or the President of the Federal Home Loan Bank in the district in which such jurisdiction is located. Upon a request for the name of an agent upon whom service of process may be made, the Federal Savings and Loan Insurance Corporation shall promptly designate such an agent in any jurisdiction where there is not at that time such an agent.

(Sec. 402, 48 Stat. 1266, as amended; 12 U. S. C. 1725. Interprets or applies sec. 501, 68 Stat. 633)

Resolved further that, as this amendment involves a matter of procedure and relieves a restriction, notice and public procedure thereon and deferment of the effective date thereof are not required under § 108.12 of the general regulations of the Home Loan Bank Board (24 CFR 108.12) or section 4 of the Administrative Procedure Act.

By the Home Loan Bank Board.

[SEAL] J. FRANCIS MOORE,
Secretary.

[F. R. Doc. 54-10064; Filed, Dec. 20, 1954; 8:48 a. m.]

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 119]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

PROCEDURE ALTERATIONS

The standard instrument approach procedure alterations appearing hereinafter are adopted to become effective when indicated in order to promote safety. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 609 is amended as follows:

NOTE: Where the general classification (LFR, VAR, ADF, ILS, GCA, or VOR), location, and procedure number (if any) of any procedure in the amendments which follow, are identical with an existing procedure, that procedure is to be substituted for the existing one, as of the effective date given, to the extent that it differs from the existing procedure; where a procedure is canceled, the existing procedure is revoked; new procedures are to be placed in appropriate alphabetical sequence within the section amended.

1. The low frequency range procedures prescribed in § 609.6 are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. If an LFR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft: 75 m. p. h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
COLUMBIA, MO. Columbia, 778'. SBRAZ-VDT-CBL. Procedure No. 1. Amendment No. 6. Effective date: January 22, 1955. Supersedes No. 5, dated October 14, 1953. Major changes: 1. Raises procedure turn altitude to 1,900' and minimum altitude over facility to 1,490' account 878' mean sea level stack 3.5 miles SW of range station. 2. Procedure turn limited to 10 miles. 3. Adds straight-in minimum. 4. Missed approach raised to 2,600' due to 1,620' mean sea level tower 7.2 miles SE of airport.	Columbia VOR	233—12.0	2,200	S side W course: 278° outbound. 098° inbound. 1,900' within 10 miles.	1,400	089—3.9	2 engines or less T-dn C-d C-n S-10 d n A-dn	300-1 500-1 500-1½ 400-1 400-1½ 800-2	NA NA NA NA NA NA	Within 3.9 miles, climb to 2,600' on E course within 25 miles.
ELLENSBURG, WASH. Bowers Field, 1,700'. SBMRAZ-DTV ELN. Procedure No. 1. Amendment No. 6. Effective: January 22, 1955. Supersedes amendment No. 5 dated September 12, 1952. No major changes.	Ellensburg VOR	215—1.5	5,500	S side E course:* 049° outbound. 229° inbound. 5,500' within 10 miles. Not authorized beyond 10 miles.	4,000	279—2.0	All aircraft T-dn C-dn A-dn	1,000-1 1,500-2 1,500-3	1,000-1 1,500-2 1,500-3	Within 3.0 miles, turn left climb to 5,500' on E course ELN-LFR within 10 miles, 7,000' within 25 miles. *Procedure turn S for more favorable terrain. CAUTION: 4,000' terrain 10 miles NE of ELN-LFR.
MEMPHIS, TENN. Municipal, 269'. SBRAZ-DTV MEM. Procedure No. 2. Amendment—Original April 17, 1953.	PROCEDURE CANCELED EFFECTIVE JANUARY 22, 1955, due to lack of utilization.									

LFR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
PENDLETON, OREG. Pendleton, 1,493'. SBRAZ-DTV PDT. Procedure No. 1. Amendment No. 8. Effective January 22, 1955. Supersedes Amendment No. 7 dated December 23, 1953. Major changes: New format.	Pendleton VOR	072—7.0	4,000	N side of E course: % 066° outbound. 246° inbound. 3,000' within 10 miles.	*2,400	258—2.0	2 engines or less			Within 2.0 miles climb to 4,300' on W course Pendleton LFR within 25 miles. *Descent to 2,000' authorized on final after passing Pendleton LOM; if Pendleton LOM not identified, maintain 2,400' until reaching Pendleton LFR. #Straight-in landing minimums applicable only if Pendleton LOM received. % Procedure turn N for more favorable terrain.
	Cabbage Hill FM	301—12.0	4,800				T-dn	300-1	300-1	
	Athena Intersection (final)	236—14.0	2,400				C-dn	500-1	500-1	
	Pendleton LOM (final)	235—3.0	*2,000				#S-dn	400-1	400-1	
							Runway 25 A-dn	800-2	800-2	
							More than 2 engines			
							T-dn	----------	200-½	
							C-dn	----------	500-1½	
							#S-dn	----------	400-1	
							Runway 25 A-dn	----------	800-2	
TOLEDO, WASH. Toledo-Winlock, 371'. BMRLZ-DTV TDO. Procedure No. 1. Amendment No. 1. Effective January 22, 1955. Supersedes amendment original dated March 28, 1952. Major changes: Distance facility to airport corrected to CGS information; portion of missed approach deleted; deviation note deleted.	----------	----------	----------	W side N course:* 357° outbound. 177° inbound. 3,500' within 10 miles. Not authorized beyond 10 miles.	2,000	235—2.9	All aircraft			Within 2.5 miles turn right, climb to 5,000' on N course within 10 miles of station. *All turns on W side N course. ADF procedure not authorized.
							T-dn	300-1	300-1	
							C-dn	1,000-2	1,000-2	
							A-dn	1,500-2	1,500-2	
WINSLOW, ARIZ. Municipal, 4,987'. SBRAZ-VDT INW. Procedure No. 1. Amendment No. 6. Effective January 22, 1955. Supersedes Amendment 5 dated August 17, 1954. Major changes: Show straight-in minimums for aircraft with stall speeds of 75 miles per hour or less and add caution note for rate of descent. Delete caution note for obstruction no longer in revised final approach area.	----------	----------	----------	W side N course: 340° outbound. 160° inbound. 7,000' within 10 miles.	5,600	160—1.5	2 engines or less			Within 1.5 miles, climb to 7,000' on E course within 25 miles. *CAUTION: 663 feet per minute at 90 miles per hour.
							T-dn	300-1	300-1	
							C-dn	500-2	600-2	
							S-dn 17	*400-1	600-2	
							A-dn	800-2	800-2	
							More than 2 engines			
							T-dn	----------	300-1	
							C-dn	----------	600-2	
							A-dn	----------	800-2	

2. The automatic direction finding procedures prescribed in § 609.8 are amended to read in part:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If an ADF instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft: 75 m. p. h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
ALBUQUERQUE, N. MEX. Kirtland Air Force Base, Municipal, 5,330'. Alameda—MHW AMH. Procedure No. 1. Amendment No. 1. Effective January 22, 1955. Supersedes Amendment original dated July 17, 1951. Major changes: New format.	Albuquerque LFR	340—15.0	8,000	W side of course: 304° outbound. 124° inbound. 8,000' within 10 miles.	7,000	124—10.0	2 engines or less			Within 10 miles, climb to 7,000' on S course of ABQ LF range within 25 miles. Alternate missed approach: When directed by ATC turn right and climb to 10,000' on W course ABQ LFR within 25 miles. CAUTION: Terrain exceeding 8,000' in E sectors ABQ LFR. All turns to be made W.
	Albuquerque VOR	036—14.0	8,000				T-dn	300-1	300-1	
							C-dn	800-2	800-2	
							A-dn	800-2	800-2	
							More than 2 engines			
							T-dn	----------	200-½	
							C-dn	----------	800-2	
							A-dn	----------	800-2	
COLUMBUS, GA. Muscogee County, 397'. LOM-CS. LMM-SG. Procedure No. 1. Amendment No. 4. Supersedes Amendment No. 3, February 2, 1953. January 22, 1955. Major changes: Revises initial approaches. Changes altitude over LMM. Changes missed approach. Deletes 4-engine straight-in minima.	Columbus LFR*	353—11.0	2,000	S side of course: 232° outbound. 052° inbound. 2,000' within 10 miles of LOM.	2,000 over LOM	LOM 6.8	2 engines or less			Within 0.8 mile of LMM climb to 2,000' on course of 052° within 25 miles. CAUTION: Tower 702 mean sea level 1 mile SE final approach track between LOM and LMM. * To LOM.
	Columbus BVOR*	233—11.0	2,000				T-dn	300-1	300-1	
							C-dn	500-1	500-1	
	Marvyn Intersection*	097—15.0	2,000		1,100 over LMM	LMM 0.8	A-dn	800-2	800-2	
						052°	More than 2 engines			
							T-dn	----------	200-½	
							C-dn	----------	500-1½	
							A-dn	----------	800-2	
LEXINGTON, KY. Blue Grass, 978'. BH-LEX. Procedure No. 1. Amendment No. 6. Effective date: January 22, 1955. Supersedes Amendment No. 5 dated February 10, 1952. Major changes: Transitions added. Procedure turn limited to 10 miles. Distance-facility to airport revised. Item 6 revised. Straight-in minima established. Caution note deleted.	Lexington VOR	289—10	2,300	S side of course: 222° outbound. 042° inbound. 2,300' within 10 miles.	1,500	042—1.9	2 engines or less			Within 1.9 miles, climb to 2,300' on 042° within 15 miles or, when requested by ATC, make climbing left turn to 2,300' and return to Lexington BH.
	Frankfort Intersection	133—24	2,300				T-dn	300-1	300-1	
							C-dn	400-1	500-1	
	Georgetown LF Intersection.	192—18	2,300				S-dn			
							4	400-1	400-1	
	Intersection bearing 042° to Lexington BH and Lexington VOR radial 264°.	042—6	1,500 (final)				A-dn	800-2	800-2	
							More than 2 engines			
							T-dn	----------	200-½	
							C-dn	----------	500-1½	
							S-dn			
							4	----------	400-1	
	Richmond Intersection	326—22	2,300				A-dn	----------	800-2	
PENDLETON, OREG. Pendleton, 1,493'. LOM-PDT. Procedure No. 1. Amendment No. 1. Effective January 22, 1955. Supersedes original dated December 20, 1953. Major changes: New format; correct course and distance from Cabbage Hill FM.	Pendleton VOR	069—33.0	4,000	NW side of NE course: 040° outbound. 220° inbound. 3,000' within 10 miles.	2,400	249—4.7	2 engines or less			Within 4.7 miles climb to 4,000' on W course Pendleton LFR within 25 miles. Alternate missed approach (when requested by ATC) within 4.7 miles climb to 4,000' on 233° radial from Pendleton VOR within 25 miles.
	Pendleton LFR	062—3.0	4,000				T-dn	300-1	300-1	
							C-dn	500-1	500-1	
	Athena Intersection	234—11.0	4,000				S-dn	400-1	400-1	
							Runway 25			
	Cabbage Hill FM	314—11.0	4,800				A-dn	800-2	800-2	
							More than 2 engines			
	Intersection S course Walla Walla LFR and 040° bearing from LOM-PD.	220—15.0	4,000				T-dn	----------	200-½	
							C-dn	----------	500-1½	
							S-dn	----------	400-1	
							Runway 25			
							A-dn	----------	800-2	

3. The very high frequency omnirange procedures prescribed in § 609.9 (a) are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If a VOR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft: 75 m. p. h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
BILLINGS, MONT. Billings Municipal, 3,612'. BVOR-BIL. Procedure No. 1. Original Effective January 22, 1955. Major changes: None; new procedure.	Billings LFR	248—6.0	5,000	S side W course: 248° outbound. 068° inbound. 5,500' within 10 miles. Not authorized beyond 10 miles.	4,700	077—3.7	2 engines or less			Within 3.7 miles, climb to 5,000' on course 055° from Billings VOR within 25 miles.
	Park City FM	068—15.0	5,200				T-dn	300-1	300-1	
	Nibbe FM	235—31.0	5,000				C-d	400-1	500-1	
	Lavina FM	150—36.0	6,000				C-n	400-2	500-2	
							S-d	400-1	400-1	
							S-n	400-2	400-2	
							Runway 7 A-dn	800-2	800-2	
							More than 2 engines			
							T-dn		300-1	
							C-d		500-1½	
							C-n		500-2	
							S-d		400-1	
							S-n		400-2	
							Runway 7 A-dn		800-2	
BROWNSVILLE, TEX. Rio Grande Valley International, 22'. BVOR-BRO. Procedure No. 1 Amendment No. 1. Effective: January 22, 1955. Supersedes: Original May 15, 1953. Major changes: Adds transitions from Los Fresnos FM and BRO LOM. Changes missed approach direction. Reduces night straight-in visibility for more than 2 engine aircraft.	Brownsville LFR	105—4.0	1,200	N side of course: 092° outbound. 242° inbound. 1,200' within 10 miles.	600	242—2.5	2 engines or less			Within 2.6 miles, climb to 1,600' on radial 282° within 25 miles. CAUTION: 156' water tank 0.5 miles W of airport.
	Los Fresnos FM	140—12.0	1,200				T-dn	300-1	300-1	
	Brownsville LOM	140—4.5	1,200				C-dn	400-1	500-1	
							S-26 dn	400-1	400-1	
							A-dn	800-2	800-2	
							More than 2 engines			
							T-dn		200-½	
							C-dn		500-1½	
							S-26 dn		400-1	
							A-dn		800-2	
HOUSTON, TEX. International, 50'. BVOR-HOU. Procedure No. 1. Amendment original. Effective date: December 23, 1954. Major changes: New procedure.	HOU LFR	314—2.0	1,200	W side of course: 305° outbound. 125° inbound. 1,700' within 10 miles of HOU FM.	HOU FM 1,500*	From HOU FM 125—5.6	2 engines or less			Within 5.6 miles of HOU FM, climb to 1,700' on radial 133° within 15 miles. *If Houston FM not identified on final, descent below 1,500' not authorized.
	Fairbanks Intersection (final)	125—10.0 to HOU FM	1,500				T-dn	300-1	300-1	
							C-dn	400-1	500-1	
							S-dn 12	400-1	400-1	
							More than 2 engines			
							T-dn		200-½	
							C-dn		500-1½	
							S-dn 12		400-1	
							All aircraft			
							A-dn	800-2		
LEWISTOWN, MONT. Lewistown, 4,209'. BVOR-LWT. Procedure No. 1. Original. Effective: January 22, 1955.	Standard FM (final)	091—25.0	5,000	S side course: 251° outbound. 091° inbound. 6,000' within 10 miles.	5,000	073—6.3	2 engines or less			Within 6.3 miles turn right climb to 6,000' on radial 271° within 25 miles LWT/VOR.
	Lewistown LFR	239—4.0	6,000				T-dn	300-1	300-1	
							C-dn	700-2	700-2	
							S-dn	600-1	600-1	
							Runway 7 A-dn	800-2	800-2	
							More than 2 engines			
							T-dn		300-1	
							C-dn		700-2	
							S-dn		600-1	
							Runway 7 A-dn		800-2	

VOR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility: class and identification; procedure No.; effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance, facility to airport	Ceiling and visibility minimums			If visual contact not established at authorized landing minimums after passing facility within distance specified, or if landing not accomplished
							Condition	Type aircraft: 75 m. p. h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
LEXINGTON, KY. Blue Grass, 978'. BVOR-LEX. Procedure No. 1. Amendment No. 1. Effective date: January 22, 1955. Supersedes amendment original dated February 10, 1952. Major changes: Procedure turn limited to 10 miles. Caution note deleted.	Lexington BH	109—10	2,300	N side of course: 124° outbound. 304° inbound. 2,300' within 10 miles.	1,800	304—8.4	2 engines or less T-dn C-dn A-dn	300-1 500-1 800-2	300-1 500-1 800-2	Within 8.4 miles, climb to 2,300' on 304° radial within 10 miles or, when requested by ATC, make climbing left turn and return to Lexington VOR at 2,300'.
							More than 2 engines T-dn C-dn A-dn	---------- ---------- ----------	200-½ 500-1½ 800-2	
LOUISVILLE, KY. Standiford Field, 497'. BVOR-LOU. Procedure No. 1. Amendment No. 1. Effective date: January 22, 1955. Supersedes Amendment original dated September 15, 1953. Major changes: Missed approach revised. Transitions added.	Louisville LFR	160—9	2,000	N side of course: 121° outbound. 301° inbound. 2,000' within 10 miles.	1,500	301—10	2 engines or less T-dn C-dn S-dn 29 A-dn	300-1 600-2 600-1½ 800-2	300-1 600-2 600-1½ 800-2	Make a left climbing turn and return to the VOR at 2,000'. Alternate missed approach when directed by ATC; make a right climbing turn and return to VOR at 2,000'.
	Bardstown Intersection	347—20	2,000				More than 2 engines T-dn C-dn S-dn 29 A-dn	---------- ---------- ---------- ---------- ----------	200-½ 600-2 600-1½ 800-2	
	Lebanon Intersection	008—16	2,000							
LOVELOCK, NEV. Lovelock Airport, 3,903'. BVOR-LOL. Procedure No. 1. Amendment No. 2. Effective: January 22, 1955. Supersedes Amendment 1 dated April 15, 1953. Minor changes: Delete initial approach from Desert Peak Intersection.	Intersection radial 061° LOL VOR and NW course LOL LFR.	221—17.0	9,000	E side course:* 345° outbound. 165° inbound. 7,500' within 10 miles. Not authorized beyond 10 miles.	5,800	220—5.0	2 engines or less T-dn C-dn A-dn	300-1 700-1 800-2	300-1 800-1 800-2	Within 5 miles turn left immediately and return to LOL VOR on course of 040° (inbound) climbing to 7,500' on course of 345° (outbound) within 15 miles and recross station southbound at a minimum of 9,000'. *Procedure turn right side of course for more suitable terrain.
	Intersection radial 350° LOL VOR and NW course LOL LFR (Rye Patch Intersection).	170—33.0	10,000				More than 2 engines T-dn C-dn A-dn	---------- ---------- ----------	200-½ 800-1½ 800-2	
MEDFORD, OREG. Medford, 1,330'. BVOR-MFR. Procedure No. 1. Amendment No. 3. Effective: January 22, 1955. Supersedes No. 2 dated August 5, 1954. Added approach from Gold Hill Intersection.	Medford LFR	318—5.0	6,000	E side of course:* 333° outbound. 153° inbound. 6,000' within 10 miles.	4,000	145—7.2	All aircraft T-dn #C-dn A-dn	300-1 1,000-2 1,000-2	300-1 1,000-2 1,000-2	Within 7.2 miles, execute climbing right turn, climb outbound to 6,000' on 333° radial within 25 miles of MFD VOR. Procedure turn E side for more favorable terrain. *Procedure turn E due high terrain W. #NOTE. Landing minimums authorized 800-2 all aircraft day only provided top of stratus overcast in Medford Valley is not in excess of 3,500' mean sea level. Aircraft must be on top and shall not descend below 3,500' until after passing Medford VOR inbound. Alternate minimums: 1,000-2.
	Evans Creek FM (final)	153—9.0	4,000							
	Intersection W course MFR LFR and 215° radial MFR-VOR (Gold Hill Intersection).	025—7.0	6,000							
PENDLETON, OREG. Pendleton, 1,493'. BVOR-PDT. Procedure No. 1. Amendment No. 2. Effective January 22, 1955. Supersedes amendment No. 1 dated December 23, 1952. Change to: New format.	Pendleton LFR	252—7.0	4,000	N side W course:* 250° outbound. 070° inbound. 3,500' within 10 miles.	2,500	070—4.5	2 engines or less T-dn C-dn S-dn Runway 7 A-dn	300-1 500-1 400-1 800-2	300-1 500-1 400-1 800-2	Within 4.5 miles, execute climbing left turn climb outbound to 4,000' on 250° radial Pendleton VOR, within 25 miles. *Procedure turn N for more favorable terrain.
	Pendleton LOM	249—10.0	4,000							
	Intersection S course Walla Walla LFR and 061° radial Pendleton VOR.	241—21.0	4,000							
	Cabbage Hill FM	296—17.0	4,800				More than 2 engines T-dn C-dn S-dn Runway 7 A-dn	---------- ---------- ---------- ---------- ----------	200-½ 500-1½ 400-1 800-2	

4. The very high frequency omnirange procedures prescribed in § 609.9 (b) are amended to read in part:

TVOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If a TVOR instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below.

City and State; airport name, elevation; facility; class and identification; Procedure No. (TVOR); effective date	Initial approach to facility from—	Course and distance	Minimum altitude (ft.)	Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude over facility on final approach course (ft.)	Course and distance from int. runway center line extended and final course to approach end of runway	Ceiling and visibility minimums			If visual contact not established at TVOR, or if landing not accomplished
							Condition	Type aircraft		
								75 m. p. h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11
JOHNSTOWN, PA. Johnstown, 2,284'. BVOR-DTV. 113 mc JST. Procedure No. —. TVOR-5. Amendment "Original." Effective date: January 22, 1955.				S side of course: 221° outbound. 041° inbound. 3,700' within 10 miles.	2,700	045—0.5	2 engines or less			Climb to 4,500' on radial 041° within 15 miles.
							T-dn	300-1	300-1	
							C-dn	400-1	500-1	
							S-dn			
							S	400-1	400-1	
							A-dn	800-2	800-2	
							More than 2 engines			
							T-dn	----------	200-½	
							C-dn	----------	500-1½	
							S-dn			
							S	----------	400-1	
							A-dn	----------	800-2	

5. The instrument landing system procedures prescribed in § 609.11 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, and courses are magnetic. Distances are in statute miles unless otherwise indicated. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation.
If an ILS instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure authorized by the Administrator for Civil Aeronautics for such airport. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below:

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope intercept ion inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums			If visual contact not established upon descent to authorized landing minimums or if landing not accomplished
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	Type aircraft		
										75 m.p.h. or less	More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11	12	13
GRAND JUNCTION, COLO. Walker Field, 4,858'. ILS-GJT. Procedure No. 1. Amendment No. 9. Effective: January 22, 1955. Supersedes amendment No. 8 dated January 26, 1953. Major changes: Substitute Loma Intersection in lieu of Loma MHW; revises notes.	GJT VOR	Loma* Intersection.	342—15.0	8,100	W side NW course: 250° outbound. 130° inbound. 5,000' within 5 miles beyond Loma Intersection.	6,200	6,060—4.5	5,065—0.7	2 engines or less			Turn right 180° climb to 8,000' on NW course ILS to Loma intersection. If second approach not desired proceed to GJT-VOR from Loma Intersection climbing to 10,000'. #800-2 take-off minimums required for twin engine aircraft and 800-2 straight-in landing minimums required all aircraft when glide path or approach lights inoperative. AIR CARRIER NOTES: Sections 29 (A) and 29 (B) of the operations specifications not applicable. Sliding scale applicable to straight-in minimum only. *Loma Intersection—Intersection NW course ILS and 342° magnetic course from GJT VOR.
	GJT VOR	ILS LMM	056—14.0	10,000					#T-dn	500-2	500-2	
									C-dn	1,000-2	1,000-2	
									S-dn			
									#Runway 11	500-2	500-2	
	Intersection 227° course to GJT VOR and NW course ILS.	Loma Intersection.	299—15.0	8,000					A-dn	1,500-2	1,500-2	
									More than 2 engines			
									T-dn	----------	300-1	
									C-dn	----------	1,000-2	
									S-dn			
									#Runway 11	----------	500-2	
									A-dn	----------	1,500-2	

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope intercept ion inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums			If visual contact not established upon descent to authorized landing minimums or if landing not accomplished
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	Type aircraft: 75 m.p.h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11	12	13
NEWPORT NEWS, VA. Patrick Henry, 41'. ILS-NNW. LOM-NN. Combination ILS-ADF. Procedure No. 1. Amendment No. "Original." Effective date: December 23, 1954.	Langley LFR	LOM	284—7	1,300	W side SW course:* 244° outbound. 064° inbound. 1,300' within 5 miles.	ILS 1,300 ADF 800	965—3.1	No middle marker or LMM	2 engines or less			Within 3.1 miles after passing LOM (ADF) make a left climbing turn and proceed to Dendron MHW at 1,500'. *Procedure turn W to avoid aircraft holding on Eclipse FM. AIR CARRIER NOTE: Paragraph 29 of Operations Specifications not applicable.
	Norfolk LFR	LOM	321—25	1,500					T-dn	300-1	300-1	
	Bacons Castle Intersection.	LOM	097—6	1,300					C-dn	400-1	500-1	
									S-dn 6 ILS	400-¾	400-¾	
									ADF	400-1	400-1	
									A-dn	800-2	800-2	
									More than 2 engines			
									T-dn	----------	200-½	
									C-dn	----------	500-1½	
									S-dn 6 ILS	----------	400-¾	
									ADF	----------	400-1	
									A-dn	----------	800-2	
PENDLETON, OREG. Pendleton, 1,493'. ILS-PDT. Procedure No. 1. Amendment No. 1. Effective: January 22, 1955. Supersedes original dated December 23, 1953. Major changes: New format; correct course and distance from Cabbage Hill FM.	Pendleton VOR	LOM	069—10.0	4,000	N side of course: 069° outbound. 249° inbound. 3,000' within 5 miles of LOM. 4,500' within 10 miles of LOM. Not authorized beyond 10 miles.	2,750	2,750—4.7	1,725—0.7	2 engines or less			Climb to 4,000' on W course of PDT LFR within 25 miles. Alternate missed approach (when requested by ATC) climb to 4,000' on 283° radial from Pendleton VOR within 25 miles. *After intercepting glide path at 4,500' descent to cross the outer marker at 2,750' is authorized. NOTE: No approach lights installed. AIR CARRIER NOTE: Section 29 (A) of the operations specification not applicable.
	Pendleton LFR	LOM	062—3.0	4,000					T-dn	300-1	300-1	
	Athena Intersection	LOM	234—11.0	4,000					C-dn	500-1	500-1	
	Cabbage Hill FM	LOM	314—11.0	4,800					S-dn Runway 25	300-¾	300-¾	
	Athena Intersection to intersection S course Walla Walla LFR and E course Pendleton ILS.		182—3.5	4,500					A-dn	600-2	600-2	
									More than 2 engines			
									T-dn	----------	200-½	
									C-dn	----------	500-1½	
									S-dn Runway 25	----------	300-¾	
	Intersection S course Walla Walla LFR and E Course Pendleton ILS (final).	LOM	249—10.0	*4,500					A-dn	----------	600-2	
PITTSBURGH, PA. Allegheny County, 1,252'. ILS-AGC. MHW-MKP. Combination ILS-ADF. Amendment No. 5. Effective date: January 22, 1955. Supersedes Amendment No. 4 dated November 27, 1954. Major changes: Direction of procedure turn revised.	Pittsburgh LFR	McKeesport MHW.	091—8	2,600	S side of course: 095° outbound. 275° inbound. 2,600' within 10 miles. Procedure turn conducted S to avoid Greater Pittsburgh traffic.	ILS 2,600 ADF 2,600 over McKeesport MHW	2,559—4.7	1,460—0.7	2 engines or less			Within 6.3 miles after passing McKeesport MHW climb to 2,500' proceeding to Cecil Radiobeacon. AIR CARRIER NOTES: Section 29 (a) not applicable. ILS—Intercept glide slope at 3,000' over McKeesport MHW or 2,600' between McKeesport MHW and the ILS OM.
	Mt. Pleasant LF Intersection.	McKeesport MHW.	322—17	2,500					T-dn	300-1	300-1	
	New Alexandria Radiobeacon.	McKeesport MHW.	263—23	2,600					C-dn	500-1	500-1	
	Butler Radiobeacon	McKeesport MHW.	166—25	2,900					S-dn 27 ILS	300-¾	300-¾	
	River Radiobeacon	McKeesport MHW.	125—18	2,900					ADF	400-1	500-1	
	Pittsburgh VOR	McKeesport MHW.	072—14	2,600					A-dn ILS	600-2	600-2	
	Cecil Radiobeacon	McKeesport MHW.	087—20	2,600					ADF	800-2	800-2	
	McKeesport MHW	ILS OM	275—1.5	2,600 (final)					More than 2 engines			
									T-dn	----------	200-½	
									C-dn	----------	500-1½	
									S-dn 27 ILS	----------	300-¾	
									ADF	----------	500-1	
									A-dn ILS	----------	600-2	
									ADF	----------	800-2	

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope interception inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums			U visual contact not established upon descent to authorized landing minimums or if landing not accomplished
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	Type aircraft: 75 m.p.h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11	12	13
PITTSBURGH, PA. Greater Pittsburgh 1,168'. ILS-GPB. MHW-RER. Combination ILS-ADF. Procedure No. 2. Amendment No. 2. Effective date: January 22, 1955. Supersedes Amendment No. 1 dated January 19, 1954. Major changes: ILS minimums reduced; approach lights and glide slope installed. Procedure turn and glide slope interception altitude established to conform to glide slope altitude over OM. Procedure changed to No. 1.	New Alexandria MHW	River MHW	280—36	3,000	N side E course ILS 097° outbound. 277° inbound. 3,000' within 10 miles of River MHW. Not authorized beyond 10 miles.	ILS 3,000 ADF 2,400 Over River MHW	River MHW 2,950—6.5	Parkway MHW 1,380—.7	2 engines or less			6.5 miles after passing River MHW, climb to 2,500' (or higher altitude if directed by ATC) on W course ILS or 277° course to Clinton MHW. *400-1¼ required with glide slope inoperative. NOTE: Center line modified type B approach lighting.
	Butler MHW	River MHW	310—16	2,900					T-dn	300-1	300-1	
	McKeesport MHW	River MHW	306—18	2,900					C-dn	500-1	500-1	
	Pittsburgh LFR	River MHW	336—11	2,900					S-dn 28 *ILS	200-½	200-½	
	Pittsburgh VOR	River MHW	356—14	2,900					ADF	400-1	400-1	
	Cecil MHW	River MHW	028—12	2,900					A-dn ILS	600-2	600-2	
	Clinton MHW	River MHW	097—13	2,900					ADF	800-2	800-2	
	Radar terminal area transition altitudes.	River MHW	All sectors within 10 miles	2,500					More than 2 engines			
			10-40 miles	3,000 or MEA when lower					T-dn	----------	200-½	
									C-dn	----------	500-1½	
									S-dn 28 *ILS	----------	200-½	
									ADF	----------	400-1	
									A-dn ILS	----------	600-2	
									ADF	----------	800-2	
TOLEDO, OHIO. Toledo Express, 684'. ILS TLX. LOM TL. Combination ILS-ADF. Procedure No. 1. Amendment "Original." Effective date: January 15, 1955.	Toledo LFR	LOM	290—25	2,000	S side of course: 249° outbound. 069° inbound. 2,000' within 10 miles.	ILS 2,000 ADF 1,500 over LOM	2,000—5.0	865—0.6	2 engines or less			Make climbing left turn to 2,000' and return to the Toledo LOM or when requested by ATC: (1) Climb straight ahead on course (069° to 2,100' within 20 miles; (2) make a climbing right turn to 2,000' and proceed to the Waterville VOR or Toledo LFR. CAUTION: Building 865' mean sea level 1¾ miles S of middle marker.
	Waterville VOR	LOM	302—16	2,000					T-dn	300-1	300-1	
	Adrian Intersection	LOM	167—25	2,000					C-dn	500-1	500-1	
	Morenci Intersection	LOM	133—23	2,000					S-dn 7 ILS	300-¾	300-¾	
	Dundee Intersection	LOM	202—31	2,000					ADF	500-1	500-1	
	Petersburg Intersection	LOM	267—25	2,000					A-dn ILS	600-2	600-2	
	Harbor View Intersection (NE (back) course ILS or 249° bearing on Toledo LOM and N course Toledo LFR or Waterville VOR radial 22°).	LOM	249—21	2,100					ADF	800-2	800-2	
									More than 2 engines			
									T-dn	----------	200-½	
									C-dn	----------	500-1½	
	McClure Intersection (024° bearing to Toledo LOM and Waterville radial 254°).	LOM	024—15	2,000					S-dn 7 ILS	----------	300-¾	
									ADF	----------	500-1	
									A-dn ILS	----------	600-2	
									ADF	----------	800-2	

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

City and State; airport name, elevation; facility; class and identification; procedure No.; effective date	Transition to ILS				Procedure turn (—) side of final approach course (outbound and inbound); altitudes; limiting distances	Minimum altitude at glide slope interception inbound (ft.)	Altitude of glide slope and distance to approach end of runway at—		Ceiling and visibility minimums			If visual contact not established upon descent to authorized landing minimums or if landing not accomplished
	From—	To—	Course and distance	Minimum altitudes (ft.)			Outer marker	Middle marker	Condition	Type aircraft: 75 m. p. h. or less	Type aircraft: More than 75 m. p. h.	
1	2	3	4	5	6	7	8	9	10	11	12	13
TOLEDO, OHIO. Toledo Express, 684'. ILS-TLX. LMM-LX VOR-VWV. Combination: ILS (back course) and ADF (using Holland Intersection). Procedure No. 2. Amendment "Original." Effective date: January 15, 1955.	Harbor View Intersection.	LMM	249—16	2,100	N side of course: 069° outbound. 249° inbound. 2,100' within 10 miles of Holland Intersection.	No glide slope or markers. Descend to landing minimums after passing Holland Intersection. Minimum altitude over Holland Intersection 2,100'. Distance and bearing from Holland Intersection to Runway 25, 6.3 miles, 249°.			2 engines or less			Climb straight ahead to 2,000' on 249° course to Toledo LOM. CAUTION: Building 863' mean sea level 1¼ miles S of middle marker.
	Harbor View Intersection (NE (back) course ILS or 249 bearing on Toledo LMM and N course Toledo LFR or Waterville VOR radial 022°).	Holland Intersection.	249—8	2,100 (final)					T-dn	300-1	300-1	
									C-dn	500-1	500-1	
	Holland Intersection (NE (back) course ILS or 249 bearing on LMM and Waterville 351° radial).								S-dn 25 ILS	400-1	400-1	
									ADF	500-1	500-1	
									A-dn	800-2	800-2	
									More than 2 engines			
									T-dn	----------	200-½	
									C-dn	----------	500-1½	
									S-dn 25 ILS	----------	400-1	
									ADF	----------	500-1	
									A-dn	----------	800-2	

These procedures shall become effective on the dates indicated in Column 1 of the procedures.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

[SEAL]

F. B. LEE,
Administrator of Civil Aeronautics.

[F. R. Doc. 54-10088; Filed, Dec. 20, 1954; 8:55 a. m.]

TITLE 32—NATIONAL DEFENSE

Subtitle A—Office of the Secretary of Defense

PART 42—MORTGAGE INSURANCE FOR SERVICEMEN TO AID IN CONSTRUCTION OR PURCHASE OF HOMES

Sec.
42.1 Purpose.
42.2 Definitions.
42.3 Policy.
42.4 Forms.

AUTHORITY: §§ 42.1 to 42.4 issued under sec. 124, 68 Stat. 590.

§ 42.1 *Purpose.* This part sets forth policy guidance to the military departments in implementation of section 124, 68 Stat. 590; to provide for the delegation of authority conferred upon the Secretary of Defense by said law to issue certificates of eligibility and to prescribe other necessary instructions.

§ 42.2 *Definitions.* The following definitions are applicable:

(a) "Serviceman" means a person to whom the Secretary of Defense or his designee has issued a certificate of eligibility indicating that such person is serving on active duty in the Armed Forces of the United States and has so served for a period of more than two years and requires housing. A person ordered to active duty for training purposes only is not an eligible serviceman.

(b) "Period of ownership by serviceman" as defined by the FHA means that period of eligibility during which the military service concerned is required to pay the mortgage insurance premiums to the Federal Housing Administration. For purposes of administration by the Department of Defense this period shall commence with the date the FHA endorses a loan for mortgage insurance hereunder and shall terminate when the Secretary of Defense or his designee furnishes the Commissioner of the FHA with certification that the service concerned will no longer be liable for the mortgage insurance premiums by reason of the death, discharge or separation from active duty (except when reenlisted the next day), termination of ownership of the property covered by such loan or other termination of eligibility by the serviceman, or at the request of the serviceman.

(c) "Housing" as used herein means a dwelling unit designed for a one family residence for occupancy by the serviceman as his home.

(d) "FHA" as used herein means the Federal Housing Administration.

§ 40.3 *Policy.* (a) It is the policy of the Department of Defense that the servicemen's home loan provisions of 68 Stat. 590 shall be made available to members of the armed forces eligible therefor.

(b) The respective military services will issue a certificate of eligibility to any member of the armed forces currently serving on active duty who has served for more than two years, and who certifies that he requires housing. No certificate may be issued to an individual called to active duty for training purposes only. A further certificate may be issued when the period of ownership has terminated, a serviceman surrenders an expired certificate of eligibility or when he certifies an unused or expired certificate has been lost or destroyed.

(c) Where mortgage insurance premiums are currently being paid by a military service on a serviceman's loan, an additional certificate will not be issued.

(d) If a serviceman has acquired a loan under the terms of this part, he may be issued, subject to paragraph (c) of this section, an additional certificate of eligibility only in those instances where,

as a result of military orders or situations of an emergent nature, the denial of such certificate would cause hardship or an inequity to the serviceman as determined by the Secretary of the military department concerned.

(e) Payments for all mortgage insurance premiums on loans will be made by a designated activity of the military departments following receipt of vouchers forwarded directly to it by the Federal Housing Administration.

(f) The purchase of property by a serviceman receiving a certificate of eligibility under this part will be governed by applicable FHA regulations.

(g) The authority vested in me under section 124, 68 Stat. 590 to issue certificates of eligibility and termination of eligibility is hereby delegated to the Secretaries of the Army, Navy and Air Force for their respective departments and to Commanders of echelons within each of the services where personnel records are maintained.

§ 40.4 *Forms.* (a) DD Form 802,[1] Request for and Certificate of Eligibility, will be used to make a request for Certificate of Eligibility, Certification by the Military Service and recording of the FHA action as to indorsement or rejection.

(b) DD Form 803, Certificate of Termination, will be used by the military services for the purpose of notifying FHA of termination of ownership.

C. E. WILSON,
Secretary of Defense.

[F. R. Doc. 54-10070; Filed, Dec. 20, 1954; 8:50 a. m.]

Chapter IV—Joint Regulations of the Armed Forces

Subchapter A—Armed Services Procurement Regulation

PART 400—GENERAL PROVISIONS

MISCELLANEOUS AMENDMENTS

1. Section 400.300 is amended by the addition of paragraph (f) responsible prospective contractors. It now reads as follows:

§ 400.300 *Scope of subpart.* This subpart sets forth the general procurement policies of the Departments with respect to (a) methods of procurement, (b) sources of supply (including governmental and foreign sources), (c) types of contracts, (d) specifications, (e) place of delivery, and (f) responsible prospective contractors.

2. Section 400.306 is amended by revision of § 400.306–1 to make it clear that shipments which do not equal a carload or truckload lot will be made f. o. b. destination on a mandatory basis only where a contract will require no shipment to a single destination which equals a minimum carload or truckload lot. The foregoing is applicable only to shipments originating, and for ultimate delivery, within the continental United States. The section, as revised, reads as follows:

§ 400.306 *Place of delivery.*

§ 400.306–1 *Shipments originating within the continental United States for ultimate delivery within the continental United States.* Unless there are valid reasons to the contrary (such as, but not restricted to, industry practice, applicability of State taxes, or destination unknown) the procurement of supplies from sources and for delivery within the continental limits of the United States shall be in accordance with the following policy:

(a) When it is estimated that a contract will require no shipment to a single destination which will equal a minimum carload or truckload lot, delivery shall be made on the basis of all transportation charges paid to destination.

(b) When it is estimated that a contract will require a shipment of a minimum carload or truckload lot, delivery shall be either on the basis of (1) f. o. b. carrier's equipment, wharf, or freight station (at the Government's option) at or near contractor's plant, at a specified city or shipping point, or (2) all transportation charges paid to destination, whichever is the more advantageous to the Government. In formally advertised procurements the Invitation for Bids shall provide that bidders may bid on either or both bases set forth in this paragraph. Bids shall be evaluated on the basis of overall cost to the Government. In the absence of specific information to the contrary, a minimum carload or truckload lot shall be deemed to be one which weighs approximately 20,000 pounds.

3. Section 400.306 has been amended further by revision of § 400.306–2 to clarify with respect to shipments within the continental United States for ultimate delivery outside the Continental United States the point that such shipments may be made f. o. b. destination where the contractor's prices have been quoted on the basis of maintaining "basing points" in the United States. The revised section now reads as follows:

§ 400.306–2 *Shipments originating within the continental United States for ultimate delivery outside the continental United States.* Unless it is industry practice to quote the same price f. o. b. destination as f. o. b. origin (on a regional or nationwide basis), purchases of supplies within the continental United States for ultimate delivery to destinations outside of the continental United States, wherever possible, regardless of the quantity of the shipment, shall be made on the basis of delivery f. o. b. carrier's equipment, wharf, or freight station (at the Government's option), at or near contractor's plant, at a specified city or shipping point. Shipments included in this policy are those in which supplies are shipped directly to a port area for export or to storage areas for subsequent reshipment to a port area for export.

4. A new § 400.307 has been added setting forth a uniform policy to be followed by all purchasing activities for the purpose of determining whether a prospective contractor is "responsible" within the meaning of the Armed Services Procurement Act. Section 400.307 reads as follows:

§ 400.307 *Responsible prospective contractor.* Prior to the award of any contract for supplies or services the Contracting Officer shall determine that the prospective contractor is responsible. A responsible contractor is one which meets all of the requirements set forth in this section.

(a) Is a manufacturer, construction contractor, or regular dealer, if the contract or order calls for supplies (see § 400.201–9);

(b) Has adequate financial resources, or ability to secure such resources;

(c) Has the necessary experience, organization, and technical qualifications, and has or can acquire the necessary facilities (including probable subcontractor arrangements) to perform the proposed contract;

(d) Is able to comply with the required delivery or performance schedule (taking into consideration all existing business commitments);

(e) Has a satisfactory record of performance, integrity, judgment, and skills; and

(f) Is otherwise qualified and eligible to receive an award under applicable laws and regulations.

§ 400.307–1 *Pre-award survey.* (a) If the Contracting Officer finds that readily available information is not sufficient to enable him to determine that the prospective contractor meets all of the applicable requirements of § 400.307 he shall request a pre-award survey. A pre-award survey is a qualification check to determine that the prospective contractor is responsible. Preferably the survey should be made by technical and financial specialists in the appropriate fields, and may include an "on the spot" check of the facilities of the prospective contractor. Generally, a pre-award survey will not be necessary in determining that a prospective contractor is responsible when one or more of the following factors are applicable:

(1) The supplies required are off-the-shelf items to be obtained from a regular dealer or manufacturer.

(2) The prospective supplier has proved his reliability and capability by satisfactory performance of an existing or recent similar contract or contracts.

(3) The new purchase is an extension of a production or service currently being performed satisfactorily.

(4) The purchase is to be made from a Federal Supply Schedule.

(b) Normally, where the dollar amount of a procurement is not sufficient to justify the cost of a pre-award survey, Contracting Officers will not request such a survey. However, where a Contracting Officer has reason to believe that a prospective contractor may not be responsible, he may request a pre-award survey irrespective of the dollar amount of the procurement.

§ 400.307–2 *Experience data.* Departments are authorized to maintain such

[1] This form has been filed with the Federal Register Division. Copies are available through administrative channels of each of the military services.

records and experience data as may be deemed desirable for the guidance of Contracting Officers in the placing of new procurements. In making use of such materials, Contracting Officers shall assure themselves that the information contained therein is current. The departments are encouraged to exchange and confer concerning such records and experience data to the extent that the information contained therein will be mutually useful.

5. Section 400.606 has been deleted in its entirety and a new § 400.606 substituted therefor, as follows:

§ 400.606 *Limitations.* No firm or individual will be listed on the consolidated list for causes or under conditions other than those set forth in this subpart.

(R. S. 161; 5 U. S. C. 22. Interpret or apply 62 Stat. 21; 41 U. S. C. 151–161)

T. P. PIKE,
Assistant Secretary of Defense (Supply and Logistics).

[F. R. Doc. 54–10065; Filed, Dec. 20, 1954; 8:49 a. m.]

PART 401—PROCUREMENT BY FORMAL ADVERTISING

SUBPART D—OPENING OF BIDS AND AWARD OF CONTRACT

AWARDS; RESPONSIBLE BIDDER

Section 401.406 has been amended by deletion of the former § 401.406–1 and substitution of the following therefor.

§ 401.406 *Awards.* * * *

§ 401.406–1 *Responsible bidder.* A "responsible bidder" is a bidder who satisfies the requirements of § 400.307 of this subchapter.

(R. S. 161; 5 U. S. C. 22. Interpret or apply 62 Stat. 21; 41 U. S. C. 151–161)

T. P. PIKE,
Assistant Secretary of Defense (Supply and Logistics).

[F. R. Doc. 54–10066; Filed, Dec. 20, 1954; 8:49 a. m.]

PART 402—PROCUREMENT BY NEGOTIATION

MISCELLANEOUS AMENDMENTS

1. Section 402.101 has been amended as follows:

The list of factors to be considered by Contracting Officers in the award of negotiated contracts set forth in § 402.101 has been augmented to include consideration of whether the contractor requires Government-furnished property, machine tools, or facilities, or Government-operated test facilities; and consideration of contractor's performance in facilities located in dispersed sites. This section now reads as follows:

§ 402.101 *Negotiation as distinguished from formal advertising.* As used throughout this subchapter, negotiation means that method of procurement under which the procedures for procurement by formal advertising, as set forth in this part, are not required. Whenever supplies or services are to be procured by negotiation, price quotations, supported by statements and analyses of estimated costs or other evidence of reasonable prices and other vital matters deemed necessary by the Contracting Officer, shall be solicited from all such qualified sources of supplies or services as are deemed necessary by the Contracting Officer to assure full and free competition consistent with the procurement of the required supplies or services, in accordance with the basic policies set forth in Subpart C of Part 400 of this subchapter, to the end that the procurement will be made to the best advantage of the Government, price and other factors considered. Negotiation shall thereupon be conducted, by Contracting Officers and their negotiators, with due attention being given to the following and any other appropriate factors:

(a) Comparison of prices quoted, and consideration of other prices for the same or similar supplies or services, with due regard to production costs, including extra-pay shift, multi-shift and overtime costs, and any other factor relating to price, such as profits, cost of transportation, and cash discounts;

(b) Comparison of the business reputations, capabilities, and responsibilities of the respective persons or firms who submit quotations;

(c) Consideration of the quality of the supplies or services offered, or of the same or similar supplies or services previously furnished, with due regard to the satisfaction of technical requirements;

(d) Consideration of delivery requirements (see § 400.306 of this subchapter);

(e) Discriminating use of price and cost analyses;

(f) Investigation of price aspects of any important subcontract;

(g) Individual bargaining, by mail or by conference;

(h) Consideration of cost sharing;

(i) Effective utilization in general of the most desirable type of contract, and in particular of contract provisions relating to price redetermination;

(j) Consideration of the size of the business concern;

(k) Consideration as to whether the prospective supplier is a planned producer under the industrial mobilization program;

(l) Consideration as to whether the prospective supplier requires expansion or conversion of plant facilities;

(m) Consideration as to whether the prospective supplier is located in a surplus or scarce labor area;

(n) Consideration as to whether the prospective supplier will have an adequate supply of qualified labor;

(o) Consideration of the extent of subcontracting;

(p) Consideration of the existing and potential workload of the prospective supplier;

(q) Consideration of broadening the industrial base by the development of additional suppliers;

(r) Consideration of whether the contractor requires Government furnished property, machine tools, or facilities; or Government-operated test facilities; and

(s) Consideration of contract performance in facilities located in dispersed sites.

2. In § 402.102 paragraph (d) has been added so the revised section reads as follows:

§ 402.102 *General requirements for negotiation.* No contract shall be entered into as a result of negotiation unless or until the following requirements have been satisfied:

(a) The contemplated procurement comes within one of the circumstances permitting negotiation enumerated in Subpart B of this part;

(b) Any necessary determinations and findings prescribed in Subpart C of this part have been made;

(c) Such business clearance or approval as is prescribed by applicable Department procedures has been obtained; and

(d) The prospective contractor has been determined to be responsible in accordance with § 400.307 of this subchapter.

3. Section 402.103 has been amended by the deletion of the parenthetical phrase "(beginning with that portion of the current fiscal year during which the act is effective)". Section 402.103, as revised, reads as follows:

§ 402.103 *Records and reports of negotiated contracts.* In addition to the records and reports required by the provisions of § 400.302–3 of this subchapter, §§ 402.211–4, and 402.216–4, each Department shall maintain a record of the total value of all contracts negotiated by it during each fiscal year under each of the circumstances permitting negotiation enumerated in Subpart B of this part, and shall prepare an annual report thereon, as of the end of each fiscal year and in the form and manner to be prescribed by the Department, to be submitted to the Assistant Secretary of Defense (Supply and Logistics) for the preparation of a combined Armed Services report to be submitted to the President.

(R. S. 161; 5 U. S. C. 22. Interpret or apply 62 Stat. 21; 41 U. S. C. 151–161)

T. P. PIKE,
Assistant Secretary of Defense (Supply and Logistics).

[F. R. Doc. 54–10067; Filed, Dec. 20, 1954; 8:49 a. m.]

PART 409—BONDS AND INSURANCE

MISCELLANEOUS AMENDMENTS

1. A new § 409.403 has been added to comply with the Defense Bases Act, as amended (42 U. S. C. 1651), which requires the inclusion of a contract clause whereby the contractor agrees to provide Workmen's Compensation Insurance Coverage for United States citizens employed in connection with construction contracts performed outside the continental United States. Section 409.403 reads as follows:

§ 409.403 *Workmen's compensation insurance overseas.* The Defense Bases

Act, as amended (42 U. S. C. 1651) extends the application of the Longshoremen's and Harbor Workers' Compensation Act (33 U. S. C. 901) to United States citizens employed by certain contractors outside the continental United States. To implement the statutory requirement the following clause shall be included in all construction contracts, as defined in § 409.101–6, to be performed outside the continental United States.

WORKMEN'S COMPENSATION INSURANCE (DEFENSE BASES ACT)

The Contractor before commencing performance under this contract shall provide and thereafter maintain Workmen's Compensation Insurance or security as required by the Defense Bases Act, as amended (42 U. S. C. 1651). The Contractor further agrees to insert in all subcontracts hereunder to which the Defense Bases Act is applicable, a clause similar to this clause, including this sentence, imposing on all such subcontractors a like requirement to comply with the Defense Bases Act.

2. Section 409–501 has been amended by adding references to §§ 409.403 and 409.101–6 in § 409.501–1. Section 409.501–1, as revised, reads as follows:

§ 409.501 *Workmen's compensation and employers' liability insurance.* Compliance with applicable workmen's compensation and occupational disease statutes will be required, and the insurance policy will also include employers' liability coverage, where available. In jurisdictions where all occupational diseases are not compensable under applicable law, insurance for occupational diseases will be required under the employers' liability section of the insurance policy; however, such additional insurance will not be required where contract operations are commingled with the contractor's commercial operations so that it would be impracticable to require such coverage. The clause set forth in § 409.403 shall be included in all construction contracts, as defined in § 409.101–6 to be performed outside the continental United States.

(Sec. 1, 54 Stat. 712, as amended, sec. 201, 55 Stat. 839, 62 Stat. 20; 50 U. S. C. App. 1171, 611, 41 U. S. C. 151–161. E. O. 9001, 6 F. R. 6787, as amended by E. O. 9296, 8 F. R. 1429, 3 CFR, 1943 Com. Supp.)

T. P. PIKE,
Assistant Secretary of Defense (Supply and Logistics).

[F. R. Doc. 54–10068; Filed, Dec. 20, 1954; 8:49 a. m.]

PART 413—INSPECTION AND ACCEPTANCE

MISCELLANEOUS AMENDMENTS

1. Section 14–002 "Effective Date of Part" has been eliminated by this amendment. This revision shall be effective January 15, 1955, however, compliance with changed paragraphs is authorized upon publication hereof.

2. Section 413.101 has been amended by rewording paragraph (b) thereunder. Section 413.101, as revised, reads as follows:

§ 413.101 *General.* (a) Inspection on behalf of the Government shall be conducted in all cases prior to final acceptance, except as otherwise permitted by this part. Inspection shall be accomplished by or under the supervision of Government personnel. Except as otherwise provided in the contract, test requirements may be performed in the contractor's or subcontractor's laboratory or any other commercial laboratory acceptable to the Government. The contractor may be required under the terms of the contract to establish and maintain an acceptable inspection system to assure compliance with contract specifications with a minimum of Government inspection supervision. A manufacturer's certificate or other statement of quality or quantity may be considered, at the discretion of the Government, a proper element in determining whether supplies or services are in conformity with the contract. In no event, however, shall the contract preclude the right of the Government to exercise its responsibility for inspection.

(b) The type and extent of inspection which shall be performed are dependent on the particular needs of the procurement.

For example, on items which would involve small losses in the event of defects and which would probably be replaced by suppliers without contest, inspection may consist only of checks for identity, quantity, and shipping damage. Specific requirements as to the inspection of "qualified products" are set forth in §§ 401.503–2 and 401.503–3 of this subchapter.

3. Section 413.102 has been amended as follows:

§ 413.102 *Responsibility for inspection.* Inspection or the arrangement therefor, is the responsibility of the procuring activity effecting the procurement. Where a Department or activity utilizes the inspection services of another Department or activity, the Department or activity performing such inspection has primary inspection cognizance and its determinations relative thereto are binding on the Department or activity for which such inspection services are performed. In the case of coordinated procurement, inspection at source generally will be made by inspectors of the Procuring Department or activity. However, this general rule shall not be construed to affect inspection interchange agreements or to preclude the utilization of the inspectors of another Department or activity when they are located at or otherwise servicing the contractor's plant. Where inspection at destination is required in instances of coordinated procurement, request may be made of the Requiring Department or activity to arrange for the necessary inspection.

[§§ 413.102–1 and 413.102–2 unchanged]

4. Section 413.103 has been amended and a new § 413.103–4, *Inspection of small purchase (\$1,000 or less)* has been added. This section, as revised, reads as follows:

§ 413.103 *Inspection requirements.*

§ 413.103–1 *Points of inspection.* Each contract shall provide for the place or places of inspection. (See § 413.200 for designation of point of acceptance.) Inspection of supplies and services shall be made at such times and places (including any stage and period of manufacture, and including subcontractors' plants) as may be necessary to determine that the supplies and services conform to the contract requirements. Where the contract provides for inspection at source, shipment may be made prior to inspection if it is determined to be in the best interest of the Government. In such cases, to the extent appropriate, contract modification should be made prior to shipment with respect to (a) risk of loss in transit and (b) shipping and other expenses incurred in the event of rejection at destination.

§ 413.103–2 *Inspection at source.* Supplies and services shall be inspected at source—

(a) Where determination of conformance of the supplies and services with contract requirements at any other point would require uneconomical disassembly or destructive testing;

(b) Where considerable loss would result from the manufacture and shipment of unacceptable supplies or from the delay in making necessary corrections;

(c) Where special instruments, gauges, or facilities required for inspection are available only at source;

(d) Where inspection at any other point would destroy or require the replacement of costly special packing and packaging;

(e) Where quality control and inspection are closely related to production methods;

(f) Where supplies requiring technical inspection are destined for points of embarkation for oversea shipment; or

(g) Where otherwise determined to be in the best interest of the Government.

§ 413.103–3 *Inspection at destination.* Supplies and services shall be inspected at destination—

(a) When deliveries of supplies purchased "off-the-shelf" are made from a point other than that of manufacture;

(b) Where necessary testing equipment is located only at destination;

(c) Where biologicals are processed under direct control of National Institute of Health or the Federal Food and Drug Administration;

(d) Where perishable subsistence supplies are purchased within the continental limits of the United States, except that perishable subsistence supplies destined for oversea shipment will normally be inspected for condition and quantity at points of embarkation;

(e) Where brand name items are purchased for authorized resale; however, when such supplies are destined for direct oversea shipment, inspection (and acceptance) will be accomplished by the Contracting Officer or the official charged with such responsibility on the basis of a tally sheet evidencing receipt of shipment signed by the Port Transportation Officer or other designated official at the transshipment point; or

(f) When otherwise determined to be in the best interests of the Government.

§ 413.103–4 *Inspection of small purchases (\$1,000 or less).* Small purchases,

as defined in § 402.600 of this subchapter, shall generally be inspected at destination unless the item is of such importance as to warrant inspection at source for one of the reasons given under § 413.103–2. In determining the type and extent of inspection to be required on small purchases, the small possible losses and the likelihood of uncontested replacement of defective articles by suppliers shall be considered as significant and inspection shall be made in accordance with the following:

(a) Inspection of small purchases shall, except as hereinafter provided, be limited to an examination to determine only that the supplies received are (1) in conformance with the purchase description as to type or kind (2) in the correct quantity, (3) not damaged, and (4) correctly marked and packaged.

(b) Small purchases will not receive detailed technical inspections for quality, except when the supplies (1) are of such a nature that tests are necessary, or (2) vitally affect the function of important items of supply. Where appropriate, the end user (e. g., shop or garage) of the requisitioning activity may perform the necessary technical inspection in lieu of the activity's central inspection unit.

(c) In the case of over-the-counter purchases the persons making the purchase shall perform the necessary inspection (and acceptance) at the time of purchase. C. o. d. shipments may be received and paid for prior to examination. In both such cases, any necessary quantity or condition adjustments should be effected subsequently with the vendor.

(d) Persons other than those formally appointed as inspectors may be authorized to perform the inspections prescribed in paragraphs (a), (b), and (c) of this section. (Such persons may also certify as to acceptance on appropriate documents and such certification shall be accepted as satisfactory documentation of receipt and acceptance, and the authority of the person so to certify.)

5. Section 413.200 has been revised as follows:

§ 413.200 *General.* Acceptance is the act of an authorized agent of the Government by which the Government acknowledges and agrees that the supplies or services are in conformance with the contract requirements, including those of quality, quantity, packaging, and marking. Depending upon the provisions of the contract, acceptance may be effected prior to delivery, at the time of delivery, or after delivery, and each contract shall specify the point of acceptance. Generally, however, contracts shall provide that acceptance shall be accomplished as promptly as practicable after delivery. Except as may otherwise be provided in the contract, acceptance shall be conclusive except as regards to latent defects, fraud, or such gross mistakes as amount to fraud.

Except as otherwise provided in this part, supplies and services shall not be accepted prior to inspection. Inspection, where made prior to acceptance, shall be merely for the convenience of the Government and without binding effect as to acceptance.

(Sec. 3, 62 Stat. 259; 50 U. S. C. App. 1193)

T. P. PIKE,
Assistant Secretary of Defense (Supply and Logistics).

[F. R. Doc. 54–10069; Filed, Dec. 20, 1954; 8:50 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 10239; FCC 54–1535]

[Rules Amdt. 2–24]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

MARITIME MOBILE SERVICE

In the matter of amendment of Part 2 of the Commission's rules and regulations concerning the allocation of certain frequencies to stations in the maritime mobile service; Docket No. 10239, Rules Amdt. 2–24.

1. The Commission having under consideration its notice of proposed rule making adopted July 23, 1952, which proposed the finalization of the Atlantic City coast telegraph bands.

2. In accordance with the requirements of section 4 (a) of the Administrative Procedure Act, the above notice, which made provision for the submission of written comments by interested parties, was duly published in the FEDERAL REGISTER (17 F. R. 7097) on August 2, 1952, and the period for the filing of comments has now expired.

3. Comments were filed by the American Telephone and Telegraph Company (AT & T), the Lorain County Radio Corporation (Lorain), Aeronautical Radio Inc. (ARINC) and the State of California, Department of Agriculture (SCDA).

4. The AT & T comments pointed out that, as yet, that company had not received a replacement frequency for its operations on 12947.5 kc. However, since the time of filing of this comment, the assignment of this frequency has been deleted and other frequencies substituted in the fixed service for these operations.

5. The SCDA objected to the proposed allocation due to Federal State Market News Service operations on the frequency 4245 kc. Inasmuch as the Commission assigned a replacement frequency for this operation, appropriate consideration of this comment has already been given and the objection no longer appears to be valid.

6. Lorain associated its comments with those in Docket No. 10242 (ship telephone) and pointed out that if the band were allocated as proposed that there would be likelihood of interference being caused to the Great Lakes maritime mobile telephone system and that implementation of the coast telegraph band should be delayed until adequate provisions were made for this system. The Commission, since receiving the comments, has finalized the frequency assignments for the Great Lakes system and the adoption of this coast telegraph allocation will not result in interference to this system.

7. Comments received from ARINC pointed out various frequency assignments to that company which would be effected by the adoption of the proposed allocation. However, no objection was offered to the proposal providing replacement frequencies were obtained for ARINC which would not prejudice continued operations in the aeronautical mobile service. Inasmuch as the Commission, with the cooperation of ARINC, has succeeded in clearing satisfactory replacement frequencies for the bands being made final and there will no longer exist any out-of-band operations in these bands the Commission considers that ARINC's recommendations have been followed.

8. As of December 1, 1954, all coast telegraph bands were cleared of out-of-band non-Government assignments except for the 4 and 8 bands. In view of this, the allocation for the rest of the bands is being made final. As soon as the other bands have been cleared of out-of-band non-Government assignments the Commission intends to issue a separate Order in this proceeding which will finalize the allocation of these remaining bands.

9. It appearing, that the public interest, convenience and necessity will be served by the amendments herein ordered, the authority for which is contained in section 303 (c), (f) and (r) of the Communications Act of 1934, as amended;

10. *It is ordered*, That effective January 21, 1955. Part 2 of the Commission's rules is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Adopted: December 15, 1954.

Released: December 16, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

1. Section 2.104 (a) (3) (i) and (iii) is amended effective 1955 by the addition, in numerical sequence, of the following frequency bands to footnote 2:

4238–4368 kc
6357–6525 kc
12714–13130 kc
16952–17290 kc

2. Paragraph (a) (5) of § 2.104 *Table of frequency allocations*, is amended by the addition of the footnote designator NG38 to column 7 in the band, 6357–6525 kc and by the adoption of the following footnote:

(NG38) The frequency 6455 kc may be authorized to ship telephone stations and coast telephone stations operating in the Mississippi River maritime mobile service system on the condition that harmful interference will not be caused to services operating in accordance with the table of frequency allocations.

[F. R. Doc. 54–10075; Filed, Dec. 20, 1954; 8:52 a. m.]

[Docket No. 10626; FCC 54-1534]

[Rules Amdt. 2-23]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

COAST RADIOTELEPHONE BANDS

In the matter of amendment of Part 2 of the Commission's rules and regulations concerning the allocation of frequencies in the bands 4368–4438 kc, 8745–8815 kc, 13130–13200 kc and 17290–17360 kc; Docket No. 10626, Rules Amdt. 2-23.

1. The Commission having under consideration its proposal in the above-entitled matter which was adopted on August 5, 1953. In accordance with the requirements of section 4 (a) of the Administrative Procedure Act, this proposal, making provision for the submission of written comments by interested parties, was duly published in the FEDERAL REGISTER on August 14, 1953 (18 F. R. 4860) and on September 10, 1953 (18 F. R. 5454) and the period for filing comments has now expired.

2. No comments were filed in this proceeding and the Commission, in reviewing the status of its proposal has found that, except in the case of the 4 Mc band, all non-Government assignments which were originally out-of-band have now been deleted and the proposed allocation can be made final.

3. In view of the above, the Commission is making final the coast telephone allocation in the 8 Mc, 13 Mc and 17 Mc bands. It is intended that the allocation in the 4 Mc band will be made final as soon as all non-Government out-of-band assignments can be removed therefrom.

4. It appearing, that the public interest, convenience and necessity will be served by the amendments contained in the attached appendix and herein ordered, the authority for which action is contained in section 303 (c), (f) and (r) of the Communications Act of 1934, as amended;

5. *It is ordered*, That effective January 21, 1955, Part 2 of the Commission's rules is amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Adopted: December 15, 1954.

Released: December 16, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Section 2.104 (a) (3) (i) and (iii) is amended, effective 1955 by the addition, in numerical sequence, of the following frequency bands to footnote 2:

8745–8815 kc
13130–13200 kc
17290–17360 kc

[F. R. Doc. 54-10076; Filed, Dec. 20, 1954; 8:52 a. m.]

[Docket No. 11211; FCC 54-1536]

[Rules Amdt. 2-25]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

INTERNATIONAL FIXED PUBLIC RADIO COMMUNICATION SERVICE IN SOUTHERN FLORIDA

In the matter of amendment of Part 2 of the Commission's rules and regulations to provide for the allocation of frequencies to stations in the International Fixed Public Radio-communication Service in Southern Florida (South of 25° 30' North Latitude) in the frequency band 680–890 Mc, for an interim period the duration of which is later to be specified by the Commission, on the condition that harmful interference will not be caused to the Broadcast Service of the United States or other countries; Docket No. 11211, Rules Amdt. 2-25.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 15th day of December 1954;

The Commission having under consideration its proposal in the above entitled matter; and

It appearing, that in accordance with the requirements of section 4 (a) of the Administrative Procedure Act, notice of proposed rule making in this matter, which made provision for the submission of written comments by interested parties, was duly published in the FEDERAL REGISTER on November 4, 1954 (19 F. R. 7160), and that the period for the filing of comments has now expired; and

It further appearing, that the Commission's proposal was denominated an "interim allocation" because it appears that a determination can not be made at this time as to the date upon which equipment for the microwave fixed bands will be generally available to permit the development and installation of systems of this type in these higher bands; and

It further appearing, that the National Association of Radio and Television Broadcasters (NARTB) filed the only comments received in this proceeding wherein NARTB stated, in part, as follows: "The Association notes that the proposed use by AT&T of the requested frequency space in the UHF band is to be an interim authorization, the termination of which is to be later specified by the Commission when it is determined that equipments are generally available for use in bands allocated internationally to the fixed service. The association has no information, at the present time, in regard to the possible length of time contemplated, or needed, for the development of such equipments. It is suggested that the Commission should do all within its power to encourage and promote the development of suitable equipment so that this type of operation may be conducted as soon as possible in the bands allocated to the fixed service. The Association is well aware of the many demands made upon the Commission for space in the frequency spectrum, and of the critical shortage which now exists. It recognizes that undoubtedly more efficient utilization of existing frequency space is one of the ever present aims of the Commission. The Association feels that in the interest of promoting beneficial developments in this respect, it could concur in Petitioner's proposal as herein stipulated, but would request that the interim allocation be for a period of no longer than three years and that any further authorization be subject to examination of regular progress reports to be supplied by Petitioner to the Commission."; and

It further appearing, that the Commission fully intends to review frequently the proposed operation, the allocation and the station licenses which may be issued pursuant thereto, so as to permit a more definite determination as to when the interim allocation should be discontinued; and

It further appearing, that the intentions of the Commission are substantially in accord with the comments of the NARTB, but that the Commission is unable to justify a specific termination date for the allocation in face of the unpredictable length of time which may be required for the development of practical systems operating on frequencies above 1000 Mc; and

It further appearing, that from a study of the broadcasting allocations in Part 3 of the rules that the lower band limit of the interim allocation should be 716 Mc in lieu of 680 Mc; and

It further appearing, that the public interest, convenience and necessity will be served by the amendment herein ordered, the authority for which is contained in section 303 (c), (f) and (r) of the Communications Act of 1934, as amended;

It is ordered, That, effective January 21, 1955, Part 2 of the Commission's rules is amended as set forth below.

(Sec. 4, 48 Stat. 1066 as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: December 16, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

Amend Part 2, Frequency Allocations and Radio Treaty Matters, General Rules and Regulations, § 2.104 (a) (5) *Table of frequency allocations*, as follows:

1. Place the additional footnote indicator NG 42 in Column 7 for the band 500–890 Mc and,

2. Insert at the bottom of that page, the legend for footnote NG 42 as follows:

(NG42) Stations in the International Fixed Public Radiocommunication Service in Florida, South of 25°30' North Latitude, may be authorized to use frequencies in the band 716–890 Mc on the condition that harmful interference will not be caused to the broadcasting service of any country. This is an interim allocation the termination of which will later be specified by the Commission when it is determined that equipments are generally available for use in bands allocated internationally to the fixed service.

[F. R. Doc. 54-10077; Filed, Dec. 20, 1954; 8:52 a. m.]

[Docket No. 10377; FCC 54-1532]

[Rules Amdts. 7-9, 8-14]

PART 7—STATIONS ON LAND IN THE MARITIME SERVICES

PART 8—STATIONS ON SHIPBOARD IN THE MARITIME SERVICES

MISCELLANEOUS AMENDMENTS

In the matter of amendment of Parts 7 and 8 of the Commission's rules to delete authority for operation by coast stations, ship stations and aircraft stations on currently assignable frequencies for telephony within the band 4000 kc to 18,000 kc; and to include authority for operation by such stations on other frequencies for telephony within the same band; Docket No. 10377; Rules Amdts. 7-9, 8-14.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 15th day of December 1954;

The Commission having under consideration that portion of its proposal in the above-entitled matter embodied in the Fifth Further Notice of Proposed Rule Making which relates to availability and deletion of certain additional high seas frequencies;

It appearing, that in accordance with the requirements of section 4 (a) of the Administrative Procedure Act, Notice of Proposed Rule Making in this matter which made provision for the submission of written comments by interested parties, was duly published in the FEDERAL REGISTER on October 26, 1954 (19 F. R. 6861), and that the period for the filing of comments has now expired; and

It further appearing, that no objections were received to the proposed amendments; and

It further appearing, that the public interest, convenience and necessity will be served by the amendments herein ordered, the authority for which is contained in the original notice of proposed rule making in this Docket.

It is ordered, That, effective January 20, 1955, Parts 7 and 8 of the Commission's rules are amended as set forth below.

(Sec. 4, 48 Stat. 1066 as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: December 16, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

1. In § 7.304 (a), delete from the table of frequencies, the frequencies: 4280 kc, 8630 kc and add to the same table, the frequency 8747.6 kc.

2. Section 7.304 (d) (5) is amended to read:

(5) The frequencies 4372.4 kc and 8205.5 kc are authorized for use by coast stations serving vessels on the Mississippi River and connecting inland waters (except the Great Lakes) upon the express condition that transmission on these frequencies during the period 8:00 p. m. until 5:00 a. m. central standard time is prohibited.

3. Section 7.306 (a) (1) is amended to read:

(1) Working frequencies below 5000 kc:

Coast station transmitting carrier frequency [1] (kc)	Coast station located in the vicinity of—	Coast station receiving carrier frequency (kc)
2506	San Francisco, Calif.	[3] 2110 [3] 2406
2530	Hawaiian Islands	2134
2590	New York, N. Y.	2198
4406.9	do	4087.7
4420.7	Hawaiian Islands	4402.5
4372.4	San Francisco, Calif.	4067
4752.5	New York, N. Y.	4101.5
4434.5 [4]	do	[4] 4129.1

[1] These frequencies are those which may be specified in applications for coast station authorizations.

[2] Available on a temporary basis, to be withdrawn by the Commission from availability for this use by the maritime mobile service on a specific date to be designated in future rule-making as soon as practicable after the replacement frequency 2406 kc is made available.

[3] This carrier frequency is to be made available by the Commission for use on a 24-hour basis by the maritime mobile service at this location on a specified beginning date to be designated in future rule-making as soon as practicable after its use by other radio services is terminated or is reduced to the extent necessary to avoid harmful interference to or from the maritime mobile service.

[4] Available for use during period December 15 to March 15.

4. Section 7.306 (a) (2) is amended to read:

(2) Working frequencies between 5000 kc and 30 Mc:

Coast station transmitting frequency [1] (kc)	Coast station location in the vicinity of—	Coast station receiving carrier frequency (kc)
8550	Hawaii	8212.6
8747.6	San Francisco, Calif.	8198.4
8811.5	New York, N. Y.	8262.3
8768.9	do	8219.7
13196.6	do	12366.8
13187.5	do	12357.3
13180.6	San Francisco, Calif.	12380.4
13172.9	Hawaii	12372.7
17302.1	do	16471.9
17317.5	New York, N. Y.	16487.3
17356.0	do	16525.8
17340.6	San Francisco, Calif.	16510.4
22677.5	New York, N. Y.	22027.3
22692.9	San Francisco, Calif.	22042.7
22716	New York, N. Y.	22065.8

[1] These frequencies are those which may be specified in applications for coast station authorizations.

5. Section 7.306 (b) is amended by changing the San Francisco and Eureka, California, portion of the table of frequencies to read:

San Francisco, Calif. Eureka, Calif.	2506	None	2110 2406	Available on a temporary basis.[4] Available beginning on a date to be designated as replacement for 2110 kc.[3]
	2450	Available on condition that harmful interference is not caused to police radio service in Kansas, Wisconsin, or New York.	2003	None.
	2538	7 a. m. to 7 p. m., P. s. t. only	2142	7 a. m. to 7 p. m., P. s. t. only.
	4372.4	None	4067	None.

6. Section 8.351 (a) is amended by changing the table of assignable frequencies to read:

2003	2214	4087.7	8248.1
2009	2366	4115.3	8262.3
2031.5	2382	4129.1	12357.3
2110	2390	4101.5	12372.7
2118	2406	4122.2	12380.4
2126	2430	4372.4	12395.8
2134	2572	4402.5	16471.9
2142	2638	[1] 6240	16487.3
2158	2738	[1] 6455	16525.8
2166	2782	8198.4	16510.4
2182	2784	[1] 8205.5	22027.3
2198	[2] 2830	8212.6	22042.7
2206	4067	8219.7	22065.8

[1] Mississippi River System only.

[2] By an order adopted October 6, 1954, a temporary general authorization authorized the immediate use of the frequency 2830 kc until January 1, 1955 without the necessity of obtaining individual assignment of the frequency and without the necessity of filing a certification as required by paragraph (d) (2) of this section. Use of the frequency under the temporary general authorization is, however, restricted solely to testing and adjusting shipboard transmitters to meet the certification requirements of paragraph (d) (2) of this section. Upon compliance with the certification requirement, the frequency is available for individual assignment for regular use.

7. Section 8.354 (a) (1) is amended by changing the San Francisco and Eureka, California portion of the table of frequencies to read:

San Francisco, Calif. Eureka, Calif.	2110 2406	Available on a temporary basis [4] Available, beginning on a date to be designated, as replacement for 2110 kc. [3]	2506	None.
	2003	Available on condition that harmful interference shall not be caused to the service of any ship station which is within 300 nautical miles of Los Angeles or San Diego, Calif., and is transmitting on 2009 kc to a coast station located in the vicinity of either of those ports.	2450	None.
	2142	7 a. m. to 7 p. m., P. s. t. only	2538	7 a. m. to 7 p. m., P. s. t. only.
	4067	None	4372.4	None.

Section 8.355 (a) (1) is amended to read:

(1) Frequencies authorized for use by ship stations on board oceangoing vessels primarily for long-distance communication, when the ship station and the coast station transmit alternately on different radio-channels; except as expressly provided otherwise in this subpart, these frequencies shall not be used by ship stations on the Great Lakes or inland waters of the continental United States:

Ship station transmitting carrier frequency [1] (kc)	For communication with coast stations located in the vicinity of—	Ship station receiving carrier frequency (kc)
8198.4	San Francisco, Calif.	8747.6
8212.6	Hawaii	8550
8239.7	New York, N. Y.	8768.9
8262.3	do	8811.5
12337.3	do	13157.5
12372.7	Hawaii	13172.9
12386.4	San Francisco, Calif.	13180.6
12395.8	New York, N. Y.	13196.0
16471.9	Hawaii	17302.1
16487.3	New York, N. Y.	17317.5
16510.4	San Francisco, Calif.	17340.6
16525.9	New York, N. Y.	17356.0
21027.3	do	22077.5
21042.7	San Francisco, Calif.	22092.9
21065.8	New York, N. Y.	22716.0

[1] These frequencies are those which may be designated in applications for ship station authorizations.

[F. R. Doc. 54-10078; Filed, Dec. 20, 1954; 8:52 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Bureau of Customs

[19 CFR Part 6]

[192-36.31]

SKY HARBOR AIRPORT, DULUTH, MINN.

NOTICE OF PROPOSED DESIGNATION AS AN AIRPORT OF ENTRY

Notice is hereby given that, pursuant to authority contained in section 7 (b) of the Air Commerce Act of 1926, as amended (49 U. S. C. 177 (b)), it is proposed to designate Sky Harbor Airport, Duluth, Minnesota, as an airport of entry for civil aircraft and for merchandise carried thereon arriving from places outside the United States, as defined in section 9 (b) of said act (49 U. S. C. 179 (b)); and it is further proposed to amend the list of airports of entry (international airports) in § 6.13 of the Customs Regulations (19 CFR 6.13) by adding thereto the location and name of this airport.

This notice is published pursuant to section 4 of the Administrative Procedure Act (5 U. S. C. 1003). Consideration will be given to any revelant data, views, or arguments with respect to the proposed designation of the above-mentioned airport as an airport of entry addressed to to the Commissioner of Customs, Bureau of Customs, Washington 25, D. C., in writing and received not later than 20 days from the date of publication of this notice in the FEDERAL REGISTER.

[SEAL] RALPH KELLY,
Commissioner of Customs.

Approved: December 14, 1954.

H. CHAPMAN ROSE,
Secretary of the Treasury.

[F. R. Doc. 54-10061; Filed, Dec. 20, 1954; 8:48 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

[29 CFR Part 703]

MINIMUM WAGE RATES IN THE MEN'S AND BOYS' CLOTHING AND RELATED PRODUCTS INDUSTRY IN PUERTO RICO

NOTICE OF PROPOSED DECISION

On December 8, 1953, pursuant to section 5 of the Fair Labor Standards Act, as amended (hereinafter called the act), the Administrator of the Wage and Hour Division, United States Department of Labor, by Administrative Order No. 433, as amended by Administrative Orders Nos. 434, 437 and 439 dated December 31, 1953, January 14, 1954, and February 5, 1954, respectively, appointed Special Industry Committee No. 15 for Puerto Rico (hereinafter called the Committee) and directed the Committee to investigate conditions in the Men's and Boys' Clothing and Related Products Industry in Puerto Rico (hereinafter called the Industry), and to recommend minimum wage rates for employees engaged in commerce or in the production of goods for commerce in such industry.

For purposes of investigating conditions in and recommending minimum wage rates for the Men's and Boys' Clothing and Related Products Industry in Puerto Rico, the Committee included three disinterested persons representing the public, a like number representing employers, and a like number representing employees in the industry, and was composed of residents of Puerto Rico and of the United States outside of Puerto Rico with due regard to the geographical regions in which the industry is carried on.

After investigating economic and competitive conditions in the Men's and Boys' Clothing and Related Products Industry, as defined in Administrative Order No. 433, the Committee filed with the Administrator a report containing the following recommendations: (1) That the Men's and Boys' Clothing and Related Products Industry in Puerto Rico should be divided into separable divisions for the purpose of fixing minimum wage rates, and that these separable divisions should be entitled and defined as (a) the Suits, Coats and Jackets Division, (b) the Hat and Cap Division, (c) the General Division, and (d) the Necktie Division; (2) that a minimum wage rate of 55 cents an hour in the Suits, Coats and Jackets Division, a minimum wage rate of 55 cents an hour in the Hat and Cap Division, a minimum wage rate of 47½ cents an hour in the General Division, and a minimum wage rate of 55 cents an hour in the Necktie Division, should be paid to employees who are engaged in commerce or in the production of goods for commerce.

Pursuant to notice published in the FEDERAL REGISTER on March 27, 1954 (19 F. R. 1761) and circulated to all interested parties, a public hearing upon the Committee's recommendations was held before Hearing Examiner E. West Parkinson, as presiding officer on May 5, 1954, in Washington, D. C., at which all interested parties were given an opportunity to be heard. After the hearing was closed the record of the hearing was certified to the Administrator by the presiding officer.

Upon reviewing all of the evidence adduced in this proceeding, and giving due consideration to the provisions of the act, particularly sections 5 and 8 thereof, I have concluded that the recommendation of the Committee for the division of the Men's and Boys' Clothing and Related Products Industry into separate and distinct divisions to be known as the Suits, Coats and Jackets Division, the Hat and Cap Division, the Necktie Division, and the General Division of the Men's and Boys' Clothing and Related Products Industry, together with the recommendations of the Committee for a minimum wage rate of 55 cents an hour in the Suits, Coats and Jackets Division, a minimum wage rate of 55 cents an hour in the Hat and Cap Division, a minimum wage rate of 55 cents an hour in the Necktie Division, and a minimum wage rate of 47½ cents an hour in the General Division, as defined, were made in accordance with law, are supported by the evidence adduced at the hearing, and, taking into consideration the same factors as are required to be considered by the Committee, will carry out the purposes of sections 5 and 8 of the act.

I have set forth my decision in a document entitled "Findings and Opinion of the Acting Administrator in the Matter of the Recommendations of Special Industry Committee No. 15 for Puerto Rico for Minimum Wage Rates in the Men's and Boys' Clothing and Related Products Industry in Puerto Rico," a copy of which may be had upon request addressed to the Wage and Hour Division, United States Department of Labor, Washington 25, D. C.

Accordingly, notice is hereby given pursuant to the Administrative Procedure Act (60 Stat. 237; 5 U. S. C. 1001) and the rules of practice governing this proceeding, that I propose to amend the Wage Order for the Men's and Boys' Clothing and Related Products Industry in Puerto Rico, which is contained in 29 CFR, 1953 Supp., Part 703, as follows:

1. Delete all of § 703.2 *Wage rates.* and substitute the following:

§ 703.2 *Wage rates.* Wages at not less than the following rates shall be paid under section 6 of the Fair Labor Standards Act of 1938, as amended, by every employer to each of his employees in the respective divisions of the Men's and Boys' Clothing and Related Products Industry in Puerto Rico who is engaged in commerce or in the production of goods for commerce:

(a) 55 cents per hour in the Suits, Coats and Jackets Division.

(b) 55 cents per hour in the Necktie Division.

(c) 55 cents per hour in the Hat and Cap Division.

(d) 47½ cents per hour in the General Division.

2. In § 703.4 *Definition of the Men's and Boys' Clothing and Related Products Industry in Puerto Rico and its divisions,*

delete paragraph (a) (1) and substitute the following:

(1) The manufacture from any material of men's and boys' clothing and related products, including, but without limitation, suits, coats, overcoats, trousers, shirts, underwear, work clothing, sports wear (including bathing suits, riding habits and athletic uniforms), heavy outerwear, neckties, caps, hats (except hand-made straw hats), belts (except leather belts), robes and dressing gowns, raincoats, suspenders, garters, academic caps and gowns, vestments, costumes, and other items of apparel and accessories (except gloves, handkerchiefs, scarves and mufflers, hosiery, and shoes).

and delete paragraphs (b) (1) and (2) and substitute the following:

(1) *Suits, Coats and Jackets Division.* The manufacture of men's, youths' and boys' suits, coats and jackets (except cotton work coats and jackets), overcoats, topcoats, fabric raincoats, and similar outerwear.

(2) *Necktie Division.* The manufacture of men's, youths' and boys' neckties.

(3) *Hat and Cap Division.* The manufacture of men's, youths' and boys' hats and caps.

(4) *General Division.* The manufacture of all products included in the Men's and Boys' Clothing and Related Products Industry in Puerto Rico, as defined herein, except those included in the Suits, Coats and Jackets Division, the Necktie Division, and the Hat and Cap Division, as defined in this part.

Within fifteen days from the publication of this notice in the FEDERAL REGISTER, interested parties may submit written exceptions to the proposed actions above described. Exceptions should be addressed to the Administrator of the Wage and Hour Division, United States Department of Labor, Washington 25, D. C. They should be submitted in quadruplicate and should include reasons for any exceptions.

Signed at Washington, D. C., this 14th day of December 1954.

F. GRANVILLE GRIMES, Jr.
Acting Administrator,
Wage and Hour Division.

[F. R. Doc. 54-10071; Filed, Dec. 20, 1954; 8:51 a. m.]

FEDERAL TRADE COMMISSION

[16 CFR Part 74]

[File No. 21-121]

DIRECT SELLING INDUSTRY

NOTICE OF TRADE PRACTICE CONFERENCE

Notice is hereby given that a trade practice conference for the Direct Selling Industry will be held by the Federal Trade Commission in the Illinois Room of the La Salle Hotel, Chicago, Illinois, on January 14, 1955, commencing at 10 a. m., c. s. t. All members of the industry are cordially invited to attend and participate in this industry conference.

The purpose of the proceedings is to consider revision and extension of the trade practice rules for this industry as promulgated by the Commission on April 27, 1932. The conference will consider proposals for rules designed to eliminate and prevent unfair methods of competition, unfair or deceptive or discriminatory acts or practices, and other trade abuses which violate laws administered by the Commission, and for rules directed to the effective maintenance of ethical competitive standards for the protection of both the industry and the public.

After the conference on January 14, and before any revised rules are finally approved by the Commission, a draft of proposed rules in the form deemed appropriate will be made available to all interested and affected parties, including consumers, upon public notice affording them opportunity to present their views, criticisms, and suggestions respecting the rules, and to be heard at a public hearing.

"Direct Selling," as distinguished from "Retail Store Selling" and "Mail Order Selling," is based on "in person" sales contacts by agents, dealers, or other types of sales contact personnel with purchasers or prospective purchasers at places not under the control of the sellers or sales representatives, usually at the purchasers' or prospective purchasers' homes, offices, or business establishments. All persons, firms, corporations and organizations that use "Direct Selling" methods of operation in the sale or distribution of any type of product, except books, magazines, newspapers, and other periodicals, are considered members of this industry.

Issued: December 16, 1954.

By direction of the Commission.

[SEAL] ROBERT M. PARRISH,
Secretary.

[F. R. Doc. 54-10085; Filed, Dec. 20, 1954; 8:54 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[47 CFR Parts 2, 5]

[Docket No. 11235; FCC 54-1537]

STATIONS OPERATED BY EDUCATIONAL INSTITUTIONS

NOTICE OF PROPOSED RULE MAKING

In the matter of amendment of Part 2 and Part 5 of the Commission's rules and regulations concerning the use of pulsed emissions in the frequency band 2900-3246 Mc by stations operated by educational institutions for purposes of instruction in and demonstrations of microwave techniques; Docket No. 11235.

1. Notice is hereby given of proposed rule making in the above-entitled matter.

2. The table of frequency allocation contained in Part 2 of the Commission's rules now shows the band 2900-3246 Mc allocated to the Radionavigation Service. By virtue of footnote NG18, land radiopositioning stations and mobile radiopositioning stations, excluding speed measuring devices, may be authorized to use frequencies in this band on the condition that harmful interference will not be caused to the radionavigation service. This allocation does not provide for the use of this band by stations in the Experimental Service (Research).

3. In the past the Commission has issued authorizations in the Experimental Service (Research) to certain educational institutions to permit the temporary use of the frequency band 2900-3246 Mc for equipment employed in the instruction and demonstration of microwave techniques. The frequency band required was dictated by the fact that, in general, the operations were economically practical only through the use of World War II surplus radar equipment which could not be shifted to other bands without expensive, major modifications. Although technical demonstrations of equipment or techniques are within the scope of the Experimental Service (Research) set forth in § 5.202 (e), these authorizations did not conform to the table of frequency allocations in Part 2 of the Commission's rules but were issued under § 2.103 (a) of these rules which provides for temporary grants under certain conditions for projects of short duration.

4. In view of the fact that it now appears that there may be a continuing need for such operations, the Commission believes that it is appropriate to propose certain changes in the Commission's rules at this time which, if adopted, would make provision for such operations on a regular basis in the rules, contingent upon a specific showing of need by each applicant for "on the air" operation. In the event that the Commission determines that the rules proposed herein are not in the public interest and should not therefore be adopted, the Commission believes that no further authorizations to permit this type of operation should be granted subsequent to that determination. Therefore, the Commission is issuing this notice of proposed rule making for the purpose of eliciting comments, both in support and in opposition, from all interested parties. The proposed rule changes are set forth below.

5. The proposed amendments to the rules are issued under the authority of sections 303 (c), (f) and (r) of the Communications Act of 1934, as amended.

6. Any interested person who is of the opinion that the proposed amendment should not be adopted, or should not be adopted in the form set forth herein, may file with the Commission on or before January 17, 1955 written data, views or arguments setting forth his comments. Comments in support of the proposed amendment may also be filed on or before the same date. Comments in reply to the original comments may be filed within 15 days from the last day for filing said original data, views, or arguments. No additional comments may be filed unless specifically requested by the Commission or good cause for the filing of such additional comments is established.

The Commission will consider all such comments prior to taking final action in this matter, and if comments are submitted warranting oral argument, notice of the time and place of such oral argument will be given.

7. In accordance with the provisions of § 1.764 of the Commission's rules, an original and fourteen copies of all statements, briefs, or comments shall be furnished the Commission.

Adopted: December 15, 1954.

Released: December 16, 1954.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

1. Amend Part 2 Frequency Allocations and Radio Treaty Matters; General Rules and Regulations, as follows:

In § 2.104 (a) (5) *Table of frequency allocations* add the footnote indicator NG 39 to the band 2900–3246 Mc in column 7; and add footnote NG 39 to read as follows:

(NG 39) Experimental stations used by educational institutions for purposes of technical instruction in, and demonstration of, microwave techniques using pulsed emissions only may be authorized to use frequencies in this band on the condition that harmful interference will not be caused to stations in the Radiolocation Service.

2. Amend Part 5 Experimental Radio Services, as follows:

Add the following paragraph (f) to § 5.57 *Supplementary statements required:*

(f) *Applications involving technical demonstrations of equipment or techniques in the frequency band 2900–3246 Mc.* The provisions of paragraphs (a) and (b) of this section shall not be applicable to applications from educational institutions for an authorization in the Experimental Service (Research) to be used for technical instruction or demonstration of microwave techniques using pulsed emissions in the frequency band 2900–3246 Mc allocated for such use, under certain conditions, in Part 2 of this chapter. Instead, such applicants shall include, as a part of the application for construction permit, the following:

(1) A satisfactory showing that the operation of a radio transmitter in the band 2900–3246 Mc is essential to the institution's program of instruction.

(2) A satisfactory showing that the actual radiation of radio frequency energy is essential to the institution's program of instruction in lieu of using a dummy antenna, shielded room or other means to suppress or confine radiation.

(3) The estimated daily hours of operation and the estimated dates of the beginning and end of the specific time period for which the requested operation is required.

[F. R. Doc. 54–10072; Filed, Dec. 20, 1954; 8:51 a. m.]

[47 CFR Parts 7, 8]

[Docket No. 11234; FCC 54–1531]

STATIONS ON LAND AND SHIPBOARD IN THE MARITIME SERVICES

NOTICE OF PROPOSED RULE MAKING

In the matter of amendment of §§ 7.365 and 8.362 of the Commission's rules regarding use by limited coast stations and ship stations of frequencies below 3000 kc for business and operational purposes of commercial transport or government vessels; Docket No. 11234.

1. Notice is hereby given of proposed rule making in the above-entitled matter.

2. The rule amendments herein proposed are for the following purposes:

(a) To make clear that the frequencies 2738 kc, 2830 kc and 2214 kc which are available under certain exceptional conditions for assignment for communication between limited coast stations and commercial transport and government vessels will not be assigned if the desired communications may be supplied through the use of public coast station facilities.

(b) To eliminate present provisions requiring designation in the respective station licenses of the particular coast or ship stations with which communication may be conducted, and to eliminate the requirement that ship stations must be specifically authorized for communication with limited coast stations on the frequencies 2738 kc and 2830 kc.

(c) To revise editorially the respective rules so as to simplify and clarify their provisions.

3. The proposed amendments to the rules are set forth below. They are issued pursuant to sections 303 (c) (f) (r) and 308 (b).

4. Any interested person who is of the opinion that the proposed amendment should not be adopted, or should not be adopted in the form set forth herein, may file with the Commission on or before January 20, 1955, written data, views or briefs setting forth his comments. Comments in support in support of the proposed amendment may also be filed on or before the same date. Comments in reply to the original comments may be filed within ten days from the last day for filing said original data, views or briefs. The Commission will consider all such comments prior to taking final action in this matter.

5. In accordance with the provisions of § 1.764 of the Commission's rules, an original and fourteen copies of all statements, briefs or comments filed shall be furnished the Commission.

Adopted: December 15, 1954.

Released: December 16, 1954.

[SEAL] FEDERAL COMMUNICATIONS COMMISSION,
MARY JANE MORRIS,
Secretary.

1. Section 7.365 is amended as follows:

§ 7.365 *Frequencies below 3000 kc for business, operational and safety purposes.* As an exceptional matter, the frequencies 2738 kc, 2830 kc and 2214 kc are available for assignment on a shared basis to limited coast stations for transmission and reception on the same radiochannel by telephony (amplitude modulation) with ship stations solely when such communication is necessary to serve an important business or operational need of one or more commercial transport vessels or government vessels. For this purpose, these frequencies may not be assigned and may not be used in any instance in which:

(a) The desired radio communication is primarily over distances for which frequencies above 30 Mc would be suitable.

(b) The facilities of public coast stations may provide the desired radio communication.

(c) Harmful interference would be caused to the service of any United States Government station by the use of the frequency 2214 kc.

(d) Harmful interference would be caused to the intership use of the frequencies 2738 kc and 2830 kc as prescribed in § 8.358 of this chapter.

(e) The plate input power exceeds the plate input power used by ship stations for intership communication as prescribed by § 8.134 (c) of this chapter.

NOTE: For this purpose the frequencies 2738 kc and 2830 kc may be assigned only in those areas where they are available for intership use.

2. Section 8.362 is amended as follows:

a. Delete paragraphs (a), (b) and (c) and substitute a new paragraph (a) to read as follows:

(a) The frequencies 2738 kc, 2830 kc and 2214 kc may be utilized on a shared basis with other ship stations for business and operational communication with limited coast stations if the limited coast station, in accordance with the applicable provisions of § 7.365 of this chapter, has been specifically authorized to engage in such communication: *Provided,*

(1) That, with respect to the frequency 2214 kc, specific authorization for such use must be obtained, in which event intership use of the frequency between such ship stations is also authorized.

(2) That use of any of these frequencies will be subject to the same conditions under which they are authorized to be used by limited coast stations under the provisions of § 7.365 of this chapter.

b. Redesignate paragraph (d) as paragraph (b).

[F. R. Doc. 54–10073; Filed, Dec. 20, 1954; 8:51 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Bureau of Customs

[Customs Delegation Order No. 1, Revised; T. D. 53694]

CERTAIN OFFICERS, HEADQUARTERS OFFICE

DELEGATION OF AUTHORITY TO MAKE CERTAIN DECISIONS AND PERFORM CERTAIN FUNCTIONS, AND CONTINUING IN EFFECT CERTAIN DELEGATIONS OF AUTHORITY HERETOFORE MADE

DECEMBER 15, 1954.

Pursuant to Treasury Department Order No. 165, revised, published as T. D. 53654 (19 F. R. 7241), and due to changes in the organization of the headquarters office of the Bureau of Customs, it is hereby ordered that Customs Delegation Order No. 1 (T. D. 53161) (17 F. R. 11705) be revised as follows:

Subdivision 1 (a) is revised to read:

(a) Chief, Division of Classification and Drawbacks.

(1) Decisions relating to the tariff classification of merchandise.

(2) Decisions relating to the assessment and collection of duties on equipment or repairs of vessels or aircraft under section 466, Tariff Act of 1930, and decisions regarding the remission or refund of such duties.

(3) Decisions on applications submitted pursuant to section 562, Tariff Act of 1930, as amended.

(4) Decisions as to the entry of articles under section 308, Tariff Act of 1930, as amended.

(5) Decisions relating to the establishment and operation of bonded warehouses.

(6) Decisions as to the approval of blanket smelting bonds, general term bonds for the entry of merchandise, and proprietors' warehouse (class 6) bonds.

(7) Decisions establishing, denying, or relating to drawback rates and decisions in collateral drawback matters.

(8) Decisions regarding authorizations for reliquidations under section 515, Tariff Act of 1930, in cases of protests relating to matters covered by this subdivision (a).

(9) Decisions, other than those enumerated heretofore in this subdivision (a) in matters arising under provisions of law administered in the Division of Classification and Drawbacks.

Subdivision (b) is revised to read:

(b) Chief, Division of Entry, Value, and Penalties.

(1) Decisions relating to the entry or valuation of merchandise.

(2) Decisions relating to powers of attorney.

(3) Decisions relating to shortages of merchandise in cases arising under section 499 or any other provision of the Tariff Act of 1930, as amended.

(4) Decisions relating to liens in cases arising under section 564, Tariff Act of 1930.

(5) Decisions regarding bills of lading, carriers' certificates, or rights in respect of merchandise, in cases arising under sections 483 or 484 (c), (h), or (i), Tariff Act of 1930.

(6) Decisions regarding owners' declarations in cases arising under section 485 (d), Tariff Act of 1930.

(7) Decisions regarding authorizations for reliquidations under section 520 (c) (2), Tariff Act of 1930, as amended, or under section 515, Tariff Act of 1930, in cases of protests relating to matters covered by this subdivision (b).

(8) Decisions as to the mitigation or remission of claims, fines, or penalties (including forfeitures) in amounts not exceeding $2,000 in the aggregate in any one case handled in his division.

(9) Decisions regarding import quotas.

(10) Decisions, other than those enumerated heretofore in this subdivision (b), in matters arising under provisions of law administered in the Division of Entry, Value, and Penalties.

[SEAL] RALPH KELLY,
Commissioner of Customs.

[F. R. Doc. 54-10062; Filed, Dec. 20, 1954; 8:48 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Indian Affairs

[Aberdeen Area Office Redelegation Order 2]

SUPERINTENDENTS AND OTHER DESIGNATED EMPLOYEES

REDELEGATIONS OF AUTHORITY

PART 1—GENERAL

Sec.
1.1[1] Appeals.
1.2 Limitations.

PART 2—AUTHORITY OF SUPERINTENDENTS, SCHOOL SUPERINTENDENT, AND OFFICER IN CHARGE OF AREA FIELD OFFICE

FUNCTIONS RELATING TO LANDS AND MINERALS

2.12 Leases and permits.
2.16 Mineral leases and permits.

FUNCTIONS RELATING TO TRADING WITH INDIANS

2.170 Traders' licenses.

FUNCTIONS RELATING TO FOREST AND RANGE MANAGEMENT

2.230 Timber sales and advertisement.

FUNCTIONS RELATING TO MEDICAL, HOSPITAL, AND NURSING SERVICES

2.252 Quarantine of Indians.
2.253 Commitment of insane Indians.

PART 1—GENERAL

SECTION 1.1 *Appeals.* Any action taken by any Superintendent or other officer pursuant to Part 2 of this order shall be subject to the right of appeal. An appeal may be taken from the decision of such Superintendent or other officer to the Area Director, Aberdeen Area Office. An appeal must be filed in writing with such Superintendent or other officer and shall be promptly transmitted by him with the record in the case to the Area Director, Aberdeen Area Office. Any action taken by the Area Director pursuant to this order shall be subject to the right of appeal to the Commissioner of Indian Affairs, pursuant to section 1 (a) of Order 551, as amended, of the Bureau of Indian Affairs. Any action taken by the Commissioner of Indian Affairs pursuant to this order shall be subject to the right of appeal to the Secretary of the Interior, pursuant to section 1 (a) of Order 2508, as amended, of the Secretary of the Interior.

[1] NOTE: In Parts 1 and 2, the section numbers appearing to the right of the decimal correspond to the section numbers used in Order No. 551, as amended, of the Bureau of Indian Affairs.

SEC. 1.2 *Limitations.* Delegations of authority made by this Order are not to be construed as depriving the Area Director of the authority conferred upon him by the Commissioner of Indian Affairs.

PART 2—AUTHORITY OF SUPERINTENDENTS, SCHOOL SUPERINTENDENT, AND OFFICER IN CHARGE OF AREA FIELD OFFICE

Subject to the provisions of Part 1, the Superintendents, School Superintendent, and Officer in charge of Area Field Office may exercise the authority of the Area Director with respect to the following.

FUNCTIONS RELATING TO LANDS AND MINERALS

SEC. 2.12 *Leases and permits.* The approval of leases and permits of tribal and individually owned trust or restricted lands for farming, farm pasture, or business purposes, pursuant to the provisions of 25 CFR Part 171. This authority does not extend to the waiver of requirements for advertising of leases or permits or to the waiver of acreage limitations on farm and farm pasture lands.

SEC. 2.16 *Mineral leases and permits.* (a) The approval of coal, sand, gravel, pumice, and building stone leases and permits of tribal and trust or restricted individually owned lands.

(b) The authority delegated in this section does not include:

(1) Approval of leases on lands purchased or reserved for agency or school purposes,

(2) Approval of instruments providing for the payments of overriding royalty,

(3) Assignments of separate horizons or strata of the subsurface.

FUNCTIONS RELATING TO TRADING WITH INDIANS

SEC. 2.170 *Traders' licenses.* The issuance of licenses to traders with the Indian tribes and the removal and revocation of licenses pursuant to 25 CFR Part 276.

FUNCTIONS RELATING TO FOREST AND RANGE MANAGEMENT

SEC. 2.230 *Timber sales and advertisement.* The issuance of advertisements offering timber for sale and the approval of timber sale contracts on approved forms involving an estimated stumpage value not exceeding $500, pursuant to provisions of 25 CFR 61.20; provided that such contract shall not be made for a longer term than two years.

FUNCTIONS RELATING TO MEDICAL, HOSPITAL, AND NURSING SERVICES

SEC. 2.252 *Quarantine of Indians.* The quarantine of Indians refusing to submit to remedial treatment of contagious or infectious diseases, pursuant to the provisions of 25 CFR Part 84.

SEC. 2.253 *Commitment of insane Indians.* The commitment of insane Indians to State hospitals or institutions, pursuant to the provisions of 25 CFR Part 86.

W. O. ROBERTS,
Area Director.

Approved: December 15, 1954.

GLENN L. EMMONS,
Commissioner.

[F. R. Doc. 54-10080; Filed, Dec. 20, 1954; 8:53 a. m.]

Bureau of Reclamation

MILK RIVER PROJECT, MONTANA

ORDER OF REVOCATION

NOVEMBER 5, 1954.

Pursuant to the authority delegated by Departmental Order No. 2765 of July 30, 1954 (19 F. R. 5004), I hereby revoke Departmental Orders of August 18 and 26, 1902, insofar as said orders affect the following described land: *Provided, however,* That such revocation shall not affect the withdrawal of any other lands by said orders or affect any other orders withdrawing or reserving the land hereinafter described:

PRINCIPAL MERIDIAN, MONTANA

T. 30 N., R. 32 E.,
Sec. 16, all.

The above area aggregates 640 acres.

E. V. LINDSETH,
Acting Commissioner.

[MONTANA 013817]

DECEMBER 15, 1954.

I concur. The records of the Bureau of Land Management will be noted accordingly. The lands are State school lands as provided by the act of February 22, 1889 (25 Stat. 676).

W. G. GUERNSEY,
Associate Director,
Bureau of Land Management.

[F. R. Doc. 54-10045; Filed, Dec. 20, 1954; 8:45 a. m.]

HAMMOND PROJECT, NEW MEXICO

ORDER OF REVOCATION

FEBRUARY 23, 1954.

Pursuant to the authority delegated by Departmental Order No. 2515 of April 7, 1949 (14 F. R. 1937), I hereby revoke Departmental Orders of October 11, 1944 and June 12, 1946, insofar as said orders affect the following described lands: *Provided, however,* That such revocation shall not affect the withdrawal of any other lands by said order or affect any other orders withdrawing or reserving the lands hereinafter described:

NEW MEXICO PRINCIPAL MERIDIAN

T. 29 N., R. 9 W.,
Sec. 19: lots 2 and 3, and E½NE¼.
T. 29 N., R. 10 W.,
Sec. 25: SE¼NE¼, S½SW¼ and SE¼;
Sec. 26: NW¼NW¼;
Sec. 27: SW¼NE¼ and SE¼NW¼;
Sec. 30: lot 4, SE¼SW¼ and SW¼SE¼;
Sec. 31: NW¼NE¼;
Sec. 32: N½NE¼ and NE¼NW¼;
Sec. 33: N½NE¼;
Sec. 34: NW¼NW¼;
Sec. 35: NW¼NE¼, S½NE¼ and NW¼;
Sec. 36: N½NW¼.
T. 28 N., R. 11 W.,
Sec. 7: lot 3.
T. 29 N., R. 11 W.,
Sec. 26: NW¼NW¼ and N½SE¼;
Sec. 27: NE¼NE¼, N½SW¼ and NW¼SE¼;
Sec. 28: SE¼SW¼;
Sec. 29: SW¼NE¼, N½SW¼ and SE¼SW¼;
Sec. 31: S½NE¼ and N½SE¼;
Sec. 32: SE¼NW¼.
T. 28 N., R. 12 W.,
Sec. 11: lots 1 and 2.
T. 29 N., R. 12 W.,
Sec. 29: NE¼SW¼ and NE¼SE¼;
Sec. 30: lot 4 and NE¼SE¼;
Sec. 33: S½NE¼;
Sec. 34: NW¼SW¼;
Sec. 36: S½N½ and S½.
T. 29 N., R. 13 W.,
Sec. 23: SE¼SE¼;
Sec. 24: N½S½;
Sec. 25: S½NW¼.

The above areas aggregate 3065.14 acres.

W. A. DEXHEIMER,
Commissioner.

[Misc. 2003130]

DECEMBER 15, 1954.

I concur. The records of the Bureau of Land Management will be noted accordingly.

The following-described lands are withdrawn for stock driveway or power purposes, or are non-public lands:

NEW MEXICO PRINCIPAL MERIDIAN

T. 29 N., R. 9 W.,
Sec. 19, Lots 2 and 3, E½NE¼.
T. 29 N., R. 10 W.,
Sec. 26, NW¼NW¼;
Sec. 27, SW¼NE¼ and SE¼NW¼;
Sec. 33, N½NE¼;
Sec. 36, N½NW¼.
T. 29 N., R. 11 W.,
Sec. 26, NW¼NW¼;
Sec. 27, NE¼NE¼;
Sec. 29, SW¼NE¼, N½SW¼, SE¼SW¼;
Sec. 31, S½NE¼, NW¼SE¼.
T. 29 N., R. 12 W.,
Sec. 29, NE¼SW¼ and NE¼SE¼;
Sec. 36, S½N½ and S½.
T. 29 N., R. 13 W.,
Sec. 23, SE¼SE¼;
Sec. 24, NE¼SW¼, N½SE¼.

The remaining lands are located in New Mexico Grazing District No. 7 and lie along the San Juan River from Blanco to Farmington, New Mexico. Portions are rough hills with some sandstone outcroppings, with a cover of pinon and juniper. Of these, about 525 acres lie along the river bottom or in the mouth of sandy arroyos near the river. They are subject to periodic flooding, and have very little forage value. The remainder are covered with cottonwood and willows, the soil ranging from gravelly hills on the steeper slopes, through a sandy loam on the more level spots. They would be suitable for farming if water were available.

No application for the lands may be allowed under the homestead, desert-land, small tract, or any other nonmineral public-land law unless the lands have already been classified as valuable or suitable for such type of application, or shall be so classified upon the consideration of an application. Any application that is filed will be considered on its merits. The lands will not be subject to occupancy or disposition until they have been classified.

This order shall not otherwise become effective to change the status of the described lands until 10:00 a. m. on the 35th day after the date of this order. At that time the said lands shall become subject to application, petition, location and selection, subject to valid existing rights, the provision of existing withdrawals, the requirements of applicable laws, and the 91-day preference-right filing period for veterans and others entitled to preference under the act of September 27, 1922 (58 Stat. 747; 43 U. S. C. 279-284), as amended.

Veterans' preference-right applications under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284), as amended, may be filed on or before 10:00 a. m., on the 35th day after the date of this order, and those covering the same lands shall be treated as though simultaneously filed at that time. Applications filed under the act after that time and during the succeeding 91 days shall be considered in the order of filing. Applications by the general public under the public-land laws, filed on or before 10:00 a. m., on the 126th day after the date of this order shall be treated as though simultaneously filed at that time, where the applications are for the same lands; otherwise, priority of filing shall govern.

Inquiries, regarding the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Santa Fe, New Mexico.

W. G. GUERNSEY,
Associate Director,
Bureau of Land Management.

[F. R. Doc. 54-10046; Filed, Dec. 20, 1954; 8:45 a. m.]

Office of the Secretary

[Order 2778]

COMMISSIONER OF INDIAN AFFAIRS

DELEGATION OF AUTHORITY TO NEGOTIATE CONTRACTS FOR PROCUREMENT OF FEEDING SERVICE

DECEMBER 15, 1954.

SECTION 1. *Delegation of authority.* The Commissioner of Indian Affairs is authorized to exercise, in accordance with applicable limitations and requirements in the Federal Property and Administrative Services Act of 1949, as amended (41 U. S. C., 1952 ed., sec. 252), particularly sections 304 and 307, and policies, procedures, and controls prescribed by the General Services Administration, the authority delegated to the Secretary of the Interior by the Administrator of General Services (19 F. R.

8051) to negotiate, without advertising, under section 302 (c) (9) of the said act, contracts for feeding services required to carry out Indian education program responsibilities of the Bureau.

SEC. 2. *Redelegation.* The authority granted in section 1 of this order may not be redelegated.

CLARENCE A. DAVIS,
Acting Secretary of the Interior.

[F. R. Doc. 54-10047; Filed, Dec. 20, 1954; 8:45 a. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

NORTH CAROLINA

DESIGNATION OF ADDITIONAL AREAS FOR PRODUCTION EMERGENCY LOANS AND ECONOMIC EMERGENCY LOANS

For the purpose of making production emergency loans pursuant to section 2 (a) of Public Law 38, 81st Congress (12 U. S. C. 1148a-2 (a)) as amended, it has heretofore been determined that in the following named additional counties in the State of North Carolina, a production disaster has caused a need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

STATE OF NORTH CAROLINA

Alleghany County.	Cabarrus County.
Ashe County.	Watauga County.

Pursuant to the delegations of authority from the Administrator, Federal Civil Defense Administration (18 F. R. 4609; 19 F. R. 2148 and 19 F. R. 5364), and for the purposes of making economic emergency loans pursuant to section 2 (b) of Public Law 38, 81st Congress (12 U. S. C. 1148a-2 (b)), as amended by Public Law 115, 83d Congress, and section 301 of Public Law 480, 83d Congress, it is determined that the above named additional counties in the State of North Carolina are within the area affected by the major disaster occasioned by drought as determined by the President on September 23, 1954, pursuant to Public Law 875, 81st Congress (42 U. S. C. 1855 et seq.). It has also been determined that an economic disaster exists in the said above named additional counties in the State of North Carolina that has caused a need for agricultural credit that cannot be met for a temporary period from commercial banks, cooperative lending agencies, the Farmers Home Administration under its regular loan program, or other responsible sources.

After December 31, 1955, loans under section 2 (a) or 2 (b) of Public Law 38, 81st Congress, as amended will not be made in the above named additional counties in the State of North Carolina except to borrowers who previously received such assistance.

Pursuant to the authority and the delegations of authority, as above set forth, the period for making initial production emergency loans and economic emergency loans under section 2 (a) and 2 (b) of Public Law 38, 81st Congress, as amended, in the following counties in the State of North Carolina, as authorized on November 18, 1953, and December 4, 1953, is herewith extended to December 31, 1955.

STATE OF NORTH CAROLINA

Alamance.	Mecklenburg.
Chatham.	Montgomery.
Davidson.	Moore.
Davie.	Orange.
Durham.	Person.
Forsyth.	Randolph.
Guilford.	Richmond.
Lee.	Rowan.
McDowell.	Stokes.

On October 25, 1954 (19 F. R. 6973), the making of production emergency loans and economic emergency loans were authorized pursuant to section 2 (a) and 2 (b) of Public Law 38, 81st Congress (12 U. S. C. 1148 a-2 (a) 2 (b)) as amended, through December 31, 1955, in the following counties in the State of North Carolina because said counties, among others, were found to be within an area affected by a major disaster occasioned by a hurricane termed "Hazel" as determined by the President on October 17, 1954 pursuant to Public Law 875, 81st Congress, (42 U. S. C. 1855 et seq.).

Pursuant to the authority and the delegations of authority, as above set forth, and a determination by the President on September 23, 1954, pursuant to Public Law 875, 81st Congress (42 U. S. C. 1855 et seq.), that the following counties, among others, in the State of North Carolina are within an area affected by a major disaster occasioned by drought, production emergency loans pursuant to section 2 (a) and economic emergency loans pursuant to section 2 (b) of Public Law 38, 81st Congress (12 U. S. C. 1148 a-2 (a) and 2 (b)), as amended, may be made in the following counties in the State of North Carolina to December 31, 1955.

STATE OF NORTH CAROLINA

Bladen.	Nash.
Brunswick.	Sampson.
Columbus.	Vance.
Franklin.	Wake.
Granville.	Warren.
Johnston.	Wilson.

Done at Washington, D. C., this 15th day of December 1954.

[SEAL] TRUE D. MORSE,
Acting Secretary.

[F. R. Doc. 54-10057; Filed, Dec. 20, 1954; 8:47 a. m.]

DEPARTMENT OF COMMERCE

Federal Maritime Board

AMERICAN MAIL LINE LTD. ET AL.

NOTICE OF AGREEMENT FILED FOR APPROVAL

Notice is hereby given that the following described agreement has been filed with the Board for approval pursuant to section 15 of the Shipping Act, 1916, as amended; 39 Stat. 733, 46 U. S. C. 814.

Agreement No. 8190, between American Mail Line, Ltd., American President Lines, Ltd., Barber-Wilhelmsen Line joint service, Daido Kaiun Kaisha, Ltd., et al., provides for the creation of a conference to be known as the Japan/Puerto Rico and Virgin Islands Freight Conference, for the establishment and maintenance of rates, charges and rules for the transportation of all cargo in the trade from ports in Japan, Okinawa and Korea to ports in Puerto Rico and the Virgin Islands (U. S. Territory), either by direct call or by transshipment.

Interested parties may inspect this agreement and obtain copies thereof at the Regulation Office, Federal Maritime Board, Washington, D. C., and may submit, within 20 days after publication of this notice in the FEDERAL REGISTER, written statements with reference to the agreement and their position as to approval, disapproval, or modification, together with request for hearing should such hearing be desired.

Dated: December 16, 1954.

By order of the Federal Maritime Board.

[SEAL] A. J. WILLIAMS,
Secretary.

[F. R. Doc. 54-10086; Filed, Dec. 20, 1954; 8:54 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. 6060]

EMPRESA GUATEMALTECA DE AVIACION

NOTICE OF ORAL ARGUMENT

In the matter of the application of Empresa Guatemalteca De Aviacion for a foreign air carrier permit authorizing it to engage in foreign air transportation with respect to persons, property, and mail over the following routes: (1) Between the terminal point Guatemala City, Guatemala, and the terminal point New Orleans, Louisiana; and (2) between the terminal point Guatemala City, Guatemala, and the terminal point Miami, Florida, via the intermediate point Belize, British Honduras.

Notice is hereby given, pursuant to the provisions of the Civil Aeronautics Act of 1938, as amended, that oral argument in the above-entitled proceeding is assigned to be held on December 21, 1954, at 10:00 a. m., e. s. t., in room 5042, Commerce Building, Constitution Avenue, between Fourteenth and Fifteenth Streets NW., Washington, D. C., before the Board.

Dated at Washington, D. C., December 15, 1954.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F. R. Doc. 54-10081; Filed, Dec. 20, 1954; 8:53 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 11141, 11142; FCC 54M-1522]

THEODORE FEINSTEIN AND SHERWOOD J. TARLOW

ORDER CONTINUING HEARING CONFERENCE

In re applications of Theodore Feinstein, Newburyport, Massachusetts, Docket No. 11141, File No. BP-9027; Sherwood J. Tarlow, Newburyport, Massachusetts, Docket No. 11142, File No. BP-9120; for construction permits.

The Commission having under consideration an informal request for continuance of pre-hearing conference by WHAV Broadcasting Company, Inc., and informal consent thereto by other parties;

It is ordered, This 14th day of December 1954, that the prehearing conference now scheduled for December 15, 1954, is continued until December 21, 1954, at 10:00 a. m.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 54-10074; Filed, Dec. 20, 1954; 8:51 a. m.]

FEDERAL POWER COMMISSION

[Docket No. E-6584]

BLACK HILLS POWER AND LIGHT CO.

NOTICE OF ORDER AUTHORIZING ISSUANCE OF PREFERRED STOCK

DECEMBER 10, 1954.

Notice is hereby given that on November 24, 1954, the Federal Power Commission issued its order adopted November 22, 1954, authorizing issuance of preferred stock in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10048; Filed, Dec. 20, 1954; 8:46 a. m.]

[Docket No. G-2437]

HOPE NATURAL GAS CO

NOTICE OF ORDER PERMITTING WITHDRAWAL OF TARIFF SHEETS AND TERMINATING PROCEEDING

DECEMBER 10, 1954.

Notice is hereby given that on November 22, 1954, the Federal Power Commission issued its order adopted November 17, 1954, permitting withdrawal of tariff sheets and terminating proceeding in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10049; Filed, Dec. 20, 1954; 8:46 a. m.]

[Docket No. G-2468]

NORTHERN NATURAL GAS CO.

NOTICE OF ORDER MODIFYING INITIAL DECISION AND AFFIRMING DECISION

DECEMBER 10, 1954.

Notice is hereby given that on December 1, 1954, the Federal Power Commission issued its order adopted November 17, 1954, in the above-entitled matter, modifying Presiding Examiner's initial decision and affirming such decision as modified.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10050; Filed, Dec. 20, 1954; 8:46 a. m.]

[Docket Nos. G-3134, G-3136]

JOHNSTON OIL AND GAS CO.

NOTICE OF ORDER PERMITTING WITHDRAWAL OF APPLICATIONS

DECEMBER 10, 1954.

Notice is hereby given that on November 22, 1954, the Federal Power Commission issued its order adopted November 17, 1954, permitting withdrawal of applications for certificate of public convenience and necessity in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10051; Filed, Dec. 20, 1954; 8:46 a. m.]

[Project No. 120]

SOUTHERN CALIFORNIA EDISON CO.

NOTICE OF ORDER FURTHER AMENDING LICENSE (MAJOR)

DECEMBER 10, 1954.

Notice is hereby given that on November 23, 1954, the Federal Power Commission issued its order adopted November 17, 1954, further amending license (Major) in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10052; Filed, Dec. 20, 1954; 8:46 a. m.]

[Project No. 1405]

CITY OF PHOENIX, ARIZONA

NOTICE OF ORDER ACCEPTING SURRENDER OF LICENSE (TRANSMISSION LINE)

DECEMBER 10, 1954.

Notice is hereby given that on November 23, 1954, the Federal Power Commission issued its order adopted November 17, 1954, accepting surrender of license (Transmission line) in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10053; Filed, Dec. 20, 1954; 8:46 a. m.]

[Project No. 2044]

CLAUDE OWEN DAVIS

NOTICE OF ORDER ACCEPTING SURRENDER OF LICENSE (MINOR)

DECEMBER 10, 1954.

Notice is hereby given that on November 23, 1954, the Federal Power Commission issued its order adopted November 17, 1954, accepting surrender of license (Minor) in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10054; Filed, Dec. 20, 1954; 8:47 a. m.]

[Project No. 2046]

THEODORE PEDERSEN

NOTICE OF ORDER DISMISSING INCOMPLETE APPLICATION FOR LICENSE (MINOR)

DECEMBER 10, 1954.

Notice is hereby given that on November 23, 1954, the Federal Power Commission issued its order adopted November 17, 1954, dismissing incomplete application for license (Minor) in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10055; Filed, Dec. 20, 1954; 8:47 a. m.]

[Project No. 2114]

PUBLIC UTILITY DISTRICT NO. 2 OF GRANT COUNTY, WASHINGTON

NOTICE OF ORDER MODIFYING ORDER ISSUING PRELIMINARY PERMIT

DECEMBER 10, 1954.

Notice is hereby given that on November 23, 1954, the Federal Power Commission issued its order adopted November 17, 1954, modifying order issuing preliminary permit in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10056; Filed, Dec. 20, 1954; 8:47 a. m.]

SECRETARY AND ACTING SECRETARY

DELEGATION OF FINAL AUTHORITY FOR SCHEDULING HEARINGS ON CONSOLIDATED RECORDS AND TO SEVER HEARINGS

DECEMBER 8, 1954.

Pursuant to section 3 (a) (1) of the Administrative Procedure Act, notice is hereby given that effective December 8, 1954, the Commission has made the following delegation of final authority for scheduling hearings on a consolidated record and to sever hearings: Authorized the Secretary, or in his absence, the Acting Secretary to schedule hearings simultaneously on a consolidated record and also to sever hearings which have been consolidated.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 54-10079; Filed, Dec. 20, 1954; 8:52 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File No. 70-3325]

CITIES SERVICE CO.

NOTICE OF FILING PURSUANT TO RULE U-23 REGARDING ISSUANCE AND DELIVERY OF ADDITIONAL SHARES OF COMMON STOCK TO COMMON STOCKHOLDERS AND AMENDMENT OF CERTIFICATE OF INCORPORATION

DECEMBER 17, 1954.

Notice is hereby given that Cities Service Company ("Cities"), a registered

holding company, has filed a declaration with this Commission pursuant to the Public Utility Holding Company Act of 1935 ("act"). Declarant has designated sections 6 (a) and 7 of the act as applicable to the proposed transaction.

Cities has outstanding 3,887,100 shares of $10 par value common stock. In a concurrent declaration filed with this Commission (File No. 70-3326), Cities proposes to increase its outstanding common stock to 3,964,842 shares by the distribution of a 2 percent stock dividend not later than January 17, 1955. In the instant declaration, Cities proposes to issue and deliver to its common stockholders 1½ additional shares of $10 par value common stock for each share to be outstanding after distribution of said stock dividend, subject to appropriate action by the stockholders increasing the authorized common stock of the company from 5,000,000 shares of a par value of $10 per share to 20,000,000 shares of a par value of $10 per share. Upon effectuation of such issuance and delivery, there will be outstanding 9,912,105 shares of common stock.

Cities proposes to call a special meeting of stockholders to be held on January 25, 1955, to authorize an amendment of its Certificate of Incorporation to increase the authorized amount of common stock as aforesaid, and to eliminate the authorized Preferred Stock, Preference BB Stock, and Preference B Stock, as none of such shares is now outstanding, together with all references to said Preferred and Preference Stocks, and certain miscellaneous provisions which are no longer considered appropriate.

The proposed amendment will also change the voting rights applicable to each share of common stock from one-half vote to one vote, and will retain the provision of the present Certificate of Incorporation that the right of any holder of the common stock to subscribe for new or additional shares thereof shall be as the Board of Directors shall determine, and no such holder shall have any such right unless expressly granted by the Board of Directors.

Cities proposes to issue for fractional stock interests Order Forms. The fractional interest represented thereby may be combined with other fractional interests to enable the holder to receive certificates for full shares, or may be sold as the owner may elect.

Cities proposes to transfer to its common stock capital account from its capital surplus account to the extent available and from its earned surplus account to the extent necessary the amount of $59,472,630, representing the par value, at $10 per share, of the additional shares to be issued in connection with the proposed transaction.

Declarant states that no State commission or Federal commission, other than this Commission, has any jurisdiction over the proposed transaction.

Notice is further given that any interested person may, not later than December 29, 1954, at 5:30 p. m., e. s. t., request the Commission in writing that a hearing be held on such matter, stating the reasons for such request, the nature of his interest, and the issues of fact or law raised by said declaration which he desires to controvert, or may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after December 29, 1954, said declaration as filed, or as amended, may be permitted to become effective as provided in Rule U-23 of the rules and regulations promulgated under the act, or the Commission may exempt such transaction as provided in Rules U-20 (a) and U-100 thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 54-10139; Filed, Dec. 20, 1954; 10:25 a. m.]

[File No. 812-904]

AMERICAN RESEARCH AND DEVELOPMENT CORP. AND SYNDER CHEMICAL CORP.

NOTICE OF APPLICATION FOR ORDER EXEMPTING TRANSACTIONS BETWEEN AFFILIATES UNDER SECTION 17 (b) OF THE ACT

DECEMBER 17, 1954.

Notice is hereby given that American Research and Development Corporation ("American Research"), a registered closed-end non-diversified management investment company, incorporated under the laws of Massachusetts, with its principal place of business in Boston, Massachusetts, and Synder Chemical Corporation ("Snyder"), incorporated under the laws of New York and having its principal place of business at Bethel, Connecticut, have filed an application, pursuant to section 17 (b) of the Investment Company Act ("act"), requesting an order exempting from the provisions of section 17 (a) of the act certain transactions between American Research and Snyder as hereinafter described.

American Research owns 10,800 shares, or 16.9 percent, of the Common Stock, and 50,000 shares, or 32.4 percent, of the 5 Percent Cumulative Preferred Stock (par value $1.00 per share), of Snyder. American Research also holds a 5 Percent Note of Snyder, in the principal sum of $50,000, due August 26, 1956. Snyder is engaged in the production and sale of synthetic phenolic resins.

Snyder proposes to offer to its common stockholders, on a pro rata basis, 6,250 units of additional securities. Each unit consists of $8.00 face-amount of Debentures and 10 shares of Common Stock. It is proposed that the Debentures will be sold at a discount of 20 percent, or at $6.40 per unit, and the Common Stock at 16 cents per share, or $1.60 per unit. Such Debentures will be dated December 31, 1954, will mature ten years from that date, and will be subordinate to bank loans and trade creditors. Common stockholders will be given the right to purchase one unit of the new offering for each 10 shares of Common Stock now held. American Research proposes to subscribe to its pro rata share of the new offering which will involve an additional cash investment of $8,640.00.

In connection with and as part of the new financing, American Research has agreed to extend the maturity date of the $50,000 Note of Snyder from August 26, 1956, to December 31, 1964, the maturity date of the new Debentures, and has agreed to subordinate the presently outstanding Note to the new Debentures. A similar extension and subordination is proposed to be made of $50,000 face-amount of notes of Snyder held by persons other than American Research. Snyder proposes to use the additional funds obtained from the new offering of securities for the purchase of additional equipment to increase its productive capacity.

Because of the holding of Common Stock of Snyder by American Research, Snyder and American Research are affiliated persons of each other as defined in section 2 (a) (3) of the act. Accordingly, the extension of the outstanding Note of Snyder held by Research, and the borrowing of additional funds by Snyder from American Research through the issuance of the new Debentures, may constitute transactions within the prohibition of section 17 (a) (3) of the act. American Research and Snyder have requested that the Commission enter an order exempting the proposed transactions to the extent which may be necessary under the requirements of the act.

Notice is further given that any interested person may, not later than December 28, 1954, at 5:30 p. m., submit to the Commission in writing any facts bearing upon the desirability of a hearing on the matter and may request that a hearing be held, such request stating the nature of his interest, the reasons for such request and the issues, if any, of fact or law proposed to be controverted, or he may request that he be notified if the Commission should order a hearing thereon. Any such communication or request should be addressed: Secretary, Securities and Exchange Commission, Washington 25, D. C. At any time after said date, the application may be granted as provided in Rule N-5 of the rules and regulations promulgated under the act.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 54-10140; Filed, Dec. 20, 1954; 10:25 a. m.]

INTERSTATE COMMERCE COMMISSION

[Rev. S. O. 562, Amdt. 3 to Taylor's I. C. C. Order 44]

TEXAS, OKLAHOMA AND EASTERN RAILROAD CO.

REROUTING OR DIVERSION OF TRAFFIC

Upon further consideration of Taylor's I. C. C. Order No. 44 and good cause appearing therefor:

It is ordered, That Taylor's I. C. C. Order No. 44 be, and it is hereby, amended by substituting the following paragraph (g) for paragraph (g) thereof:

(g) *Expiration date.* This order shall expire at 11:59 p. m., January 31, 1955,

unless otherwise modified, changed, suspended or annulled.

It is further ordered, That this amendment shall become effective at 11:59 p. m., December 15, 1954, and that this order shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement, and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., December 14, 1954.

INTERSTATE COMMERCE COMMISSION,
CHARLES W. TAYLOR,
Agent.

[F. R. Doc. 54-10060; Filed, Dec. 20, 1954; 8:48 a. m.]

[4th Sec. Application 30028]

COTTON LINTERS PULP FROM BLOOMINGTON, ILL., TO CONNECTICUT, DELAWARE, AND PENNSYLVANIA

APPLICATION FOR RELIEF

DECEMBER 16, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: H. R. Hinsch, Agent, for carriers parties to his tariff I. C. C. No. 4542, pursuant to fourth-section order No. 17200.

Commodities involved: Pulp, cotton linters, carloads.

From: Bloomington, Ill.

To: Points in Connecticut, Delaware, and Pennsylvania.

Grounds for relief: Competition with rail carriers and circuity.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 54-10058; Filed, Dec. 20, 1954; 8:47 a. m.]

[4th Sec. Application 30029]

COAL FROM INDIANA MINES TO CHICAGO, ILL., DISTRICT

APPLICATION FOR RELIEF

DECEMBER 16, 1954.

The Commission is in receipt of the above-entitled and numbered application for relief from the long-and-short-haul provision of section 4 (1) of the Interstate Commerce Act.

Filed by: Southern Railway Company, Darrow Kirkpatrick, Frt. Traf. Mgr., for itself and on behalf of other carriers.

Commodities involved: Bituminous coal, carloads.

From: Southern Railway mines in Indiana.

To: Chicago, Ill., and points in the Chicago Switching District.

Grounds for relief: Competition with rail carriers, market competition, and circuity.

Schedules filed containing proposed rates: Southern Railway tariff I. C. C. No. C-2230, Supp. No. 146.

Any interested person desiring the Commission to hold a hearing upon such application shall request the Commission in writing so to do within 15 days from the date of this notice. As provided by the general rules of practice of the Commission, Rule 73, persons other than applicants should fairly disclose their interest, and the position they intend to take at the hearing with respect to the application. Otherwise the Commission, in its discretion, may proceed to investigate and determine the matters involved in such application without further or formal hearing. If because of an emergency a grant of temporary relief is found to be necessary before the expiration of the 15-day period, a hearing, upon a request filed within that period, may be held subsequently.

By the Commission.

[SEAL] GEORGE W. LAIRD,
Secretary.

[F. R. Doc. 54-10059; Filed, Dec. 20, 1954; 8:48 a. m.]